

Western Australia

Contaminated Sites Act 1973 2003

As at 12 Dec 2005

Version 00-d0-02

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Contaminated Sites Act 1973 2003

CONTENTS

1.	Short title	2
2.	Commencement	2
4.	Interpretation	2
5.	Administration	4
5A.	Delegation of Commissioner's power to give licences, permits and approvals	4
6.	Prohibition	5
7.	Governor may order delivery of firearms by dealers and manufacturers in cases of emergency	7
8.	Exemptions from licensing requirements	7
9.	Licences etc. not transferable	11
9A.	Duration and renewal of licences	11
10.	Minimum age of licensee or permit holder	12
10A.	Training courses	12
11.	Exercise of Commissioner's discretion	13
11A.	Genuine reason required in all cases	16
11B.	Genuine need required in some cases	17
11C.	Other restrictions	17
12.	Unsafe or unserviceable firearms	17
15.	Firearm collections	18
15A.	Accredited societies of collectors	20
15B.	Information from accredited society of collectors	20
16.	Licences	21
16A.	Possession of firearms by security officers	23
17.	Temporary permits	24
17A.	Interstate group permits	25

Contents

17B.	<u>Minister may authorise officers or employees of Agriculture Protection Board to possess, carry and use silencers</u>	26
18.	<u>Licensing procedure</u>	28
19.	<u>Licensing offences</u>	32
19AA.	<u>Certain offences of lesser severity</u>	35
19A.	<u>Infringement notice</u>	36
20.	<u>Revocation, etc.</u>	37
21.	<u>Restrictions, limitations and conditions</u>	39
21A.	<u>Supervision and management</u>	40
21B.	<u>Offences by bodies corporate and partnerships</u>	41
22.	<u>Reviews</u>	43
22A.	<u>Firearms Act Extract of Licence</u>	43
22B.	<u>Return of Extract of Licence</u>	45
22C.	<u>Offences relating to the Extract of Licence, licences, permits, etc.</u>	46
23.	<u>General offences</u>	47
23A.	<u>Limitation periods</u>	52
23B.	<u>Disclosure by doctors of certain information</u>	52
23BA.	<u>Disclosure of certain information by approved club and organisation members</u>	53
23C.	<u>Persons concerned in commission of offences</u>	55
24.	<u>Powers of police</u>	55
25.	<u>Constructive possession</u>	58
26.	<u>Search warrant</u>	58
27A.	<u>Disqualification by court imposing restraining order</u>	59
28.	<u>Court may order forfeiture on conviction of offender</u>	60
29.	<u>Evidence</u>	60
30.	<u>Ammunition sales</u>	61
30A.	<u>Sale and disposal of firearms</u>	63
30B.	<u>Loss, theft, destruction, or disposal out of the State, to be reported</u>	63
31.	<u>Records</u>	64
32.	<u>Safe keeping by traders</u>	65
33.	<u>Disposal of firearms</u>	66
34.	<u>Regulations</u>	67
	 <u>Notes</u>	
	<u>Compilation table</u>	69

<u>Provisions that have not come into operation</u>	<u>71</u>
---	-----------

Part 1—Preliminary

1. Short title	2
-----------------------	----------

2. Commencement	2
------------------------	----------

Notes

Compilation table	3
--------------------------	----------

Provisions that have not come into operation	3
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Western Australia

Firearms

Contaminated Sites Act 1973 -2003

An Act to make provision providing for the control identification, recording, management and regulation remediation of firearms and ammunition, the licensing of persons possessing, using, dealing with, or manufacturing firearms and ammunition, the repeal of the *Firearms and Guns Act 1931*², contaminated sites, to consequentially amend certain other Acts and for incidental and other related purposes.

Part 1—Preliminary

1. Short title

This Act may be cited as the *~~Firearms~~Contaminated Sites Act 1973¹ 2003*.

2. Commencement

This Act ~~shall come~~*comes* into operation on a date to be day fixed by proclamation¹.

[3. Omitted under the Reprints Act 1984 s. 7(4)(f).]

4. Interpretation

In this Act, unless the context otherwise requires —

“ammunition” includes anything manufactured specifically as a component of ammunition designed for discharge from a firearm and also includes any primer or propellant manufactured specifically for use in making ammunition designed for discharge from a firearm but does~~10~~.

~~Have not include ammunition rendered inoperative for the purpose of a collector’s item; come into operation².~~

“approved” means approved by the Commissioner;

“carry” includes to [Pt. 2-10] have on or about one’s person;

“Commissioner” means the Commissioner of Police;

“dealer” means a person who in the ordinary course of business buys, sells or trades in firearms or ammunition; and “deal” has a corresponding meaning;

“Department” means the department of the Public Service principally assisting in the administration of this Act;

“Extract of Licence” means a Firearms Act Extract of Licence referred to in, and issued under, section 22A;

“firearm” includes any lethal firearm and any other weapon of any description from which any shot, bullet, or other missile can be discharged or propelled or which, by any alteration in the construction or fabric thereof, can be made capable of discharging or propelling any shot, bullet or other missile, but does not include anything that is prescribed in regulations under the *Weapons Act 1999* to be a prohibited weapon or a controlled weapon; ~~come into~~ operation².]

“handgun” means any lethal firearm and any other weapon of any length of barrel —

- (a) which is reasonably capable of being carried or concealed about the person; and
- (b) which when used can be aimed and fired or discharged from one hand; and
- (c) from which any shot, bullet, or other missile can be discharged or propelled, or which, by any alteration in the construction or fabric thereof can be made capable of discharging or propelling any shot, bullet or other missile;

“holder”, in the context of an approval given under this Act, means the person to whom the approval relates;

“medical practitioner” means an individual who is registered as a medical practitioner under the *Medical Act 1894*;

“missile” means any solid substance or liquid chemical which when discharged or propelled from any weapon from any distance is capable of causing physical injury to persons;

“paintball” means a game in which players attempt to shoot at one another with prescribed paintball guns using prescribed paintball pellets;

“paintball gun” means a firearm designed to discharge or propel paintball pellets;

“paintball pellets” means pellets —

s. 5

(a) consisting primarily of a dye or a similar prescribed substance; and

(b) designed to be discharged or propelled from a firearm;

“possession”, in addition to actual physical possession of a firearm or ammunition, means the custody or control of it, or having and exercising access to it in any place either alone or in common with others;

“section” means section of this Act.

[Section 4 amended by No. 59 of 1996 s. 4 and 40; No. 18 of 1999 s. 21; No. 69 of 2004 s. 4 and 8(~~Sec. 1~~).]

5. Administration

(1) The responsibility for the administration of this Act is vested in the Minister who is required to ~~—3—~~have regard to the recommendations of the Commissioner but is not bound to give effect to any such recommendation.

(2) Subject to the Minister, the administration of this Act shall be carried out by the Commissioner.

(3) The costs and expenses incurred in the administration of this Act shall be defrayed out of moneys to be provided by Parliament for that purpose.

(4) The provisions of the *Financial Administration and Audit Act 1985* regulating the financial administration, audit and reporting of departments apply to and in respect of the Department and its operations under this Act.

[Section 5 amended by No. 98 of 1985 s. 3; No. 69 of 2004 s. 8(2).]

5A. Delegation of Commissioner’s power to give licences, permits and approvals

(1) The regulations may permit prescribed members of the Police Force to perform the Commissioner’s functions upon an

application being made for the grant of an approval or permit or the issue of a licence under this Act in respect of a firearm or ammunition.

(2) Sections 58 and 59(1)(a) and (f), (2), and (3) of the Interpretation Act 1984 apply as if a function that a member of the Police Force may perform under subsection (1) had been delegated to the person by the Commissioner.

(3) The Commissioner may, by a signed instrument of delegation, delegate to a member of the Police Force, either generally or as otherwise provided in the instrument, any power or duty under this Act, other than —

(a) a function the performance of which is permitted by regulations under subsection (1); and

(b) this power of delegation.

[Section 5A inserted by No. 59 of 1996 s. 5(1).]

[5B. Repealed by No. 69 of 2004 s. 9.]

6. Prohibition

(1) The Governor, on the recommendation of the Commissioner, may make regulations to prohibit the acquisition, sale, possession, or use of any firearm, silencer or other contrivance of a similar nature, or ammunition, whether licensed under this Act or not, either —

(a) absolutely; or

(b) except upon and subject to such conditions, restrictions, and limitations, for such purpose or purposes, and in such place or places, as the Governor considers desirable in the public interest,

having regard to the especial potentially dangerous nature of that kind of firearm, contrivance or ammunition and the need to exercise special precautions in relation thereto, or otherwise in the public interest.

s. 6

(1a) Notwithstanding that any licence may have been issued, permit granted, or approval given under this Act in relation to any firearm or ammunition of that kind, the Governor, on the recommendation of the Commissioner, may, in relation to any firearm or ammunition which is, because of its nature or characteristics, of a kind requiring the exercise of special precautions and which is named, or falls within a description given in, or is otherwise identified by, those regulations, make regulations —

(a) directing that no licence, permit or approval relating thereto shall be issued or given;

(b) directing that no licence, permit or approval relating thereto shall be capable of being renewed after a date specified in the regulations; or

(c) otherwise making such provision as may be expedient in relation thereto,

and for the purposes of section 22 the exercise of any power pursuant to those regulations shall not be taken to have been a decision made by or on behalf of the Commissioner.

(2) Regulations made under subsection (1) may provide penalties for offences against the regulations, and may also provide that any firearm or ammunition relating to any such offence shall be forfeited to the Crown whether or not any person is lawfully entitled to the possession thereof.

(3) Where no penalty is specifically provided, a person who contravenes a regulation made under subsection (1) commits a crime and is liable, on conviction —

(a) for a first offence, to imprisonment for 5 years;

(b) for a subsequent offence, to imprisonment for 10 years.

Summary conviction penalty for a first offence: Imprisonment for 3 years or a fine of \$12 000.

[Section 6 amended by No. 35 of 1980 s. 3; No. 70 of 1987 s. 4; No. 59 of 1996 s. 7 and 45; No. 4 of 2004 s. 58; No. 69 of 2004 s. 10.]

7. Governor may order delivery of firearms by dealers and manufacturers in cases of emergency

(1) Where the Governor is of opinion that any emergency has arisen, or is likely to arise, he may by proclamation declare that all dealers and manufacturers and repairers of firearms in the State, or in any specified portion of the State, having firearms or ammunition in their possession —

(a) shall render the same innocuous by a method to be specified in the declaration;

(b) shall deliver the same, or any parts or kinds of the same specified in the declaration, within a time and at a place so specified, to the Commissioner or any specified member of the Police Force, for the purpose of safe keeping.

(2) A person who fails to comply with the requirements of a proclamation made under subsection (1) commits a crime and is liable, on conviction, to imprisonment for 5 years.

Summary conviction penalty: Imprisonment for 18 months or a fine of \$6 000.

[Section 7 amended by No. 70 of 1987 s. 5; No. 59 of 1996 s. 46; No. 4 of 2004 s. 58.]

8. Exemptions from licensing requirements

(1) No licence under this Act is required —

(a) by a person who is the holder of a permit issued under this Act in relation to any matter authorised by that permit;

(b) by the Governor;

[(c) deleted]

s. 8

- (d) by —
- (i) a member of the Police Force; or
- (ii) an employee of the Department,
- having a firearm or ammunition in his possession in
preparation for, as a consequence of, or for use in, the
performance of his duties;
- (e) by a member of the armed forces of the Crown, or a
member of any other disciplined force specified by the
Governor for the purposes of this section by notice in the
Gazette, having a firearm or ammunition in his
possession for use in the performance of his duties;
- (f) by a person permitted to do so under section 16(2)
by a body licensed by the Commissioner under
section 16(1)(c) who has a firearm or ammunition in his
possession, or carries or uses it, in accordance with that
permission;
- (g) by a person who is an approved commercial carrier or
approved warehouseman, or by the servant of any such
person, who in the ordinary course of his trade or
business as an approved commercial carrier or approved
warehouseman —
- (i) carries, and not by means of a bicycle or motor
cycle, unless otherwise approved; or
- (ii) stores,
- a firearm or ammunition for another person;
- (h) in relation to an approved firearm or ammunition for that
firearm, by a person who in the ordinary course of his
practice, trade or business uses that firearm for the purpose
of dealing a blow to any animal with intent to slaughter it
or to render the animal insensible prior to slaughtering;
- (i) by a person who is employed or contracted by, or is a
family member (as defined in subsection (2)) of, a
primary producer —

- (i) to possess or use for the purpose of destroying vermin, or stock required by that primary producer to be destroyed, on land used by that primary producer for the purposes of primary production, a firearm and ammunition belonging to and held by that primary producer under a licence or permit granted under this Act to the primary producer; or
- (ii) to possess such a firearm or ammunition while carrying it directly between 2 such pieces of land or directly between such land and any other place where it is authorised by law to be held,

if the use of the firearm and ammunition by that person is expressly authorised by the primary producer;
- (j) by a person who has in his possession or uses any firearm designed for signalling or life saving purposes in the course of rescue or attempted rescue operations or in rehearsal or training for such operations, or has in his possession or uses ammunition for that firearm;
- (k) by a person who has in his possession or uses for the purpose of starting races at any athletic or other sporting meeting an approved firearm or ammunition for that firearm belonging to, and held under a licence or permit granted under this Act by, another person with his permission;
- (l) by a person who, as an employee or partner of the holder of a licence to conduct a shooting gallery, or as a customer of a shooting gallery being conducted pursuant to this Act, handles or uses a firearm or ammunition at that shooting gallery in accordance with the conditions, restrictions and limitations, if any, specified in the licence relating to that shooting gallery;
- (m) by a person who, with the permission of the owner of the firearm on an approved range that is properly constructed and maintained, has in his possession, handles or uses a firearm or ammunition for a firearm

s. 8

that is the property of, or is the property of a member of, an approved club or other approved organisation and is held by that owner under a licence or permit granted under this Act;

(ma) by a person who, at a venue that is approved and properly constructed and maintained for the playing of paintball, is in possession of, handles or uses a prescribed paintball gun or prescribed paintball pellets —

(i) with the permission of the owner of the paintball gun; or

(ii) if the owner of the paintball gun is an approved club or other approved organisation, as a member of that club or other organisation;

(mb) by a person who is in possession of prescribed paintball pellets;

(mc) by a person who is in possession of, or carries, but does not use, an antique mechanism firearm;

(n) by a person under the age of 18 years who uses a firearm, not being a handgun, or ammunition for that firearm under the supervision of, and which is the property of, a person who is the holder of a licence or permit under this Act relating to that firearm.

(2) In subsection (1) —

“antique mechanism firearm” means a muzzle loading firearm (including a percussion lock handgun that is muzzle loading) manufactured before 1900 that uses black powder to propel a shot, bullet, or other missile except that it does not include a breech loading firearm, a firearm with revolving chambers or barrels, or a cannon;

“approved” means approved by the Commissioner either generally by notice in the *Gazette* or specifically by notice in writing;

“family member”, in relation to a person, means —

(a) the spouse or de facto partner of the person;

(b) a parent, child, brother, or sister, of the person or of the person's spouse or de facto partner; or

(c) the spouse or de facto partner of a person referred to in paragraph (b).

[Section 8 amended by No. 59 of 1996 s. 8; No. 28 of 2003 s. 59; No. 69 of 2004 s. 5, 8(3) and 11.]

9. Licences etc. not transferable

A licence, permit, or approval issued or granted under this Act is not transferable.

9A. Duration and renewal of licences

(1) The period for which this section provides that a licence is valid is subject to —

(a) any other provision of this Act; and

(b) anything endorsed on the licence,

under which the licence ceases to be valid earlier.

(2) An Ammunition Collector's Licence is valid for a period of 5 years from the day on which it was issued or last renewed.

(2a) A Firearm Collector's Licence is valid for a period of 3 years from the day on which it was issued or last renewed unless that day was before the day on which the *Firearms Amendment Act 2003* section 12 came into operation, in which case it is valid for a period of 5 years from the day on which it was issued or last renewed.

(3) Any other licence under this Act is valid for a period of 12 months from the day on which it was issued or last renewed.

(4) The Commissioner may, on payment of the prescribed fee, renew a licence from time to time for further periods on application made within one month before, or within 12 months after, its expiry.

s. 10

- (5) Where a licence is renewed on application made within one month before, or within 3 months after, its expiry, it is deemed to have been renewed immediately after its expiry and the renewal is deemed to be a continuation of the licence.
- (6) Where a licence is renewed on application made more than 3 months, but not more than 12 months, after its expiry, the renewal takes effect on and from the day on which it is effected but, for the purpose of determining the day when the renewed licence expires, it is deemed to have been renewed immediately after it previously expired.
- (7) A licence cannot be renewed under this section more than 12 months after its expiry, but the person who held it is not prevented from making an application for a licence under section 18(1).

[Section 9A inserted by No. 59 of 1996 s. 9; amended by No. 69 of 2004 s. 12.]

10. Minimum age of licensee or permit holder

A licence or permit under this Act cannot be issued to a person under the age of 18 years.

[Section 10 inserted by No. 59 of 1996 s. 10.]

10A. Training courses

Regulations made under section 34 may —

- (a) require that, before a licence under this Act can be issued to an applicant, the applicant is required to have successfully completed a course of training accredited in accordance with the regulations;
- (b) make provision as to the accreditation of, and conducting of, courses referred to in paragraph (a).

[Section 10A inserted by No. 59 of 1996 s. 11.]

11. Exercise of Commissioner's discretion

- (1) The Commissioner cannot grant an approval or permit or issue a licence under this Act to a person if the Commissioner is of the opinion that —
- (a) to do so would be contrary to section 11A or regulations under section 11B or 11C;
 - (b) it is not desirable in the interests of public safety; or
 - (c) the person is not a fit and proper person to hold the approval, permit, or licence.
- (2) Where the Commissioner is satisfied that a person has a history of, or a tendency towards, violent behaviour, the Commissioner may take it into account in deciding whether that person is a fit and proper person to hold an approval, permit, or licence.
- (3) The Commissioner has a sufficient ground for forming an opinion that a person is not a fit and proper person to hold an approval, permit or licence under this Act if the Commissioner —
- (a) is satisfied that at any time within the period of 5 years before the person applies for the approval, permit or licence —
 - (i) the person was convicted of an offence involving assault with a weapon;
 - (ii) the person was convicted of an offence involving violence;
 - (iii) the person was convicted of any offence against this Act; or
 - (iv) a violence restraining order was made against the person,whether in this State or in any other place;
 - (b) is satisfied that the person fails to meet standards of mental or physical fitness that the Commissioner

s. 11

considers to be necessary for the person to hold the approval, permit or licence; or

- (c) suspects, on the basis of an intelligence report or other information held in relation to the person, that the person is a threat to public safety.

- (4) In subsection (3) —

“violence restraining order” means a judicial order imposing on the person against whom the order is made restraints on the person’s lawful activities and behaviour to prevent the person —

- (a) committing an offence against the person under Part V of *The Criminal Code*, other than Chapters XXXIV and XXXV; or

- (b) behaving in a manner that could reasonably be expected to cause fear that the person will commit such an offence,

or a similar order made under the laws of any place other than this State.

- (4a) The Commissioner is not required under this Act or any other Act or law to disclose information relied on under subsection (3)(c) unless the disclosure is required under the *State Administrative Tribunal Act 2004*.

- (5) The Commissioner may form an opinion that a person is a fit and proper person to hold an approval, permit or licence under this Act in a case in which the Commissioner has a sufficient ground under subsection (3) for forming the contrary opinion.

- (6) Subsection (3) does not limit the Commissioner’s ability, when forming an opinion as to whether a person is a fit and proper person to hold an approval, permit or licence under this Act, to take into account —

- (a) a conviction or order made outside the period of 5 years referred to in paragraph (a) of that subsection; or

(b) anything else that could have been taken into account if that subsection had not been enacted.

(7) Without limiting the other grounds on which an application may be refused, the Commissioner may refuse an application if satisfied that the applicant has —

(a) failed to comply with a regulation providing for the manner in which a photograph of the applicant's face is to be supplied for inclusion on an Extract of Licence;

(b) failed to give the Commissioner, when requested in writing by a member of the Police Force to do so, a statement in the prescribed form as to what the applicant has done, or intends to do, to ensure that any firearms or ammunition in the applicant's possession are stored in accordance with this Act; or

(c) refused to permit a member of the Police Force to inspect the storage facilities for any firearms or ammunition that the applicant would be entitled to possess, when requested in writing by a member of the Police Force to do so.

(8) Where the Commissioner, in writing, requests an applicant for an approval, permit or licence to supply information, or further information, which the Commissioner considers to be necessary to enable the application to be properly determined, if that information is not supplied —

(a) within 28 days, or such further period as the Commissioner may approve; and

(b) in the manner and form requested by the Commissioner,

the application lapses and the approval, permit, or licence sought cannot be granted or issued.

[Section 11 inserted by No. 59 of 1996 s. 12; amended by No. 69 of 2004 s. 13.]

s. 11A

11A. Genuine reason required in all cases

- (1) An approval or permit cannot be granted, and a licence cannot be issued, under this Act to a person who, in the Commissioner's opinion, has not been shown to have a genuine reason for acquiring or possessing the firearm or ammunition for which the approval, permit, or licence is sought.
- (2) A person has a genuine reason for acquiring or possessing a firearm or ammunition if and only if —
- (a) it is for use by the person as a member of an approved shooting club and the person is an active and financial member of the club;
 - (b) it is for use by the person as a member of an organisation approved under this paragraph;
 - (c) it is for use in hunting or shooting of a recreational nature on land the owner of which has given written permission for that hunting or shooting;
 - (d) it is required by the person in the course of the person's occupation;
 - (da) in the case of a prescribed paintball gun, it is required by the person to conduct or engage in paintball in accordance with this Act;
 - (e) it is to form part of a genuine firearm collection or genuine ammunition collection; or
 - (f) it is for another approved purpose.
- (3) A person does not have a genuine reason for acquiring or possessing a firearm or ammunition of a particular kind unless the Commissioner is satisfied not only as to the person's reason for acquiring or possessing a firearm or ammunition but also that the particular kind of firearm or ammunition can be reasonably justified.
- (4) The reasons described in subsection (2)(e) are not genuine reasons for acquiring or possessing a firearm or ammunition under a licence other than a Firearm Collector's Licence or an Ammunition Collector's Licence.

(5) Approval cannot be given under subsection (2)(f) to the possession of a firearm or ammunition for the purpose of personal protection.

(6) Regulations made under section 34 may limit the purposes that may be approved under subsection (2)(f).

[Section 11A inserted by No. 59 of 1996 s. 12; amended by No. 69 of 2004 s. 6 and 14.]

11B. Genuine need required in some cases

(1) The regulations may provide that, for prescribed categories of firearms or ammunition, an approval or permit cannot be granted, and a licence cannot be issued, under this Act to a person unless the Commissioner is satisfied that the person has a genuine need to acquire or possess a firearm or ammunition of that category.

(2) The regulations may make provision as to the circumstances in which a person can or cannot be considered to have a genuine need to acquire or possess a firearm or ammunition of a particular category.

[Section 11B inserted by No. 59 of 1996 s. 12.]

11C. Other restrictions

The regulations may restrict the grant, issue, or renewal of licences, permits, or approvals under this Act.

[Section 11C inserted by No. 59 of 1996 s. 12.]

12. Unsafe or unserviceable firearms

(1) Except as allowed by this section, a licence or permit cannot be issued under this Act to any person in respect of any firearm which in the opinion of the Commissioner is —

(a) unsafe; or

(b) unserviceable.

s. 15

(2) Subsection (1) does not prevent the issue to a dealer of a licence or permit in respect of a firearm for the purpose of enabling it to be tested, repaired, or dismantled for parts.

(3) Subsection (1) does not prevent the issue of a permit in respect of a firearm for the purpose of enabling it to be conveyed —

(a) to a dealer or the holder of a Repairer's Licence; or

(b) to any other person authorised to take possession of it.

(4) Subsection (1)(b) does not prevent the issue to a person of —

(a) a Firearm Collector's Licence; or

(b) a permit in respect of a firearm that forms or is to form part of a genuine firearm collection.

[Section 12 inserted by No. 59 of 1996 s. 13.]

[13, 14. Repealed by No. 59 of 1996 s. 5(2).]

15. Firearm collections

(1) For the purposes of this Act a firearm can form part of a genuine firearm collection only if, in the opinion of the Commissioner, it has significant commemorative, historical, thematic, or heirloom value.

(2) The fact that there is only one firearm in a collection does not prevent it from being a genuine firearm collection for the purposes of this Act.

(3) For the purposes of this Act, a handgun manufactured after 1946 can form part of a genuine firearm collection only if —

(a) it is owned by a person who is, in the opinion of the Commissioner, a student of arms as defined in subsection (4); and

(b) the handgun is within the scope of that person's interest as a student of arms.

(4) In subsection (3) —

“student of arms” means a person who can be shown to have a prolonged and genuine interest in the study, preservation, or collection of firearms.

- (5) In considering whether a firearm has significant commemorative value, the Commissioner has to take into account any special significance that the firearm, or any firearm or firearms of the same kind as that firearm or of a related kind, has to a particular event in history.
- (6) In considering whether a firearm has significant historical value, the Commissioner has to take into account any special significance that the firearm, or any firearm or firearms of the same kind as that firearm or of a related kind, has to a particular period in history.
- (7) In considering whether a firearm has significant thematic value, the Commissioner has to take into account any special significance that the firearm, or any firearm or firearms of the same kind as that firearm or of a related kind, has to the development, manufacture, or use of firearms.
- (8) In considering whether a firearm has significant heirloom value to a particular person, the Commissioner has to take into account any special significance that the firearm has because it was owned or possessed by a direct or indirect member of that person’s family.
- (9) In considering whether or not it would be appropriate for a person to obtain, or continue to hold, a Firearm Collector’s Licence, the Commissioner may take into account any information provided about that person by a person or body designated under section 15A as an accredited society of collectors.

[Section 15 inserted by No. 59 of 1996 s. 14; amended by No. 69 of 2004 s. 15(1) and (2).]

s. 15A

15A. Accredited societies of collectors

- (1) The Commissioner may, in writing, designate a person or body, whether incorporated or unincorporated, as an accredited society of collectors for the purposes of this Act.
 - (2) For a person or body to be an accredited society of collectors one of its purposes has to be to facilitate the study, preservation, or collection of —
 - (a) handguns in particular; or
 - (b) handguns and other firearms.
 - (3) The regulations may specify other requirements for a person or body to be an accredited society of collectors.
 - (4) The Commissioner may, by notice in writing given to an accredited society of collectors, cancel its designation as an accredited society of collectors for the purposes of this Act.
- [Section 15A inserted by No. 69 of 2004 s. 16.]

15B. Information from accredited society of collectors

- (1) If an accredited society of collectors expels any of its members, it is required to notify the Commissioner in writing of the expulsion of the member, identifying the member and the reason for the expulsion.

Penalty: Imprisonment for 2 years or a fine of \$8 000.
- (2) The notification may include information that the Commissioner might consider relevant to the question of whether or not the member who is expelled is a fit and proper person to hold a Firearm Collector's Licence.
- (3) An accredited society of collectors that is requested at any time to do so may provide to the Commissioner any information that the Commissioner might consider relevant to —
 - (a) the question of whether, for the purposes of this Act, a firearm would be, or form part of, a genuine firearm collection; or

(b) the question of whether a person is a fit and proper person to hold a Firearm Collector's Licence.

(4) Neither an accredited society of collectors that gives the Commissioner any notification or information under this section nor a person involved in the giving of that notification or information is liable in civil or criminal proceedings because of the giving, or the person's involvement in the giving, of the notification or information in accordance with this section if it was in good faith.

[Section 15B inserted by No. 69 of 2004 s. 16.]

16. Licences

(1) The licences which may be issued under this Act are —

(a) a Firearm Licence, which entitles the holder to possess, carry, and lawfully use the firearm named and identified in that licence, and ammunition for that firearm;

(b) a Firearm Collector's Licence, which entitles the holder to possess, but not to carry or use, the firearm named and identified in that licence;

(c) a Corporate Licence, which may be issued in the corporate or trading name of any bank, financial institution, Government department, State instrumentality or other organisation approved by the Commissioner and entitles that organisation to possess the firearms named and identified in that licence, together with ammunition therefor, and, subject to section 16A, authorises that organisation to permit any person to whom subsection (2) applies to possess, carry and use any such firearm or ammunition either

(i) on the premises of the organisation; or

(ii) in the course of carrying out a function approved by the Commissioner and authorised by that organisation.

s. 16

in accordance with the terms, restrictions, limitations and conditions applicable to that licence;

(d) a Dealer's Licence, which entitles the holder to deal in firearms and ammunition on the premises named and identified in that licence, to receive firearms for the purpose of their being dismantled for parts, and to arrange for the repair or servicing of firearms by the holder of a Repairer's Licence, and authorises the holder or an employee or partner of the holder to have in his possession, and to carry in the ordinary course of the business of that dealer, any such firearm or ammunition or to use it for the purpose of testing it or of demonstrating it to a prospective purchaser;

(e) a Repairer's Licence, which entitles the holder to —

(i) repair firearms belonging to persons who are authorised by this Act or any other law to possess them; and

(ii) possess ammunition for those firearms,

on the premises named and identified in that licence, and authorises the holder or an employee or partner of the holder to have in his possession, and to carry in the ordinary course of the business of that repairer, any such firearm or ammunition and to use any such firearm or ammunition for the purpose of testing it;

(f) a Manufacturer's Licence, which entitles the holder to manufacture firearms or ammunition of the kind specified in that licence on the premises named and identified in that licence and to sell and dispose of such firearms and ammunition at those premises, and authorises the holder or an employee or partner of the holder to have in his possession, and to carry in the ordinary course of the business of that manufacturer, any such firearm or ammunition and to use any such firearm or ammunition for the purpose of testing it or of demonstrating it to a prospective purchaser;

(g) a Shooting Gallery Licence, which entitles the holder to conduct a shooting gallery in accordance with the regulations on the premises specified in that licence; and

(h) an Ammunition Collector's Licence, which entitles the holder to possess and carry, but not to use, ammunition not exceeding such quantity as may be specified in that licence and not being of a type prescribed as being ammunition to which such a licence does not apply.

(2) An organisation which holds a Corporate Licence may permit a person who is —

(a) an employee of that organisation;

(b) in respect to any particular act or omission authorised by the organisation —

(i) an agent of the organisation; or

(ii) a person acting at the request of and on behalf of the organisation;

or

(c) a person employed in the Public Sector by or under an employing authority, within the meaning of the *Public Sector Management Act 1994*, who is required or authorised by the organisation to act on behalf of the organisation in respect to a relevant act or omission,

to possess, carry or use a firearm or ammunition in accordance with that licence.

[Section 16 amended by No. 59 of 1996 s. 15; No. 27 of 1996 s. 96.]

16A. Possession of firearms by security officers

A Corporate Licence referred to in section 16(1)(c) authorises an organisation for which a security agent's licence is held under the *Security and Related Activities (Control) Act 1996* to permit an employee to possess a firearm or ammunition to the extent only that the employee is authorised to do so by a security officer's licence endorsed under section 24 of that Act.

[Section 16A inserted by No. 27 of 1996 s. 96; amended by
No. 59 of 1996 s. 16.]

17. Temporary permits

(1) Subject to subsection (3), a permit to possess a firearm or
ammunition temporarily may be granted by the Commissioner
to a person —

(a) for the purpose of any test or demonstration of it;

(b) who is an auctioneer, Sheriff or deputy sheriff, bailiff,
executor or other person requiring such possession only
for the purpose of the disposal of that firearm or
ammunition;

(c) for the purposes of transit;

(d) for the purposes of a guided hunting tour; or

(e) in any other case where the Commissioner considers that
it is not in the public interest to require that person to
apply for a licence,

if the Commissioner is satisfied that the firearm or ammunition
came, or will come, into the possession of the applicant in a
lawful manner.

(2) A permit granted under subsection (1) may authorise the use of
the firearm or ammunition in the circumstances specified
therein.

(3) A permit granted under subsection (1) subsists for the period
specified therein unless sooner determined by the Commissioner
by notice in writing, but shall not be granted for any period in
excess of 3 months.

(4) A permit granted under subsection (1) may be renewed at any
time before the expiry date but shall not be renewed in favour of
the same person in relation to any particular firearm on more
than one occasion in any period of 12 consecutive months.

[Section 17 amended by No. 59 of 2004 s. 141.]

17A. Interstate group permits

- (1) Subject to this section where the Commissioner receives a written application from any person purporting to reside outside the State and purporting to be a responsible officer of a bona fide shooting club or similar body or sporting organisation conducting occasional shooting contests or activities the Commissioner may, if he is satisfied that —
- (a) the members of the club, body or organisation are desirous of participating within this State in any shooting contest or sporting activity; and
 - (b) the members of the club, body or organisation are of good repute,
- grant to the club, body or organisation an interstate group permit.
- (2) An interstate group permit under this section —
- (a) shall be in the prescribed form;
 - (b) shall be issued to the club, body or organisation on whose behalf the application for the permit has been made;
 - (c) shall set forth —
 - (i) the names and addresses of the persons of the group in respect of whom it is issued; and
 - (ii) the day or days and the occasion or occasions in respect of which it is issued;
- and
- (d) shall be issued without the payment of a fee.
- (3) An interstate group permit issued under this section shall not be granted for any period in excess of 28 days.
- (4) Sufficient copies of a group permit shall be issued to the applicant to enable him to furnish each person named in the interstate group permit with a copy of the permit.

s. 17B

- (5) An interstate group permit entitles the persons named in the permit to possess or carry the firearms named and identified in the permit and ammunition for that firearm as if each such person were the holder of a firearm licence for the period specified in the permit.

[Section 17A inserted by No. 61 of 1976 s. 2.]

17B. Minister may authorise officers or employees of Agriculture Protection Board to possess, carry and use silencers

- (1) Subject to this section, the Minister may grant authority in writing to an approved officer or employee of the Board to possess and carry a silencer and to use it in conjunction with a .22 calibre rifle during the period specified in that authority.

- (2) The Minister may at any time revoke an authority.

- (3) An officer or employee to whom an authority has been granted —

(a) shall, when he requires the use of a silencer, obtain one from a member of the Police Force at the police station nearest to the area in which he proposes to use the silencer;

(b) shall comply with such directions as are from time to time given to him in connection with silencers by a member of the Police Force acting on the instructions of the Commissioner;

(c) shall not use a silencer otherwise than in conjunction with a .22 calibre rifle named and identified in the Corporate Licence referred to in subsection (7) for the purpose of shooting common starlings *Sturnus vulgaris* in the performance of his duties;

(d) shall take all reasonable precautions to ensure the safekeeping of a silencer possessed, carried or used by him;

(e) shall, when not using or about to use a silencer, keep the silencer separate from any firearm in conjunction with which it is capable of being used; and

(f) shall, when he —

(i) is directed under this subsection to surrender; or

(ii) no longer requires the use of,

a silencer obtained by him under this subsection, surrender that silencer to a member of the Police Force at the nearest police station.

(4) If an officer or employee to whom an authority has been granted fails to perform any of the duties imposed on him by subsection (3) or ceases to be permitted by the Board to possess, carry or use a .22 calibre rifle under the Corporate Licence referred to in subsection (7), his authority is rendered void.

(5) An authority ceases to be in force on —

(a) the expiry of the period specified in the authority;

(b) its revocation under subsection (2);

(c) its being rendered void by virtue of subsection (4); or

(d) this section ceasing to have effect by virtue of subsection (7),

whichever is the sooner.

(6) For the purposes of section 22, neither the approval of an officer or employee of the Board for the purposes of subsection (1) nor the giving of a direction under subsection (3) shall be taken to be the making of a decision by or on behalf of the Commissioner.

(7) This section has effect only while the Board is the holder of a valid Corporate Licence entitling the Board to possess .22 calibre rifles, together with ammunition therefor.

(8) In this section —

“authority” means authority granted under subsection (1);

s. 18

“Corporate Licence” means Corporate Licence referred to in section 16(1)(c);

“silencer” means contrivance commonly known as a silencer, or contrivance of a similar nature;

“subsection” means subsection of this section;

“the Board” means The Agriculture Protection Board of Western Australia constituted under the *Agriculture Protection Board Act 1950*.

[Section 17B inserted by No. 3 of 1983 s. 2; amended by No. 59 of 1996 s. 17.]

18. Licensing procedure

(1) A person who wishes to apply for a licence or a permit under this Act, other than an interstate group permit issued under section 17A, shall make application in the prescribed manner, and shall pay the prescribed fee.

[(2), (3), (3a) repealed]

(4) The fee payable on the issue of —

(a) an Ammunition Collector’s Licence that is to remain in force for a period of less than 5 years is the prescribed fee reduced proportionately by one-sixtieth for each month or portion of a month;

(aa) a Firearm Collector’s Licence that is to remain in force for a period of less than 3 years is the prescribed fee reduced proportionately by one thirty-sixth for each month or portion of a month;

(b) a licence of any other kind that is to remain in force for a period of less than 12 months is the prescribed fee reduced proportionately by one-twelfth for each month or portion of a month.

(4a) Before granting or issuing a licence, permit, or approval to a person under this Act the Commissioner is to ensure that, for the

purpose of forming an opinion as to whether the person is a fit and proper person to hold the licence, permit, or approval —

(a) reference has been made where practicable to relevant criminal records held by the police forces in this State and elsewhere in Australia;

(b) if there is any apparently reliable indication that the person may not meet standards of mental or physical fitness referred to in section 11(3)(b), sufficient evidence has been provided to the Commissioner to satisfy the Commissioner that the person does meet those standards; and

(c) if there is any apparently reliable indication that for any other reason the person may not be a fit and proper person to hold the licence, permit, or approval, sufficient evidence has been provided to the Commissioner to satisfy the Commissioner that the person is a fit and proper person to hold the licence, permit, or approval.

(4b) The evidence that the Commissioner may require before being satisfied that the person meets standards of mental or physical fitness referred to in section 11(3)(b) may include a certificate from a medical practitioner to the effect that the person has been examined and has not been found to have any physical or mental condition that could reasonably result in the person being considered not to be a fit and proper person to hold a licence, permit, or approval under this Act.

(4c) On being provided with a certificate from a medical practitioner as required under subsection (4b), the Commissioner may request from the medical practitioner any further information that the Commissioner considers to be relevant and nothing prevents the medical practitioner from providing the Commissioner in good faith with further information about the person.

(4d) Subsection (4c) has effect despite any duty of confidentiality, and the provision of information in good faith as requested

under that subsection does not give rise to a criminal or civil action or remedy.

(5) Before any licence or permit under this Act is issued or renewed the applicant may be required to prove to the satisfaction of the Commissioner that any firearm to which the application relates is capable of complying with the prescribed safety standards and tests applicable thereto.

(6) If the Commissioner is satisfied that —

(a) the requirements of this section have been satisfied;

(b) there are no grounds upon which the application ought to be refused; and

(c) in the case of an application for the first issue of a Firearm Licence to a person, a period of at least 28 days has elapsed since the making of the application and the applicant has, under subsection (6a), confirmed the desire to proceed with the application,

the Commissioner is to enter the prescribed particulars in a Register to be compiled and maintained for the purpose and issue to the applicant a licence or permit under this Act.

(6a) An applicant for the first issue of a Firearm Licence may, during the period commencing 28 days after the day on which the application was made and ending a further 28 days after that day, confirm the desire to proceed with the application, and if the applicant does not do so the application lapses and the licence sought cannot be issued.

(7) The Register compiled for the purposes of this section shall be maintained in the prescribed manner and the licences and permits issued or granted under this Act shall be in the prescribed form.

(8) Where the Commissioner refuses an application, whether original or by way of renewal, or issues it subject to any restriction, limitation or condition, the Commissioner is to

forthwith notify the applicant, in writing, of the reasons for the decision.

(9) Licences of more than one kind may be issued to the same person in one document, and a licence may relate to more than one firearm.

(10) Where a licence has been issued to any person and that person applies for an additional licence of the same kind in relation to a further firearm that additional licence may, on presentation of an application for expedited approval accompanied by the prescribed noting fee, be noted on the original licence in any case where the Commissioner is satisfied that the public interest does not require that the applicant should proceed by way of an originating application.

(10a) The power given by subsection (10) cannot be performed under section 5A by a member of the Police Force unless that member could, under that section, grant the licence for which application was made.

(11) Where a further firearm is noted on a current licence the licence applies whilst it remains in force to that further firearm.

(12) Where an applicant for a licence, permit or approval under this Act fails to provide to the Commissioner, on being requested in writing to do so, any information as to —

(a) any other person who is to be concerned in, or responsible for, the management of any business or premises to which the application relates; or

(b) any employee or agent of the applicant or any person concerned in, or responsible for, management,

the Commissioner may regard the granting or issuing of the licence, permit or approval to the applicant as not desirable in the public interest.

(13) Where a person who is the holder of a licence, permit or approval under this Act fails to provide to the Commissioner, on being requested in writing to do so, any information as to —

s. 19

(a) any other person who is to be, or is, concerned in, or responsible for, the management of any business or premises to which the licence, permit or approval relates; or

(b) any employee or agent of the holder or any person concerned in, or responsible for, management,

the Commissioner may consider the holder as being no longer a fit and proper person but only after the holder has been given an opportunity to make a submission to the Commissioner under section 20(1a).

[Section 18 amended by No. 61 of 1976 s. 3; No. 59 of 1996 s. 18; No. 69 of 2004 s. 17.]

19. Licensing offences

(1) Any person who —

(a) sells, delivers or disposes of;

(b) purchases or otherwise comes into possession of; or

(c) is in possession of,

any firearm or ammunition and is not the holder of a licence or permit under this Act entitling him to do so commits a crime unless subsection (1ae) or section 19AA provides otherwise or section 8 applies.

(1aa) A person who is guilty of a crime under subsection (1) committed in circumstances referred to in subsection (1)(a) is liable, on conviction, to imprisonment for 14 years if at the time of the offence the person was selling 3 or more firearms without a licence or permit entitling the person to sell any of them.

(1ab) A person who is guilty of a crime under subsection (1) —

(a) committed in circumstances where the person was carrying both a firearm that is a subject of the offence and —

(i) a prohibited drug or prohibited plant, as defined in the *Misuse of Drugs Act 1981*, when not

authorised to be in possession of that drug or plant under that Act; or

(ii) an amount of money equal to or greater than the prescribed amount,

is liable, on conviction, to imprisonment for 14 years;

(b) committed in circumstances where the person was in possession of 3 or more firearms without a licence or permit entitling the person to be in possession of any of them, is liable, on conviction, to imprisonment for 10 years unless subsection (1aa) applies.

(1ac) Unless subsection (1aa) or (1ab) applies, a person who is guilty of a crime under subsection (1) committed in relation to a firearm is liable, on conviction, to imprisonment for 7 years if —

(a) at the time of the offence the offender —

(i) had been refused, or was disqualified from holding, a licence or permit referred to in subsection (1); or

(ii) had had a licence or permit referred to in subsection (1) revoked,

in relation to the firearm or a firearm of the same kind;

(b) the firearm was a handgun or a prescribed firearm;

(c) at the time of the offence, any number or identification mark which was on the firearm had been defaced or removed; or

(d) the firearm had been altered from the design or characteristics of its original manufacture.

Summary conviction penalty for a crime under subsection (1) committed in any of the circumstances described in this subsection: Imprisonment for 3 years or a fine of \$12 000.

(1ad) Unless subsection (1aa), (1ab) or (1ac) applies, a person who commits a crime under subsection (1) is liable, on conviction, to imprisonment for 5 years.

s. 19

Summary conviction penalty: Imprisonment for 3 years or a fine of \$12 000.

(1ae) Subsection (1) does not apply to coming into, or being in, possession of ammunition under section 30(2) as the agent of a person to whom it is, or is to be, delivered as soon as is reasonably practicable.

(1a) For the purposes of applying the penalty provisions of subsection (1ac)(a), a firearm is of one of the kinds prescribed for the purposes of that provision by the regulations.

(2) A person who —

(a) sells, delivers, or disposes of a firearm or ammunition to another person, or otherwise permits another person to take possession of a firearm or ammunition;

(b) purchases, or otherwise comes into, possession of a firearm or ammunition from another person; or

(c) permits another person to be in possession of a firearm or ammunition,

commits an offence if the other person is not the holder of a licence or permit under this Act entitling him to possession of it unless it is a disposal of ammunition under section 30(2) or section 8 applies.

Penalty:

(a) if the firearm concerned was a handgun or a prescribed firearm, imprisonment for 5 years;

(b) in any other case, imprisonment for 3 years or a fine of \$12 000.

~~[(3) repealed]~~

(4) A person who —

~~[(a) deleted]~~

(b) repairs on behalf of another;

(c) manufactures,

or is concerned in repairing or manufacturing, any firearm or ammunition otherwise than in accordance with a licence under this Act authorising him to do so, commits a crime and is liable, on conviction —

(a) in the case of the manufacture of a handgun, to imprisonment for 14 years;

(b) in any other case, to imprisonment for 5 years.

Summary conviction penalty except in the case of the manufacture of a handgun: Imprisonment for 2 years or a fine of \$8 000.

(5) A person who conducts, or is concerned in the conducting of, a shooting gallery otherwise than in accordance with a licence under this Act authorising him to do so commits an offence.

Penalty: \$2 000.

[Section 19 amended by No. 54 of 1978 s. 2; No. 70 of 1987 s. 6; No. 59 of 1996 s. 19, 47 and 50(1); No. 50 of 2003 s. 62(2); No. 4 of 2004 s. 58; No. 69 of 2004 s. 18 and 31.]

19AA. Certain offences of lesser severity

(1) If a person who has been the holder of a Firearm Licence, Firearm Collector's Licence, or Ammunition Collector's Licence does, while that licence has expired but is still capable of being renewed under section 9A, anything that is an offence under this Act but would not have been an offence if the licence had been renewed immediately after its expiry, that offence is not an indictable offence but is triable summarily and is punishable by a fine of \$2 000 instead of the penalty that would otherwise apply for the offence.

(2) If a person commits an offence under section 19(1) and the only firearm or ammunition concerned is, or is for, a prescribed paintball gun, that offence is not an indictable offence but is triable summarily and is punishable by a fine of \$2 000 instead of the penalty that would otherwise apply for the offence.

[Section 19AA inserted by No. 69 of 2004 s. 19.]

s. 19A

19A. Infringement notice

(1) Where a person who has been the holder of a Firearm Licence, Firearm Collector's Licence, or Ammunition Collector's Licence —

(a) applies for the renewal of that licence more than 3 months but not more than 12 months after the date on which the licence expired and the renewal is effected;

(b) has been served with a notice referred to in subsection (2); and

(c) has paid, within the time specified in the notice, the amount prescribed by way of penalty referred to in subsection (2) and the notice has not been withdrawn within 28 days after the service of it upon him,

proceedings shall not be brought against the person for any offence against this Act which was committed by him between the date on which the licence expired and the date on which its renewal was effected but which would not have arisen if the licence had been renewed within the time specified in section 9A(5).

(2) The Commissioner may by notice in the prescribed form notify any person who has failed to renew a licence of a kind specified in subsection (1) after a period of 3 months immediately succeeding the expiry of his licence that an allegation can be made that he has contravened section 19(1) and that he may, if he does not wish to be prosecuted for the alleged offence in a court —

(a) pay to the holder of an office specified in the notice the amount prescribed by way of penalty for the alleged contravention; and

(b) obtain the renewal of the licence,

within the time specified in the notice, if dealt with under this section.

- (3) A notice referred to in subsection (2) may be served on an alleged offender personally or by posting it to his address as ascertained from him or pursuant to any inquiry conducted under the direction of the Commissioner.
- (4) A person who receives a notice referred to in subsection (2) may decline to pay the penalty referred to in that subsection and where he fails to pay that penalty within the time specified in the notice or within such further time as may in any particular case be allowed, he is deemed to have declined to be dealt with under the provisions of subsection (2).
- (5) A notice referred to in subsection (2) may, whether or not the penalty has been paid, be withdrawn, at any time within 28 days after the service of the notice, by the sending of a notice, in the prescribed form, signed by an officer authorised by the Commissioner, to the alleged offender at his last known place of residence or business, advising him that the notice has been withdrawn.
- (6) The payment of a penalty pursuant to this section shall not constitute a conviction of an offence against this Act and shall not be regarded as an admission of liability for the purpose of, or in any way affect or prejudice, any civil claim, action or proceeding.
- [Section 19A inserted by No. 61 of 1976 s. 4; amended by No. 35 of 1980 s. 4; No. 59 of 1996 s. 20²; No. 84 of 2004 s. 80.]

20. Revocation, etc.

- (1) Where the Commissioner is satisfied —
- (a) that a person who is the holder of a licence, permit or approval under this Act —
- (i) obtained it by fraud or deception;
- (ii) has breached or failed to observe a restriction, limitation or condition to which it is subject; or

s. 20

- (iii) could not, because of section 11, be granted the approval or permit or issued the licence, as the case requires, if the person were then applying for it;
- (aa) that harm may be suffered by any person as a result of a person retaining or regaining possession of a firearm or ammunition;
- (ab) that a licence or permit was issued, or an approval was given, incorrectly because of an administrative or procedural error;
- (ac) that to do so is in the public interest;
- (ad) that a person holding or applying for the renewal of a licence, permit or approval has —
 - (i) failed to comply with a regulation providing for the manner in which a photograph of that person's face is to be supplied for inclusion on an Extract of Licence;
 - (ii) failed to give the Commissioner, when requested in writing by a member of the Police Force to do so, a statement in the prescribed form as to what the person has done to ensure that any firearms or ammunition in the person's possession are stored in accordance with this Act; or
 - (iii) contrary to section 23(9)(e), refused to permit a member of the Police Force to inspect storage facilities;
- (b) that a particular firearm is unsafe or unfit for use;
- (c) that a particular place or premises, range or gallery does not comply with the requirements of this Act; or
- (d) that the circumstances in which his approval under this Act was given in relation to any person or matter no longer prevail,

he may refuse to renew or may revoke any licence, permit or approval relating thereto or may impose reasonable restrictions, limitations or conditions thereon.

(1a) Where the Commissioner, in writing, requests a person who is the holder of any licence, permit, or approval to —

(a) supply information, or further information, that the Commissioner considers to be necessary in order to determine whether or not the holder remains a fit and proper person; or

(b) make a submission to show cause why the power of revocation should not be exercised,

if that information is not supplied, or that submission is not made, to the Commissioner in a form acceptable to the Commissioner within 28 days, or such further period as the Commissioner may approve, the licence, permit or approval may be revoked.

(2) A restriction, limitation or condition imposed under this Act may be varied from time to time.

(3) The Commissioner shall give notice in writing to the holder, where any licence, permit or approval issued or granted under this Act is revoked or varied, of the reasons for the decision.

(4) Any licence, permit or approval issued or granted under this Act may be cancelled if the holder so requests.

[Section 20 amended by No. 90 of 1994 s. 4; No. 59 of 1996 s. 21.]

21. Restrictions, limitations and conditions

(1) A licence, permit or approval issued or granted under this Act may be made subject to restrictions, limitations or conditions which shall be —

(a) either specified in the licence, permit or document evidencing the approval or, whether imposed at the time of issue or grant or subsequently, specified in a supplementary document; and

s. 21A

(b) entered in the Register.

- (2) A person, whether or not the holder of that licence, permit or approval, who commits a breach of, or fails to observe, a restriction, limitation or condition to which a licence, permit or approval issued or granted under this Act was made subject, and who is a person who ought reasonably to have known of the existence of that restriction, limitation or condition, commits an offence.

Penalty: Imprisonment for 18 months or a fine of \$6 000.

[Section 21 amended by No. 70 of 1987 s. 7; No. 59 of 1996 s. 22 and 50(3); No. 69 of 2004 s. 20.]

21A. Supervision and management

- (1) The conduct of business under a Dealer's Licence, a Repairer's Licence or a Manufacturer's Licence is always the responsibility of the holder and is to be personally supervised and managed, on each premises to which the licence applies, by —

(a) the holder; or

(b) a person appointed as the agent or employee of the holder.

- (2) Where in respect of a business of a kind to which subsection (1) applies —

(a) a requirement is made of the holder of the licence under which that business is conducted;

(b) a restriction, limitation or condition applies to that licence; or

(c) an element of an offence under this Act is an act or omission on the part of the holder of that licence,

and a person is appointed, employed or permitted by the holder to conduct that business on any premises, if that requirement, restriction, limitation or condition is contravened by that person, or such an offence occurs because of an act or omission on the part of that person, that person as well as the holder is liable

accordingly, and that person may be prosecuted for an offence either in addition to, or in substitution for, the holder.

(3) Where, in contravention of any requirement, restriction, limitation or condition to which any licence, permit or approval held by a person under this Act is subject —

(a) any agent or employee of the holder; or

(b) any other person acting or purporting to act on behalf of the holder,

does or omits to do any act on the premises to which the licence, permit or approval relates and for which the holder would have been liable under this Act had it been done or omitted by the holder, the holder is deemed also to have done or omitted to do that act and is liable to the same penalty as is prescribed for the contravention.

(4) The holder of the licence, permit or approval may be proceeded against and convicted under subsection (3) notwithstanding that the person contravening the requirement, restriction, limitation or condition has not been proceeded against or has not been convicted under this Act.

[Section 21A inserted by No. 59 of 1996 s. 23; amended by No. 84 of 2004 s. 80.]

21B. Offences by bodies corporate and partnerships

(1) Where an offence under this Act is found to have been committed in the course of the business carried on under a Dealer's Licence, a Repairer's Licence or a Manufacturer's Licence by a body corporate, then —

(a) if the offence is found —

(i) to have been committed with the consent or connivance of; or

(ii) to be attributable to any failure to take all reasonable steps to secure compliance by the body corporate with this Act on the part of,

s. 21B

any officer or other person concerned in the management of the body corporate, or any person purporting to act in any such capacity, that person as well as the body corporate is liable accordingly and is deemed to have committed an offence; and

(b) where the offence was committed by an agent or employee of the body corporate, unless it is proved that —

(i) such direction had been given; and

(ii) such supervision had been exercised or caused to be exercised,

as were reasonably necessary to ensure that an offence against this Act was not committed, the person responsible to the body corporate for the management of any premises in respect of which the offence was committed is deemed to have also committed an offence,

and each is liable to the same penalty as is prescribed for the principal offence.

(2) A person referred to in subsection (1) may, on the request of the prosecutor, be convicted on the proceedings on which the body corporate is convicted if the court is satisfied that the person had reasonable notice that the prosecutor intended to make that request.

(3) In this section —

“officer”, in relation to a body corporate, includes a person who is an officer of the body corporate within the meaning of section 9 of the *Corporations Act 2001* of the Commonwealth.

(4) Where the affairs of a body corporate are managed by its members, subsection (1) applies in relation to the acts and defaults of a member in connection with functions of management as if the member were a director of the body corporate.

(5) Where this Act provides that the holder of a licence, permit or approval commits an offence in specified circumstances —

(a) any reference to the holder is a reference to each person who holds the licence, permit or approval; and

(b) if that licence, permit or approval is held by a person who is a member of a partnership which is directly or indirectly interested in the business conducted under that licence, permit or approval, or the profits or proceeds of the business, each member of the partnership is liable for the offence.

[Section 21B inserted by No. 59 of 1996 s. 23; amended by No. 10 of 2001 s. 220; No. 84 of 2004 s. 80.]

22. Reviews

(1) In this section —

“decision” includes a restriction, limitation or condition imposed under this Act.

(2) A person aggrieved by a decision made by or on behalf of the Commissioner may apply to the State Administrative Tribunal for a review of the decision.

[Section 22 inserted by No. 59 of 1996 s. 24; amended by No. 55 of 2004 s. 369.]

[22AA. Repealed by No. 69 of 2004 s. 21(2).]

22A. Firearms Act Extract of Licence

(1) The Commissioner may cause to be issued, in such form as the Commissioner may approve, a document to be known as a Firearms Act Extract of Licence to identify a person who —

(a) is exempted by section 8 from the requirement to hold a licence under this Act;

(b) is the holder of a licence granted, permit issued or approval given under this Act; or

s. 22A

(c) is an employee authorised, by an organisation to which is issued a Corporate Licence, to possess, carry or use a firearm or ammunition,

setting out particulars of the exemption or of the licence, permit, approval or authorisation held by that person.

(2) Where a person has actual physical possession, or (otherwise than by way of storage) the custody or control, of a firearm, or ammunition for a firearm, to which any exemption, licence, permit, approval or authorisation relates and that person has been issued with an Extract of Licence, that person —

(a) is required to keep the Extract of Licence in their actual possession at all times except if it is impracticable to do so; and

(b) is required, on request, to immediately produce that Extract of Licence for inspection by —

(i) a member of the Police Force; or

(ii) any person from whom the holder of the Extract of Licence is seeking to obtain services in relation to that firearm or ammunition.

Penalty: \$1 000.

(3) When seeking to obtain ammunition for a firearm to which the exemption, licence, permit, approval or authorisation in respect to which the Extract of Licence was issued relates, a person to whom an Extract of Licence was issued is required, on request, to produce that Extract of Licence, or cause it to be produced, to the person from whom the ammunition is to be obtained.

Penalty: \$1 000.

(4) A person does not commit an offence under subsection (2)(b)(i) if the person is not in possession of the Extract of Licence when the request is made and, within 48 hours after being requested to produce the Extract of Licence, the person produces the Extract of Licence for inspection by the officer-in-charge of any police station.

(5) A person does not commit an offence under subsection (3) if, when requested to produce the Extract of Licence, the person discontinues seeking to obtain the ammunition.

(6) Regulations made under section 34 may —

- (a) require that a photograph of the face of the holder be included on the Extract of Licence, and provide for the manner in which that photograph is to be supplied;
- (b) require that an applicant for, or for the renewal of, a licence, permit, approval or authorisation under this Act provide evidence of identity in a manner approved by the Commissioner;
- (c) provide for the use, and for the issue, expiry, renewal, return and cancellation, of Extracts of Licence; and
- (d) limit the application of this section to prescribed circumstances, or in relation to any specified case or class of case.

[Section 22A inserted by No. 59 of 1996 s. 41.]

22B. Return of Extract of Licence

A person who was —

- (a) the subject of an exemption under section 8 that has ceased to apply;
- (b) the holder of a licence granted under this Act that has expired and has not been renewed, or that has been cancelled or revoked;
- (c) the holder of a permit, or approval given, under this Act that has expired, or been determined, cancelled or revoked; or
- (d) authorised, pursuant to a Corporate Licence, to carry or use a firearm or ammunition and has ceased to be so authorised,

and who was issued with an Extract of Licence in respect of that exemption, licence, permit, approval or authorisation is

s. 22C

required, as soon as is practicable, to deliver to the Commissioner that Extract of Licence.

Penalty: \$1 000.

[Section 22B inserted by No. 59 of 1996 s. 41.]

22C. Offences relating to the Extract of Licence, licences, permits, etc.

(1) Any person who, without lawful authority —

(a) alters an Extract of Licence, licence, permit, approval or authorisation to which this Act applies;

(b) uses, or has in their possession, an Extract of Licence, licence, permit, approval or authorisation to which this Act applies which has, without lawful authority, been altered;

(c) being the holder of an Extract of Licence, licence, permit, approval or authorisation to which this Act applies, parts with possession of it in order that it may be used by any other person otherwise than as the agent of the holder;

(d) uses or attempts to use an Extract of Licence, licence, permit, approval or authorisation to which this Act applies, issued in the name of another, otherwise than as the agent of the holder, to procure possession of any firearm or ammunition or any service to which this Act relates;

(e) fraudulently obtains, or is in possession of, or uses an Extract of Licence, licence, permit, approval or authorisation to which this Act applies; or

(f) in relation to any application under this Act in respect of an Extract of Licence, licence, permit, approval or authorisation to which this Act applies, supplies particulars or answers knowing them to be incorrect or misleading,

commits an offence.

Penalty: \$ 2 000.

- (2) For the purposes of subsection (1)(a) and (b) any alteration, addition or erasure made by a member of the Police Force, or any other person exercising a function under this Act, is to be taken to have been made with lawful authority.

[Section 22C inserted by No. 59 of 1996 s. 41.]

23. General offences

- (1) A person who permits possession of any firearm or ammunition to be taken by another person where there are reasonable grounds for believing that he knows, or ought to know, that the other person is affected by alcohol or drugs, or alcohol and drugs, or that the other person is of unsound mind, commits an offence.

Penalty: Imprisonment for 18 months or a fine of \$6 000.

- (2) A person who uses, carries or is otherwise in actual physical possession of a firearm whilst affected by alcohol or drugs, or alcohol and drugs, commits an offence.

Penalty:

- (a) if the firearm is loaded, imprisonment for 2 years or a fine of \$8 000; or
(b) otherwise, imprisonment for 18 months or a fine of \$6 000.

- (3) Unless he holds a licence or permit under this Act entitling him to do so or section 8 applies, a person who carries or uses a firearm commits a crime and is liable —

- (a) if the firearm concerned was a handgun or a prescribed firearm, on conviction, to imprisonment for 7 years; or
(b) otherwise, to imprisonment for 4 years or a fine of \$16 000.

Summary conviction penalty:

s. 23

- (a) in a case to which paragraph (a) applies:
Imprisonment for 3 years or a fine of \$12 000;
- (b) in a case to which paragraph (b) applies:
Imprisonment for 2 years or a fine of \$8 000.
- ~~[(4) repealed]~~
- (5) A person who, without lawful excuse, —
- (a) defaces or alters any number or identification mark on a
firearm;
- (b) is in possession of a firearm whereon any number or
identification mark, whether or not a number or mark
recorded on the licence or permit relating thereto, has
been altered or defaced; or
- (c) alters a firearm —
- (i) from the design or characteristics of its original
manufacture; or
- (ii) so that its calibre, character or kind differs from
what it was when any current licence or permit
relating to it was issued,
- or is in possession of a firearm that has been so altered,
commits a crime and is liable —
- (d) if the firearm concerned was a handgun or was modified
in a prescribed manner, on conviction, to imprisonment
for 7 years; or
- (e) otherwise, on conviction to imprisonment for 4 years or
a fine of \$16 000.
- Summary conviction penalty:
- (a) in a case to which paragraph (d) applies:
Imprisonment for 3 years or a fine of \$12 000;
- (b) in a case to which paragraph (e) applies:
Imprisonment for 2 years or a fine of \$8 000.

(5a) Subsection (5)(c) does not apply to a paintball gun where the alteration is in accordance with the manufacturer's design and is effected by the addition of a commercially produced product that does not alter the type or velocity of a projectile fired from the gun.

(6) Subject to subsection (7a), a person who uses a contrivance commonly known as a silencer, or any contrivance of a similar nature, commits an offence.

Penalty: Imprisonment for 7 years.

(7) Subject to subsection (7a), a person who is in possession of a contrivance commonly known as a silencer, or any contrivance of a similar nature, commits an offence.

Penalty: Imprisonment for 3 years or a fine of \$12 000.

(7a) A person who, being —

(a) a member of the Police Force or an employee of the Department acting in the performance of his duties; or

(b) the holder of an authority which is in force under section 17B,

uses or is in possession of, as the case requires, a contrivance referred to in subsection (6) or (7) does not commit an offence under that subsection.

(8) Except as provided in subsection (8a), a person who, without lawful excuse, points a firearm at any other person commits an offence.

Penalty: Imprisonment for 3 years or a fine of \$12 000.

(8a) A player of a paintball game being conducted in accordance with a licence under this Act does not commit an offence under subsection (8) if the person points a paintball gun, named and identified in that licence, at another person while playing the game.

(9) A person who, —

s. 23

- (a) whilst carrying, or in actual physical possession of, or having the custody or control otherwise than by way of storage of, any firearm or ammunition, fails or omits to take all reasonable precautions to ensure its safe keeping;
- (b) having failed or omitted to take all reasonable precautions to prevent the same, permits a young person under the age of 18 years to have unlawful possession of a firearm;
- (c) without lawful excuse, discharges any firearm or any shot, bullet or other missile from a firearm, onto, from or across any road;
- (d) being responsible for the storage of any firearm or ammunition, fails —
- (i) to provide and use adequate storage facilities to ensure its safety;
- (ii) where prescribed requirements as to security are specified in relation to a firearm or ammunition of a prescribed kind, to ensure that those requirements are observed; or
- (iii) otherwise, to safeguard it from loss or improper use;
- or
- (e) being responsible for the storage of any firearm or ammunition, refuses to permit a member of the Police Force to inspect the storage facilities provided, at a reasonable time after such an inspection is requested in writing by the member of the Police Force,

commits an offence.

Penalty:

- (a) for a first offence, a fine of \$2 000;
- (b) for a subsequent offence, imprisonment for 12 months or a fine of \$4 000.

(9a) A person who from any place, discharges any firearm, or any shot, bullet, or other missile from a firearm, to the danger of, or in a manner to cause fear to, the public or any person, commits an offence.

Penalty: Imprisonment for 3 years or a fine of \$12 000.

(10) A person who, without reasonable excuse, uses a firearm on land belonging to another person without the express or implied consent of the owner or occupier of that land or some person apparently authorised to act on behalf of the owner or occupier, commits an offence.

Penalty: \$2 000.

(10a) A person who, without reasonable excuse, carries a firearm, other than on a road open to the public, onto or across land that is used for or in connection with primary production without the express or implied consent of the owner or occupier of that land or some person apparently authorised to act on behalf of the owner or occupier, commits an offence.

Penalty: \$2 000.

(10b) For the purposes of subsection (10) and subsection (10a), the holding of a permit issued under the *Wildlife Conservation Regulations 1970* shall not be taken to be a reasonable excuse.

(11) A person who by act or omission commits any breach of the provisions of this Act for which no penalty is specifically provided commits an offence.

Penalty: \$2 000.

(12) A person must not admit a minor under the age of 16 years to attend a venue where paintball is played unless the minor is accompanied by his or her parent or guardian.

Penalty: \$1 000.

(13) It is a defence to a charge of an offence against subsection (12) for the person charged to prove that —

s. 23A

- (a) the person charged or that person's employee or agent took all reasonable steps to ensure that a minor was not present in contravention of subsection (12);
- (b) the person charged or that person's employee or agent believed on reasonable grounds that the minor was 16 years of age or older; or
- (c) the person charged or that person's employee or agent believed on reasonable grounds that the person accompanying the minor was the minor's parent or guardian.

[Section 23 amended by No. 54 of 1978 s. 3; No. 3 of 1983 s. 3; No. 70 of 1987 s. 8; No. 59 of 1996 s. 25, 48 and 50(1), (3), (4) and (5); No. 50 of 2003 s. 62(3); No. 4 of 2004 s. 58; No. 69 of 2004 s. 7, 8(3), 22 and 31.]

23A. Limitation periods

A prosecution for an offence against section 19(1) to which section 19AA applies, 19(2), 22C, 23(9)(a), 23(9)(d), 24(6)(b), 30B(1) or 30B(2) may be commenced at any time within 2 years after the date on which the alleged offence was committed.

[Section 23A inserted by No. 59 of 1996 s. 26; amended by No. 69 of 2004 s. 23; No. 84 of 2004 s. 80.]

23B. Disclosure by doctors of certain information

(1) If a health professional is of the opinion that —

- (a) because of the patient's physical, mental, or emotional condition, it is not in the person's interest or not in the public interest that the person possess any firearm or ammunition to which the patient is believed to have access; or
- (b) in the case of a medical practitioner or registered nurse, a person is seeking or has sought medical assistance for an injury in the infliction of which a firearm or ammunition is believed to have been involved,

nothing prevents the health professional in good faith from informing the Commissioner of that opinion.

- (2) This section has effect despite any duty of confidentiality, and nothing done by a health professional in good faith in accordance with this section gives rise to a criminal or civil action or remedy.

- (3) In this section —

“health professional” means —

(a) a medical practitioner;

(b) a registered psychologist as defined in the *Psychologists Registration Act 1976*;

(c) a registered nurse;

(d) a prescribed class of social worker; or

(e) a prescribed class of professional counsellor;

“registered nurse” means a person registered under Part 3 of the *Nurses Act 1992*.

[Section 23B inserted by No. 59 of 1996 s. 26; amended by No. 69 of 2004 s. 24.]

23BA. Disclosure of certain information by approved club and organisation members

- (1) If an officer of an approved shooting club or approved organisation is of the opinion that —

(a) a person who is a member of the club or organisation is not a fit and proper person to possess, carry or use a firearm; and

(b) the person has a licence under this Act or intends to apply for a licence under this Act or possesses or intends to possess a firearm,

the officer is to communicate to the Commissioner that opinion and the grounds on which it was formed.

s. 23BA

(2) Where a person's application for membership or renewal of membership of an approved shooting club or approved organisation is refused or, following a grant or renewal a person's membership is cancelled, an officer is to notify the Commissioner and give the reasons for that decision.

(3) A decision made by the Commissioner is not liable to be questioned or annulled by reason only that it was made in full or partial reliance on information provided under subsection (1) or (2) and it is subsequently shown that the information was factually incorrect but, in any such case, the Commissioner must reconsider the decision when so requested by the person affected adversely and the extent to which the decision should, or might, be varied as a result of the correction of those factual errors.

(4) Nothing done by an officer of an approved organisation or approved shooting club in good faith in accordance with this section gives rise to a criminal or civil action or remedy.

(5) In this section —

“approved organisation” means an organisation approved under section 11A(2)(b);

“approved shooting club” means a shooting club approved under section 11A(2)(a);

“officer”, in relation to an approved shooting club or approved organisation —

(a) that is a body corporate which is a corporation as defined in section 57A of the *Corporations Act 2001* of the Commonwealth, has the meaning given to that term in section 82A of that Act; and

(b) that is not such a body corporate, means any person (by whatever name called) who is concerned in or takes part in the management of the club or organisation,

but does not include an employee of the club or organisation unless the employee is involved in its management.

[Section 23BA inserted by No. 69 of 2004 s. 25.]

23C. Persons concerned in commission of offences

Without limiting section 7 of *The Criminal Code* or section 21A of this Act, a person who by act or omission is in any way directly or indirectly knowingly concerned in the commission of any offence against this Act is deemed to have committed that offence and is punishable accordingly.

[Section 23C inserted by No. 59 of 1996 s. 49.]

[23D. Repealed by No. 4 of 2004 s. 58.]

24. Powers of police

(1) A member of the Police Force may demand from any person in possession of a firearm or ammunition —

(a) the licence or permit under which he is authorised to have such possession; or

(b) evidence that he is authorised to have such possession otherwise than under a licence or permit or is exempt under section 8 from the requirement to hold a licence under this Act; and

(c) if the licence or permit, or the authorisation or exemption, is such that the person in possession of the firearm or ammunition should also be in possession of an Extract of Licence in respect of that licence, permit, authorisation, or exemption, that Extract of Licence,

and where no such licence or permit, or no relevant Extract of Licence, is produced or the officer is not satisfied that the possession is otherwise authorised he may seize and take possession of that firearm or ammunition.

s. 24

- (2) A member of the Police Force may seize and take possession of any firearm or ammunition that is in the possession of a person, whether or not the person is licensed or otherwise authorised to possess it if, in the opinion of the member of the Police Force —
- (a) possession of it by that person may result in harm being suffered by any person; or
- (b) that person is not at the time a fit and proper person to be in possession of it.
- (2a) For the purpose of exercising the powers given by subsection (2), a member of the Police Force may enter and search any premises on which, in the opinion of the member of the Police Force, there are reasonable grounds to suspect that any firearm or ammunition may be found in the possession of a person in the circumstances described in that subsection.
- (3) A member of the Police Force may require any person to permit him to examine a firearm in the possession of that person and if, in the opinion of the officer, any such firearm, the possession of which is not authorised under a Firearm Collector's Licence, is unsafe or unserviceable the officer may seize and take possession of it.
- (4) A member of the Police Force may —
- (a) question any person who is suspected on reasonable grounds of being able to furnish information or evidence relating to an offence or suspected offence under this Act;
- (b) stop, search, and detain —
- (i) any person who is suspected on reasonable grounds of having a firearm or ammunition in his possession without lawful excuse;
- (ii) any vehicle or conveyance where there are reasonable grounds to suspect that a firearm is kept without lawful excuse;
- (c) arrest any person who is suspected on reasonable grounds of committing an offence under this Act.

(5) Any firearm or ammunition seized and any person arrested under the provisions of subsection (1) shall be taken before a Justice to be dealt with according to law.

(6) A person who —

(a) refuses or fails without lawful excuse to answer any question put by a member of the Police Force under this Act;

(b) wilfully misleads or wilfully attempts to mislead any member of the Police Force in any particular likely to affect the discharge of his duty under this Act;

(c) refuses or fails to produce any licence or permit held by him under this Act, or any firearm in respect of which any such licence or permit is issued, or any Extract of Licence issued in respect of any such licence or permit or in respect of any exemption or other authorisation, within reasonable time after demand made by a member of the Police Force,

commits an offence and is liable on summary conviction to a fine of \$4 000.

(7) The powers given by this section to a member of the Police Force may be exercised without warrant except that the powers given by subsection (2a) can only be exercised without warrant if the member of the Police Force —

(a) is reasonably of the opinion that —

(i) there is an immediate threat of harm being suffered by a person; and

(ii) the delay that would be involved in obtaining a warrant would be likely to increase the risk or extent of such harm;

and

(b) gives the Commissioner, after the powers are exercised, a written report explaining the reason for that opinion.

s. 25

(8) The regulations may make provision as to —

(a) the giving of the report required by subsection (7)(b);

(b) the steps that are required to be taken after any firearm or ammunition has been seized and taken under subsection (2).

(9) For the purposes of this section the term “firearm” is deemed to include any silencer, within the meaning of section 17B(8), and any part of a firearm.

[Section 24 amended by No. 61 of 1976 s. 5; No. 54 of 1978 s. 4; No. 70 of 1987 s. 9; No. 90 of 1994 s. 5; No. 59 of 1996 s. 27, 42 and 50(2); No. 69 of 2004 s. 31.]

25. Constructive possession

(1) For the purposes of this section the term “firearm” is deemed to include a reference to ammunition therefor.

(2) Where any firearm is carried in parts by, or is otherwise in the possession of, 2 or more persons each and every one of those persons is deemed to be in possession of the firearm.

26. Search warrant

(1) Where a Justice is satisfied that there are reasonable grounds for suspecting that there is in any place any firearm or ammunition, or any document or other thing —

(a) with respect to which under any written law an offence, involving any firearm, ammunition, silencer or other contrivance used in conjunction with a firearm, has been or is suspected, on reasonable grounds, to have been committed; or

(b) that, there are reasonable grounds for believing —

(i) will afford evidence as to the commission of any such offence; or

(ii) is intended to be used for the purpose of committing any such offence,

the Justice may grant to a member of the Police Force a warrant to enter and search such place for any such firearm, ammunition or other thing, and to seize and take any such firearm, ammunition or other thing found before a Justice to be dealt with according to law.

- (2) Where a Justice is satisfied that there are reasonable grounds to suspect that any firearm or ammunition may be found on premises in the possession of a person in the circumstances described in section 24(2), the Justice may grant to a member of the Police Force a warrant to enter and search such premises for the purpose of exercising the powers given by that subsection.

[Section 26 inserted by No. 59 of 1996 s. 28.]

[27. Repealed by No. 78 of 1995 s. 46.]

27A. Disqualification by court imposing restraining order

- (1) A court making a violence restraining order against a person may order that, for a term set by the court or until a court orders to the contrary, the person be disqualified from holding any licence, permit, or approval, or any particular licence, permit, or approval, under this Act.

- (2) In subsection (1) —

“violence restraining order” has the same meaning as it has in section 11(4).

- (3) If an order under subsection (1) disqualifies a person from holding any licence, permit, or approval already held by the person when the disqualification order is made, the licence, permit, or approval held is, by force of this section, suspended and has no effect for so long as the disqualification order is in force.

- (4) The court is to ensure that details of the restraining order and the disqualification order are made known to the Commissioner as soon as is practicable.

[Section 27A inserted by No. 59 of 1996 s. 29; amended by No. 19 of 1997 s. 84.]

28. Court may order forfeiture on conviction of offender

On the conviction of a person for any offence whatever under any written law, the court may order that any firearm or ammunition, silencer or other thing to which this Act applies relating to the charge shall be forfeited to the Crown, but if it appears to the court that the firearm or ammunition, silencer or other thing to which this Act applies belongs to some other person, who is lawfully entitled to possession and is not guilty of any offence in relation thereto under this Act, the court shall order the firearm or ammunition, silencer or other thing to which this Act applies to be delivered to that other person.

[Section 28 amended by No. 59 of 1996 s. 30.]

29. Evidence

(1) In a prosecution for an offence against this Act an averment in the prosecution notice —

(a) that a person is, or at a particular time was or was not, the holder of a particular licence or permit, or a particular Extract of Licence, under this Act;

(b) that a person, place, organisation or thing is, or at a particular time was or was not, the subject of a particular approval granted by the Commissioner for a particular purpose under this Act;

(c) that a particular firearm or ammunition is of a particular calibre or kind;

(d) that a particular licence, permit or approval issued or granted under this Act was, at a particular time, subject, to a particular restriction, limitation or condition;

(e) that a person named in the prosecution notice is, or at a particular time was —

(i) a member of the Police Force acting with the authority of the Commissioner; or

(ii) a member of the Police Force to whom a particular function has or had been delegated by the Commissioner;

(f) that an authorisation or delegation granted by the Commissioner under this Act is, or at a particular time was, subject to a particular condition; or

(g) that particular premises were a place to which an approval or a requirement under this Act applies, or at a particular time applied,

is evidence of the matter averred.

(2) In any proceedings under this Act a document or writing purporting to be, or to be a copy of or extract from, any licence, permit, approval or other document issued under this Act, or provided or produced to the Commissioner or a member of the Police Force in connection with any application or request for information under this Act —

(a) is evidence which is admissible, and is to be accepted as to the matter contained in the document in the absence of proof to the contrary; and

(b) if it is proved to be an examined copy or extract, purporting to be signed and certified as such by or on behalf of the Commissioner, is for all purposes sufficient evidence of the matter contained in the original without producing the original.

[Section 29 amended by No. 59 of 1996 s. 31 and 43; No. 84 of 2004 s. 80.]

30. Ammunition sales

(1) The holder of a Dealer's Licence may dispose of ammunition to any person who represents himself as being the holder of a licence or permit under this Act entitling him to possess a firearm and ammunition or as lawfully possessing a firearm

under the provisions of section 8, and who the dealer believes on reasonable grounds to be entitled to possess a firearm suitable for use with that ammunition, or as being the holder of an Ammunition Collector's Licence.

(2) The holder of a Dealer's Licence may dispose of ammunition to any person apparently over the age of 18 years who represents himself as being, and whom the dealer believes to be, the agent of a person to whom the dealer would be authorised to dispose of ammunition under subsection (1).

(3) At the time of any transaction authorised under subsection (1) or subsection (2) the dealer shall make an entry in the prescribed manner in the record kept for the purposes of this section and shall cause verification of that transaction to be entered in, or affixed to, the record in the prescribed manner or obtain the signature thereto of the person to whom the ammunition is supplied.

(4) A person who makes a false representation for the purposes of obtaining ammunition for himself or another person, and any dealer who fails or neglects to comply with the requirements of this section commits an offence.

Penalty: \$4 000.

(5) If ammunition is disposed of by or on behalf of the holder of a Dealer's Licence and the person who disposes of it (in this subsection called "**the provider**") does not request the person receiving the ammunition (in this subsection called "**the receiver**") to produce —

(a) a relevant licence or permit, or evidence of —

(i) exemption by section 8; or

(ii) a relevant authorisation;

and

(b) an Extract of Licence in respect of that licence, permit, exemption, or authorisation,

and inspect either an Extract of Licence or something referred to in paragraph (a), it is to be presumed in proceedings for an

offence against this Act, upon proof that the provider disposed of the ammunition to the receiver, that there were no reasonable grounds to believe that the receiver was a person to whom the dealer would be authorised to dispose of that ammunition under subsection (1), unless the contrary is shown.

[Section 30 amended by No. 54 of 1978 s. 5; No. 70 of 1987 s. 10; No. 59 of 1996 s. 32, 44 and 50(1); No. 69 of 2004 s. 31.]

30A. Sale and disposal of firearms

(1) A person who, except as described in subsection (2), advertises that a firearm is for sale is required to ensure that the advertisement includes details of the type, make, serial number, and calibre of the firearm.

(2) The holder of a Dealer's Licence or a Manufacturer's Licence who advertises for sale a firearm to which the licence relates is required to ensure that the advertisement includes —

(a) the licence number; and

(b) either the business name or such other details as are sufficient to identify the holder of the licence.

(3) A person who sends a firearm by post to a destination that is outside the State —

(a) is required to address the firearm to premises at which the business of a dealer may lawfully be carried on; and

(b) is not to send ammunition in the package containing the firearm.

Penalty: \$2 000.

[Section 30A inserted by No. 59 of 1996 s. 33; amended by No. 69 of 2004 s. 31.]

30B. Loss, theft, destruction, or disposal out of the State, to be reported

(1) Where any person entitled under an Act of the State or the Commonwealth to possess a firearm or any ammunition —

s. 31

(a) loses the firearm or ammunition, whether or not by theft;
or

(b) becomes aware that the firearm has been destroyed,
otherwise than by the authority of the Commissioner
under this Act,

that person is required, as soon as is practicable, to report the
loss or destruction to the Commissioner.

(2) Where any person entitled under this Act to possess a firearm
disposes of that firearm —

(a) in a place outside the State; or

(b) to a destination outside the State,

that person is required, as soon as is practicable, to report to the
Commissioner the details of the firearm concerned; the manner
and date of its disposal; the name, address, and, in the case of a
person other than a dealer in firearms, the birth date of any
person taking possession of the firearm; and the number, expiry
date and nature of any licence, permit or other authorisation to
possess a firearm held by that person.

Penalty: \$2 000.

[Section 30B inserted by No. 59 of 1996 s. 33; amended by
No. 69 of 2004 s. 31.]

31. Records

(1) The Commissioner shall cause to be compiled and maintained in
the prescribed manner a register or registers of all applications
made for a licence, permit or approval under this Act specifying
whether or not the application was refused, the reasons for any
refusal, and such other particulars as are prescribed.

(2) The holder of a Corporate Licence, a Dealer's Licence, a
Repairer's Licence, a Manufacturer's Licence or an
Ammunition Collector's Licence shall compile, maintain and
furnish records in such manner as is prescribed, all entries
therein shall be made at the time of the transaction to which they

relate or, in the case of a transaction involving the acquisition of ammunition by a person who is entitled to acquire it as the holder of an Ammunition Collector's Licence, as soon as may be practicable thereafter, and any such record shall be produced for inspection by any member of the Police Force on his request.

(2a) A person who compiles, maintains, furnishes or produces a record under section 31(2) knowing it to be incorrect or misleading commits an offence.

(3) A member of the Police Force shall be permitted to check the stock of firearms and ammunition on any premises in respect of which records are required to be kept under subsection (2), or ammunition held by a person who is the holder of an Ammunition Collector's Licence, and shall be provided with reasonable facilities for examining such firearms or ammunition.

(4) A person who contravenes subsection (2), (2a), or (3) commits an offence.

Penalty: \$4 000.

[Section 31 amended by No. 59 of 1996 s. 34; No. 69 of 2004 s. 27 and 31.]

32. Safe keeping by traders

The holder of a Dealer's Licence, a Repairer's Licence, or a Manufacturer's Licence shall keep all firearms and ammunition in a strongroom or otherwise in safe keeping, securely fastened during any period when the premises are not open for trade.

Penalty:

(a) for a first offence, a fine of \$4 000;

(b) for a subsequent offence, imprisonment for 2 years or a fine of \$8 000.

[Section 32 amended by No. 59 of 1996 s. 35; No. 69 of 2004 s. 28.]

33. Disposal of firearms

- (1) Where any firearm or ammunition is in the possession of a member of the Police Force if —
- (a) the owner cannot be found; or
 - (b) the owner, not being the holder of a licence relating thereto or otherwise lawfully entitled to possession of it, dies; or
 - (c) the owner, not being the holder of a licence relating thereto or otherwise lawfully entitled to possession of it, refuses or fails lawfully to dispose of it within a period of 3 months after notice in writing from the Commissioner, or within such longer period as the Commissioner may by the notice allow, requiring him to do so,
- the Commissioner may dispose of that firearm or ammunition in accordance with the regulations by destruction, sale or otherwise.
- (2) Where a firearm or ammunition is sold by the Commissioner the net proceeds of the sale shall be paid to the owner, if he is known, but if the owner is not known or if after reasonable inquiry the Commissioner is of the opinion that the owner although known can not be contacted the net proceeds shall be credited to the Consolidated Fund.
- (3) On payment of the prescribed fee the Commissioner may, at the request of the owner and in his absolute discretion, accept any firearm or ammunition for safe custody, subject to any prescribed conditions, and
- (a) may sue for and recover in any court of competent jurisdiction; or
 - (b) where the fees have not been paid for a period of more than 2 years, may recover from the proceeds of a sale of that firearm or ammunition in the prescribed manner,

any fees due and owing in respect of that safe custody and any costs or expenses incurred in effecting such recovery.

[Section 33 amended by No. 6 of 1993 s. 11; No. 73 of 1994 s. 4; No. 49 of 1996 s. 64; No. 59 of 1996 s. 36.]

34. Regulations

(1) The Governor may make regulations in regard to any matter or for any purpose for which regulations are prescribed or contemplated by this Act, and may make all such other regulations as may in his opinion be necessary or expedient for giving effect to the provisions of this Act, and for the due administration thereof.

(2) Without limiting the general power conferred by subsection (1), the Governor may make regulations for or with respect to all or any of the following matters —

(a) the application for and the issue, grant, renewal, cancellation or revocation of licences, permits and approvals under this Act;

(b) the restrictions, limitations and conditions that may be imposed on any licence, permit or approval;

[(c) deleted]

(d) the form of registers and records to be kept or furnished under this Act and the particulars to be entered therein;

(e) the forms to be used for the purposes of this Act, and the manner of, and the time for, their completion, including a requirement that information supplied be verified by statutory declaration;

(ea) enabling the Commissioner to require a holder of a Dealer's Licence to provide to the Commissioner information about any other persons who are involved in the management of, or have a financial interest in, any business conducted under the licence;

(f) the classification of firearms and ammunition for the purposes of this Act;

s. 34

- (g) making provision for the safe custody and control of firearms and ammunition by persons entitled to possession and for restricting the amount of ammunition that may be possessed;
- (ga) the sending or conveyance of firearms or ammunition;
- (h) the construction and conduct of shooting galleries and ranges;
- (i) regulating the conduct of guided hunting tours; and
- (j) any other purpose that the Governor deems necessary for safeguarding the public and the public interest in relation to firearms and ammunition.

(3) Regulations made under this Act may —

- (a) be of general or limited application, according to time, place or circumstance;
- (b) prescribe fees to be paid in relation to the issue, grant, variation or renewal of licences, permits and approvals, the fees that are payable in relation to other matters under this Act, the persons liable, and the method of recovery of amounts not duly paid either by the disposal of the firearms or ammunition to which they relate or otherwise;
- (c) impose upon any person or class of person a discretionary authority;
- (d) provide penalties, not exceeding \$2 000, for the contravention of any regulation.

[Section 34 amended by No. 54 of 1978 s. 6; No. 70 of 1987 s. 11; No. 59 of 1996 s. 37 and 50(1); No. 55 of 2004 s. 370; No. 69 of 2004 s. 29 and 31.]

[Schedule 1 omitted under the Reprints Act 1984 s. 7(4)(f).]

[Schedule 2 repealed by No. 69 of 2004 s. 30.]

[Schedule 3 repealed by No. 55 of 2004 s. 371.]

Notes

- ¹ This is a compilation of the *Firearms Contaminated Sites Act 1973* and includes the amendments made by the other written laws referred to in the 2003. The following table^{1a}. The table also contains information about any reprint that Act^{1a}.

Compilation table

Short title	Number and year	Assent	Commencement
<i>Firearms Act 1973</i>	36 of 1973	18 Oct 1973	1 Jul 1974 (see s. 2 and <i>Gazette</i> 29 Mar 1974 p. 1027)
<i>Firearms Act Amendment Act 1976</i>	61 of 1976	16 Sep 1976	16 Sep 1976
<i>Firearms Act Amendment Act 1978</i>	54 of 1978	6 Sep 1978	6 Sep 1978
<i>Firearms Amendment Act 1980</i>	35 of 1980	5 Nov 1980	24 Jul 1981 (see s. 2 and <i>Gazette</i> 24 Jul 1981 p. 3060)
Reprint of the <i>Firearms Act 1973</i> approved 22 Apr 1983 (includes amendments listed above)			
<i>Firearms Amendment Act 1983</i>	3 of 1983	1 Aug 1983	1 Aug 1983
<i>Acts Amendment (Financial Administration and Audit) Act 1985</i> s. 3 ³	98 of 1985	4 Dec 1985	1 Jul 1986 (see s. 2 and <i>Gazette</i> 30 Jun 1986 p. 2255)
<i>Firearms Amendment Act 1987</i>	70 of 1987	22 Nov 1987	1 Oct 1989 (see s. 2 and <i>Gazette</i> 29 Sep 1989 p. 3665)
<i>Financial Administration Legislation Amendment Act 1993</i> s. 11	6 of 1993	27 Aug 1993	1 Jul 1993 (see s. 2(1))
<i>Statutes (Repeals and Minor Amendments) Act 1994</i> s. 4	73 of 1994	9 Dec 1994	9 Dec 1994 (see s. 2)
<i>Firearms Amendment Act 1994</i>	90 of 1994	5 Jan 1995	5 Jan 1995 (see s. 2)
<i>Sentencing (Consequential Provisions) Act 1995</i> Pt. 33	78 of 1995	16 Jan 1996	4 Nov 1996 (see s. 2 and <i>Gazette</i> 25 Oct 1996 p. 5632)

Contaminated Sites Act 1973 2003**Part 1****Preliminary****s. 34**

Short title	Number and year	Assent	Commencement
<u><i>Security and Related Activities (Control) Act 1996 s. 96</i></u>	<u>27 of 1996</u>	<u>22 Jul 1996</u>	<u>1 Apr 1997 (see s. 2 and Gazette 27 Mar 1997 p. 1693)</u>
<u><i>Financial Legislation Amendment Act 1996 s. 64</i></u>	<u>49 of 1996</u>	<u>25 Oct 1996</u>	<u>25 Oct 1996 (see s. 2(1))</u>
<u><i>Firearms Amendment Act 1996⁴</i></u>	<u>59 of 1996</u>	<u>11 Nov 1996</u>	<u>Act other than s. 16: 6 Dec 1996 (see s. 3(1) and Gazette 6 Dec 1996 p. 6699); s. 16: 1 Apr 1997 (see s. 3(2) and Gazette 27 Mar 1997 p. 1693)</u>
<u>Reprint of the Firearms Act 1973 as at 22 Jan 1997</u> (includes amendments listed above except those in the <i>Security and Related Activities (Control) Act 1996</i> and the <i>Firearms Amendment Act 1996 s. 16</i>)			
<u><i>Restraining Orders Act 1997 s. 84</i></u>	<u>19 of 1997</u>	<u>28 Aug 1997</u>	<u>15 Sep 1997 (see s. 2 and Gazette 12 Sep 1997 p. 5149)</u>
<u><i>Weapons Act 1999 s. 21</i></u>	<u>18 of 1999</u>	<u>16 Jun 1999</u>	<u>1 Sep 1999 (see s. 2(1) and Gazette 31 Aug 1999 p. 4235)</u>
<u>Reprint of the Firearms Act 1973 as at 11 Aug 2000</u> (includes amendments listed above)			
<u><i>Corporations (Consequential Amendments) Act 2001 s. 220</i></u>	<u>10 of 2001</u>	<u>28 Jun 2001</u>	<u>15 Jul 2001 (see s. 2 and Gazette 29 Jun 2001 p. 3257 and Cwlth Gazette 13 Jul 2001 No. S285)</u>
<u><i>Acts Amendment (Equality of Status) Contaminated Sites Act 2003 Pt. 21 s. 4 and 2</i></u>	<u>2860 of 2003</u>	<u>22 May 2003</u>	<u>1 Jul 2003 (see s. 2 and Gazette 30 Jun 2003 p. 2579) 7 Nov 2003</u>
<u><i>Sentencing Legislation Amendment and Repeal Act 2003 s. 62</i></u>	<u>50 of 2003</u>	<u>9 Jul 2003</u>	<u>15 May 2004 (see s. 2 and Gazette 14 May 2004 p. 1445)</u>
<u><i>Criminal Code Amendment Act 2004 s. 58</i></u>	<u>4 of 2004</u>	<u>23 Apr 2004</u>	<u>21 May 2004 (see s. 2)</u>
<u><i>Courts Legislation Amendment and Repeal Act 2004 s. 141</i></u>	<u>59 of 2004</u>	<u>23 Nov 2004</u>	<u>1 May 2005 (see s. 2 and Gazette 31 Dec 2004 p. 7128)</u>
<u><i>State Administrative Tribunal (Conferral of Jurisdiction) Amendment and Repeal Act 2004 Pt. 2 Div. 49^{5, 6}</i></u>	<u>55 of 2004</u>	<u>24 Nov 2004</u>	<u>1 Jan 2005 (see s. 2 and Gazette 31 Dec 2004 p. 7130)</u>

Short title	Number and year	Assent	Commencement
<i>Firearms Amendment Act 2004</i>^{7,8}	69 of 2004	8 Dec 2004	s. 13 and 21: 8 Dec 2004 (see s. 2(3)); Act other than s. 13, 17, 21, 22(4)(a) and 26: 1 Jan 2005 (see s. 2 and <i>Gazette</i> 24 Dec 2004 p. 6265); s. 17: 1 Feb 2005 (see s. 2 and <i>Gazette</i> 24 Dec 2004 p. 6265)
<i>Criminal Procedure and Appeals (Consequential and Other Provisions) Act 2004</i> s. 80	84 of 2004	16 Dec 2004	2 May 2005 (see s. 2 and <i>Gazette</i> 31 Dec 2004 p. 7129 (correction in <i>Gazette</i> 7 Jan 2005 p. 53))
Reprint 4: The Firearms Act 1973 as at 1 Jul 2005 (includes amendments listed above)			

^{1a} On the date as at which this compilation was prepared, provisions referred to in the following table had not come into operation and were therefore not included in this compilation. -For the text of the provisions see the endnotes referred to in the table.

Provisions that have not come into operation

Short title	Number and year	Assent	Commencement
<i>Courts Legislation Amendment and Repeal Contaminated Sites Act 2004</i> s. 142⁹ 3-10, Pt. 2-10 and Sch. 1-3²	59 of 2004 60 of 2003 (as amended by No. 59 of 2004 s. 141; No. 84 of 2004 s. 80; No. 38 of 2005 s. 15 which gives effect to Sch. 2 and No. 40 of 2005 s. 4-13)	237 Nov 2004 2003	To be proclaimed (see s. 2)
<i>Psychologists Act 2005</i> s. 108¹¹	28 of 2005	12 Dec 2005	To be proclaimed (see s. 2)

s. 31

Nurses and Midwives Act 2006 s. 114¹² 50 of 2006 6 Oct 2006 To be proclaimed (see s. 2)

Criminal Investigation (Consequential Provisions) Act 2006 s. 73¹³ 59 of 2006 16 Nov 2006 To be proclaimed (see s. 2)

² ~~The provision in this Act repealing that Act has been omitted under On the Reprints Act 1984 s. 7(4)(f).~~

³ ~~The Acts Amendment (Financial Administration and Audit) Act 1985 s. 4 is a savings and transitional provision that is of no further effect.~~

⁴ ~~The Firearms Amendment Act 1996 s. 9(2), 10(2), 11(2), 15(2), 39 and 53 are transitional, savings and related provisions that are of no further effect.~~

⁵ ~~The State Administrative Tribunal (Conferral of Jurisdiction) Act 2004 Pt. 5, the State Administrative Tribunal Regulations 2004 r. 28 and 42 deal with certain transitional issues some of which may be relevant for this Act.~~

⁶ ~~The State Administrative Tribunal Regulations 2004 r. 31 reads Contaminated Sites Amendment Act 2005 s. 4 (3) had not come into operation. They read as follows:~~

“

31. Firearms Act 1973

3. Interpretation

- (1) In this ~~regulation~~ Act, unless the contrary intention appears —
- **“commencement day”** includes an omission and extends to a series of acts or omissions;
 - **“affected site”** means ~~the day~~ a site on which contamination is caused, or contributed to —
 - (a) by contamination; or
 - (b) by a substance;
 - which has migrated to that site from another site (the **“source site”**);
 - **“auditor”** means a person accredited under section 69 as a contaminated sites auditor;

- ~~“binding”~~, in relation to a notice under Part 4, has the *State Administrative Tribunal (Conferral of Jurisdiction) Amendment and Repeal* meaning given by section 47;
- ~~“CEO”~~ means the chief executive officer of the Department;
- ~~“CEO of the Health Department”~~ means the chief executive officer of the department principally assisting the Minister responsible for the administration of the *Health Legislation Administration Act 2004* 1984;
- ~~“certificate of contamination audit”~~ means a certificate referred to in section 63;
- ~~“classify”~~, in respect of a site, means to classify the site under Part 2 Division 49 comes into operation;

- (2) If a matter partly or fully heard before the commencement day by a firearms appeals tribunal, as defined in the *Firearms Act 1973* section 22(1) immediately before the commencement day, is transferred to the Tribunal under the Act section 167(4)(b), despite the Act section 39, a person who is a legal practitioner is not to appear as an advocate for, or represent, a party in proceedings before the Tribunal relating to the matter.

”.

⁷ The *Firearms Amendment Act 2004* s. 15(3) reads as follows:

“

- (3) The amendments made by this section do not affect the validity of a licence or permit that a person already holds under the *Firearms Act 1973* on the day on which this section comes into operation, but on or after that day the grant, issue, or renewal of a licence or permit has to be in accordance with that Act as amended by this section.

”.

- ⁸ The amendments in the *Firearms Amendment Act 2004* s. 22(4)(a) and 26—~~“clean up notice”~~ means a notice referred to in section 50;
- ~~“committee”~~ means the Contaminated Sites Committee established under section 33;
 - ~~“contaminated”~~ has the meaning given by section 4;
 - ~~“database”~~ means the contaminated sites database kept under section 19;
 - ~~“decision as to responsibility for remediation”~~ has the meaning given by section 35;
 - ~~“EP Act”~~ means the *Environmental Protection Act 1986*;

s. 3

- **“exemption certificate”** means a certificate referred to in section 65;
- **“guidelines”** means the guidelines made under section 97;
- **“hazard abatement notice”** means a notice referred to in section 51;
- **“insolvent”** means —
 - (a) in the case of a natural person — a person who is an insolvent under administration within the meaning of the *Corporations Act 2001* of the Commonwealth; and
 - (b) in the case of a body corporate — a body corporate that is an externally administered body corporate within the meaning of the *Corporations Act 2001* of the Commonwealth;
- **“investigation notice”** means a notice referred to in section 49;
- **“management plan”** means a plan for the investigation or remediation, or both, of a site;
- **“mandatory auditor’s report”** means a report by an auditor that is required for the purposes of this Act or the EP Act;
- **“occupier”**, in relation to land, means a person in occupation or control of the land, whether or not the person also owns the land;
- **“orphan site”** has the meaning given by section 32(1);
- **“owner”** has the meaning given by section 5;
- **“person responsible”**, in respect of a site classified as *contaminated — remediation required*, means a person responsible for remediation of the site in accordance with Part 3;
- **“records”** means the information and documents to be kept under section 20;
- **“remediation”** in respect of a site that is contaminated includes —
 - (a) the attempted restoration of the site to the state it was in before the contamination occurred;
 - (b) the restriction, or prohibition, of access to, or use of, the site;
 - (c) the removal, destruction, reduction, containment or dispersal of the substance causing the contamination, or the reduction or mitigation of the effect of the substance;

~~— (d) — the protection of human health, the environment or any environmental value from the contamination;~~

~~— “site” means an area of land and includes —~~

~~— (a) — underground water under that land; and~~

~~— (b) — surface water on that land;~~

~~— “source site” means a site —~~

~~— (a) — on which contamination; or~~

~~— (b) — on which a substance,~~

~~— has originated and from which it has migrated to another site (the “affected site”) causing, or contributing to, contamination on that other site.~~

~~— (2) — A word or expression used in this Act has the same meaning as it has in the EP Act unless —~~

~~— (a) — this Act gives it another meaning; or~~

~~— (b) — the contrary intention appears in some other way.~~

~~— [Section 3 amended by No. 40 of 2005 s. 4.]~~

4. ~~Meaning of “contaminated”~~

~~— (1) — In this Act —~~

~~— “contaminated”, in relation to land, water or a site, means having a substance present in or on that land, water or site at above background concentrations that presents, or has the potential to present, a risk of harm to human health, the environment or any environmental value.~~

~~— (2) — However, land, water or a site, or land, water or a site of a prescribed class or description, is not contaminated where the regulations so provide.~~

5. ~~Meaning of “owner”~~

~~— (1) — In this Act —~~

~~— “owner” means —~~

~~— (a) — in relation to freehold land —~~

~~— (i) — a holder of the freehold; and~~

~~— (ii) — a mortgagee in possession;~~

~~— and~~

~~— (b) — in relation to Crown land —~~

~~— (i) — the care, control and management of which has been placed in a management body, that management body;~~

S. 6

- ~~— (ii) — which is reserved, set apart or vested for, or dedicated to, the purposes of another written law, the person who is responsible for the administration of that Crown land while it is so reserved, set apart, vested or dedicated;~~
- ~~— (iii) — which comprises all, or part, of an orphan site taken in accordance with section 32(4), the Minister; and~~
- ~~— (iv) — other than land referred to in subparagraph (i), (ii) or (iii), the Minister for Lands, as referred to in section 7(1) of the *Land Administration Act 1997*.~~

~~— (2) — In this section —~~

~~— “Crown land” and “management body” have not been proclaimed the same respective meanings as in the *Land Administration Act 1997*.~~

6. — ~~Meaning of “owner, occupier, mortgagee or lessee of a site”~~

~~— In this Act, a reference to an owner, occupier, mortgagee or lessee of a site is a reference to each person who is an owner, occupier, mortgagee or lessee, as is relevant, of land that comprises all, or part, of the site.~~

7. — ~~State bound~~

~~— This Act binds the State.~~

8. — ~~Object and will principles of Act~~

~~— The object of this Act is to protect human health, the environment and environmental values by providing for the identification, recording, management and remediation of contaminated sites in the State, having regard to the principles in the Table to this section —~~

Table

1. — ~~The polluter pays principle~~

~~— Those who generate pollution and waste should bear the cost of containment, avoidance or abatement.~~

2. — ~~The principle of full life cycle costs~~

~~— The users of goods and services should pay prices based on the full life cycle costs of providing goods and services, including the use of natural resources and assets and the ultimate disposal of any wastes.~~

~~3. The principle of waste minimisation~~~~All reasonable and practicable measures should be taken to minimise the generation of waste and its discharge into the environment.~~~~9. Effect on other laws~~

- ~~(1) The provisions of this Act are complementary to and not in derogation of the provisions of any other law of the State.~~
- ~~(2) Without limiting the generality of subsection (1), this Act is not to be because the amendments they propose cannot operate construed so as to prevent any person from being prosecuted under any other enactment for an offence punishable by this Act, or from being liable under any other law of the State to any other or higher penalty or punishment than is provided for the offence by this Act.~~
- ~~(3) Nothing in this section affects the operation of section 11 of the Sentencing Act 1995.~~
- ~~(4) Nothing in this Act affects any right a person has at law to prevent, control or abate contamination or to obtain damages.~~

~~10. Exemptions from Act~~

- ~~(1) The Minister may, with the approval of the Governor, declare by order that all or any of the provisions of this Act specified in the order do not apply in respect of —~~
 - ~~(a) any specified area of the State;~~
 - ~~(b) any specified premises, act or thing; or~~
 - ~~(c) all premises, acts or things comprised in a specified class or situated in a specified area of the State;~~~~if, in the opinion of the Minister —~~
 - ~~(d) it is in the general interest of the public to do so; and~~
 - ~~(e) no significant risk to human health, the environment or any environmental value will fail to be dealt with under this Act as a result of the order.~~
- ~~(2) Before making an order the Minister —~~
 - ~~(a) is to consult with the Minister responsible for the administration of the Health Legislation Administration Act 1984 and, if possible, reach agreement on any proposed aspect of the order relating to human health; and~~
 - ~~(b) may seek comments from any public authority or any person which or who has, in the opinion of the~~

s. 10

Minister, a direct interest in the proposed subject matter of the order.

- ~~— (3) The Minister may —
 - ~~— (a) specify any conditions to which the order is subject; and~~
 - ~~— (b) require specified persons or members of specified classes of persons to comply with any condition to which the order is subject.~~~~
- ~~— (4) The Minister is to fix the day on which an order made under subsection (1) comes into operation by notice to be published in the *Gazette*, unless the order is disallowed under section 42(2) of the *Interpretation Act 1984* as applied by subsection (12).~~
- ~~— (5) The day fixed under subsection (4) is to be after there is no longer any possibility of the order ceasing to have effect under section 42(2) of the *Interpretation Act 1984* as applied by subsection (12).~~
- ~~— (6) The Minister is to cause to be published in the *Gazette* in which an order is published a notice, for public information, setting out reasons for the making of the order.~~
- ~~— (7) Despite any other provisions of this Act, an order has effect according to its tenor subject to subsection (8).~~
- ~~— (8) An order ceases to have effect if —
 - ~~— (a) a condition to which it is subject ceases to exist or is contravened; or~~
 - ~~— (b) it is revoked under subsection (9).~~~~
- ~~— (9) Subject to subsection (10), the Minister may, with the approval of the Governor, by order revoke an order made under subsection (1).~~
- ~~— (10) Before revoking an order the Minister is to publish in the *Gazette*, at least 14 days before the day on which the Minister revokes the order, notice of the intention to revoke the order so that persons likely to be aggrieved by that revocation may make representations in writing to the Minister.~~
- ~~— (11) A person must not contravene a condition to which an order is subject.
— Penalty: \$250 000, and a daily penalty of \$50 000.~~
- ~~— (12) Section 42 of the *Interpretation Act 1984* applies to an order as if that order were regulations within the meaning of that section, except that the reference in section 42(1) of that Act to~~

~~6 sitting days is for the purposes of this section to be construed as a reference to 9 sitting days.~~

~~—(13)— Nothing in this section affects or prevents the application of section 43(8)(d) of the *Interpretation Act 1984* to regulations made under this Act.~~

~~—(14)— In this section —
—“specified” means specified in the order.~~

~~Part 2 — Reporting, classifying and recording sites~~

~~Division 1 — Reporting of sites~~

~~11. — Reporting of known, or suspected, contaminated sites~~

~~—(1)— A person may report to the CEO any site that the person knows, or suspects, is contaminated.~~

~~—(2)— A report is to —
—(a)— be in the prescribed form;
—(b)— contain a description of the location and extent of the site sufficient to identify it; and
—(c)— summarise the information on which the person bases their knowledge or suspicion that the site is contaminated.~~

~~—(3)— Except as provided in subsection (5), a person referred to in subsection (4) must report to the CEO any site that the person —~~

~~—(a)— knows is contaminated, within 21 days after the day on which the person first knew that the site was contaminated, or such later period as the CEO approves in writing before the expiry of that 21 days; or~~

~~—(b)— suspects is contaminated, as soon as it is reasonably practicable to do so.~~

~~— Penalty: \$250 000, and a daily penalty of \$50 000.~~

~~—(4)— The following persons have a duty to report a site under subsection (3) —~~

~~—(a)— an owner or occupier of the site;
—(b)— a person who knows, or suspects, that he or she has caused, or contributed to, the contamination;
—(c)— an auditor engaged to provide a report that is required for the purposes of this Act in respect of the site.~~

Contaminated Sites Act 1973 2003

Part 2 Reporting, classifying and recording sites

Division 1 Reporting of sites

s. 12

- ~~— (5) — It is a defence to a charge of an offence under subsection (3) for the person to prove that the person knew or believed on reasonable grounds that —~~
 - ~~— (a) — the site had already been reported to the CEO;~~
 - ~~— (b) — the contamination, or suspected contamination, was caused by a discharge of waste of which the CEO had already been notified under section 72 of the EP Act; or~~
 - ~~— (c) — the site was, or was to be, reported under a programme approved by the CEO under section 12, or in a programme submitted for that approval and approval has not been refused.~~
- ~~— (6) — A person does not contravene subsection (3), even though he or she does not comply with that provision, during the period of 6 months after the commencement of this Act.~~
- ~~— (7) — The CEO is to ensure that each owner and occupier of a site in relation to which the CEO has received a report is informed in writing within 14 days after the day on which the report was received that a report has been made under this section or that reasonable attempts have been made to do so.~~
- ~~— (8) — Subsection (7) does not apply in respect of an owner or occupier who made the report.~~
- ~~— (9) — A person must not report a site —~~
 - ~~— (a) — maliciously; and~~
 - ~~— (b) — without reasonable grounds to believe or suspect that the site was contaminated.~~
- ~~— Penalty: \$250 000.~~

~~12. — Programme for reporting sites~~

- ~~— (1) — The CEO may approve a programme for the identification and reporting of sites described in the programme if the CEO is of the opinion that it is necessary or desirable to do so due to the number of sites or the complexity of adequately identifying sites or the location and extent of sites.~~
- ~~— (2) — A programme may be approved under subsection (1) only if the programme is submitted to the CEO for approval within 6 months after the commencement of this Act.~~
- ~~— (3) — A programme submitted to the CEO is to specify —~~
 - ~~— (a) — the sites or types of sites to be identified and reported under the programme;~~

- ~~— (b) the methods to be used to identify the sites to be reported under the programme;~~
- ~~— (c) the timetable proposed for the identification and reporting of sites under the programme;~~
- ~~— (d) the time within which the programme is to be completed; and~~
- ~~— (e) reasons why it is considered necessary or desirable for the sites to be identified and reported under this section.~~
- ~~— (4) The CEO may, by written notice given to a person who has had a programme approved under subsection (1), amend the programme subject to subsection (5).~~
- ~~— (5) A programme is not to be amended so as to —~~
 - ~~— (a) reduce the time within which the programme is to be completed; or~~
 - ~~— (b) increase the extent of the identification or reporting to be carried out under the programme,~~
- ~~— unless the person who submitted the programme for approval has agreed in writing to the amendment.~~
- ~~— (6) A person who has had a programme for the reporting of sites approved under subsection (1) must ensure that sites are identified and reported —~~
 - ~~— (a) in accordance with the programme; and~~
 - ~~— (b) within the time specified in the programme for the completion of the programme.~~
- ~~— Penalty: \$250 000, and a daily penalty of \$50 000.~~
- ~~— (7) In subsection (6)(a) —~~
 - ~~— “programme” includes, where relevant, a programme as amended under this section.~~

Division 2 — Classification of sites

13. — CEO to classify sites

- ~~— (1) Subject to this section, the CEO is to classify a site when required to do so under this Act, and may classify a site at any other time.~~
- ~~— (2) The CEO may classify a site more than once and a site is classified as of the classification most recently conferred on it.~~
- ~~— (3) The CEO is to classify a site as of the classification set out in the first column of Schedule 1 which corresponds, in the CEO’s opinion, on reasonable grounds, to the criterion that~~

Contaminated Sites Act 1973 2003

Part 2 Reporting, classifying and recording sites

Division 2 Classification of sites

s. 14

applies to the site set out opposite the classification in the second column of that Schedule:

- ~~— (4) In classifying a site the CEO is to take into account —~~
 - ~~— (a) any relevant guidelines;~~
 - ~~— (b) currently accepted industrial standards; and~~
 - ~~— (c) any other information the CEO considers relevant,~~~~— with respect to the identification, assessment, classification or management of contamination.~~
- ~~— (5) Before classifying a site the CEO —~~
 - ~~— (a) is to consult with the CEO of the Health Department and, if possible, reach agreement on the classification of the site; and~~
 - ~~— (b) may seek comments from any public authority or any person which or who has, in the opinion of the CEO, a direct interest in the classification of the site.~~
- ~~— (6) If the CEO and the CEO of the Health Department cannot agree on the classification of a site the Minister and the Minister responsible for the administration of the *Health Legislation Administration Act 1984* are to appoint a person to classify the site.~~

~~14. Classification of reported sites~~

- ~~— (1) After receiving a report under section 11 or 12 the CEO is to inquire into the report and unless the site is already classified is to classify the site —~~
 - ~~— (a) within 45 days after receiving that report; or~~
 - ~~— (b) if, in the opinion of the CEO, there are particular circumstances which make it difficult to classify the site within that time, within such further time as the CEO decides is necessary to classify the site.~~
- ~~— (2) The CEO is to cause written notice of a decision under subsection (1)(b) to be given, or to ensure that reasonable attempts have been made to do so —~~
 - ~~— (a) to the same persons as are to be given notice of the classification of the site under section 15(1)(a) to (f); and~~
 - ~~— (b) within 45 days after receiving the relevant report under section 11 or 12.~~

~~15. Notice of classification is to be given~~

- ~~— (1) As soon as is practicable after a site is classified, and in any event not later than 10 days after the site is classified, the CEO~~

~~is to cause written notice of the classification of the site to be given, or to ensure that reasonable attempts have been made to do so, to —~~

- ~~— (a) — each owner of the site;~~
- ~~— (b) — an occupier of the site;~~
- ~~— (c) — any relevant public authority;~~
- ~~— (d) — any other person whom, in the opinion of the CEO, there is particular reason to notify;~~
- ~~— (e) — a person who made the relevant report under section 11 or 12; and~~
- ~~— (f) — in respect of a site classified as *contaminated — remediation required*, each person who, in the opinion of the CEO, may be a person responsible for remediation of the site.~~

~~— (2) — Subject to subsection (3), notice of a classification may be given by way of —~~

- ~~— (a) — a notice under Part 4;~~
- ~~— (b) — a certificate of contamination audit, in respect of a classification referred to in subsection (3); or~~
- ~~— (c) — any other written notice.~~

~~— (3) — Written notice of a classification may be given by way of a certificate of contamination audit only where a certificate has been requested under section 62 and in respect of the following classifications —~~

- ~~— (a) — *not contaminated — unrestricted use*;~~
- ~~— (b) — *contaminated — restricted use*;~~
- ~~— (c) — *remediated for restricted use*;~~
- ~~— (d) — *contaminated — remediation required*; or~~
- ~~— (e) — *decontaminated*.~~

~~— (4) — Notice of the classification of a site as —~~

- ~~— (a) — *contaminated — restricted use*;~~
- ~~— (b) — *remediated for restricted use*; or~~
- ~~— (c) — *contaminated — remediation required*;~~

~~is to specify the restrictions on the use of the site.~~

~~— (5) — Notice of the classification of a site is to —~~

- ~~— (a) — state that the site has been classified under this Act;~~
- ~~— (b) — state the category of classification of the site;~~
- ~~— (c) — contain a description of the location and extent of the site sufficient to identify it;~~

Contaminated Sites Act 1973 2003

Part 2 Reporting, classifying and recording sites

Division 3 Appeals against classification

s. 16

- ~~— (d) — provide brief reasons for the classification of the site, with reference to the guidelines and any standards or other information taken into account under section 13(4);~~
- ~~— (e) — contain details of any appeal available under this Act in respect of the classification of the site, or the inclusion of land in the site;~~
- ~~— (f) — briefly and accurately summarise the effects of section 68 if the site is classified as —
 - ~~— (i) — contaminated — remediation required;~~
 - ~~— (ii) — contaminated — restricted use; or~~
 - ~~— (iii) — remediated for restricted use.~~~~

16. ~~Site classified as possibly contaminated — investigation required~~

- ~~— A site classified as possibly contaminated — investigation required is to remain so classified until classified as —
 - ~~— (a) — contaminated — remediation required;~~
 - ~~— (b) — contaminated — restricted use;~~
 - ~~— (c) — remediated for restricted use;~~
 - ~~— (d) — not contaminated — unrestricted use; or~~
 - ~~— (e) — decontaminated.~~~~

17. ~~Database and records to be adjusted~~

- ~~— As soon as is practicable after classifying a site, and in any event not later than 10 days after doing so, the CEO is to ensure that the database and records are adjusted to reflect the classification.~~

Division 3 — Appeals against classification

18. ~~Appeals against classification~~

- ~~— (1) — A person who reports a site under section 11 or 12 may appeal against a classification of that site as *report not substantiated*.~~
- ~~— (2) — A person who is —
 - ~~— (a) — an owner; or~~
 - ~~— (b) — an occupier, who has been given notice under section 15(1)(b);~~~~
- ~~— of a site classified as —
 - ~~— (c) — possibly contaminated — investigation required;~~
 - ~~— (d) — decontaminated; or~~
 - ~~— (e) — not contaminated — unrestricted use;~~~~

~~may appeal against the classification, or the inclusion in the site of land of which the person is an owner or occupier.~~

~~(3) A person who is —~~

~~(a) responsible for remediation;~~

~~(b) an owner; or~~

~~(c) an occupier, who has been given notice under section 15(1)(b);~~

~~of a site classified as —~~

~~(d) contaminated remediation required;~~

~~(e) contaminated restricted use; or~~

~~(f) remediated for restricted use.~~

~~may appeal against the classification, or the inclusion in the site of land of which the person is an owner, occupier or responsible for remediation.~~

~~(4) An appeal is to be brought, dealt with and determined in accordance with Part 8.~~

Division 4 Contaminated sites database and other records

19. Contaminated sites database public access

~~(1) The CEO is to keep an accurate and up to date contaminated sites database containing —~~

~~(a) a list of all sites classified as —~~

~~(i) contaminated remediation required;~~

~~(ii) contaminated restricted use;~~

~~(iii) remediated for restricted use;~~

~~(b) a description of the location and extent of each of those sites sufficient to identify it; and~~

~~(c) a description of the nature and extent of the known contamination of each of those sites.~~

~~(2) The CEO is to ensure that members of the public have access, free of charge, to the contaminated sites database.~~

20. Other records to be kept

~~(1) The CEO is to keep accurate and up to date records containing —~~

~~(a) information on contaminated underground water;~~

~~(b) copies of all of the following documents —~~

~~(i) reports made under section 11 or 12;~~

~~(ii) programmes for the reporting of sites approved under section 12;~~

Contaminated Sites Act 1973 2003

Part 2 Reporting, classifying and recording sites

Division 4 Contaminated sites database and other records

s. 21

- ~~— (iii) — notices of the classification of a site given under section 15;~~
- ~~— (iv) — notices given under Part 4;~~
- ~~— (v) — management plans submitted to the CEO;~~
- ~~— (vi) — sampling and analysis programmes given to the CEO under section 49(4)(d);~~
- ~~— (vii) — memorials lodged under section 58;~~
- ~~— (viii) — disclosure statements made under section 64;~~
- ~~— (ix) — certificates of contamination audit;~~
- ~~— (x) — exemption certificates;~~
- ~~— (xi) — notices given under section 39(1);~~
- ~~— (xii) — details of decisions published under section 83(2);~~
- ~~— (xiii) — approvals given to the transfer of responsibility for remediation under section 30(1)(b) and (2);~~
- ~~— (xiv) — agreements to a transfer of responsibility for remediation under section 31;~~
- ~~— (xv) — written disclosures made under section 68;~~

~~and~~

- ~~— (c) — such other information and documents as the CEO considers appropriate.~~

- ~~— (2) — The records may be wholly or partly compiled, recorded or stored in written form or on microfilm, or by electronic or other means or in any other form the CEO considers appropriate.~~

- ~~— (3) — The records are to be retained by the CEO for such period as is determined by the CEO.~~

21. — Public access to records

- ~~— (1) — The CEO is to ensure that a person who has, in the prescribed manner, requested access to a summary of records in respect of land specified in the application, and paid any fee prescribed, is given access to, or copies of, the summary of records.~~

- ~~— (2) — In this section —~~

~~— “summary of records” means a summary, or copies, of such information and documents from the records as are prescribed, in the form prescribed, for the purposes of this section.~~

Part 3—Remediation of contaminated sites

Division 1—Person responsible for remediation

22. ~~Reference to person responsible for remediation includes all persons responsible~~

- ~~— (1) More than one person may be responsible for remediation of a site.~~
- ~~— (2) If more than one person is responsible for remediation of a site, each person is responsible for that remediation to the extent provided in accordance with this Part.~~
- ~~— (3) Unless the contrary intention appears, a reference in this Act to a person, or the person, responsible for remediation of a site, is to be construed as including each person responsible for remediation of the site to the extent that the person is responsible in each case under this Part.~~
- ~~— (4) A person's responsibility for remediation of a site under a provision of this Part is in addition to any other responsibility for remediation of the site that the person has under another provision of this Part.~~

23. ~~Sites classified as contaminated—remediation required are to be remediated~~

- ~~— The only sites that are required to be remediated under this Act are sites classified as *contaminated—remediation required*.~~

24. ~~Who is responsible for remediation—hierarchy of responsibility~~

- ~~— (1) A person is responsible for remediation of a site—
 - ~~— (a) in accordance with section 25, if the person has caused, or contributed to, the contamination of the site;~~
 - ~~— (b) in accordance with section 26, if the person is an owner or occupier of the site who has changed, or proposes to change, the use to which land that comprises all, or part, of the site is put; and~~
 - ~~— (c) in accordance with section 27, if the person is an owner of the site, or of a source site.~~~~
- ~~— (2) Subsection (1) has effect subject to—
 - ~~— (a) section 28;~~
 - ~~— (b) responsibility of the State for remediation under section 29 (except where provision is made to the contrary in section 26(2)(b) and 27(1)(d));~~~~

Contaminated Sites Act 1973 2003

Part 3 Remediation of contaminated sites

Division 1 Person responsible for remediation

s. 25

~~— (e) — responsibility for remediation being transferred under section 30(1)(a); and~~

~~— (d) — a decision made under section 54.~~

~~— [Section 24 amended by No. 40 of 2005 s. 5.]~~

~~25. — Person who caused, or contributed to, contamination — responsibility for remediation~~

~~— (1) — A person is responsible for remediation of a site to the extent that the person caused, or contributed to, the contamination of the site after the commencement of this Act.~~

~~— (2) — Subsection (1) applies whether the contamination resulted from an act that was done with lawful authority or without lawful authority.~~

~~— (3) — A person who caused, or contributed to, the contamination of a site before the commencement of this Act is responsible for remediation of the site only to the extent that the person caused, or contributed to, that contamination by an act that was done without lawful authority.~~

~~— (4) — This section does not apply if the contamination resulted from a reasonable act that was carried out in an emergency situation to save life or to protect property or the environment.~~

~~— (5) — In this section —~~

~~— “an act that was done without lawful authority”, without limiting the meaning of the expression, includes an act —~~

~~— (a) — that constituted an offence for which the person was convicted; or~~

~~— (b) — that contravened —~~

~~— (i) — any written law in force at the time the act occurred; or~~

~~— (ii) — any contract, permit, lease, licence, standard, policy, direction, exemption, authority, approval or requirement, however described, that was given or made under a written law in force at the time the act occurred.~~

~~— (6) — This section is subject to sections 26 and 27.~~

~~26. — Person who changes use of land — responsibility for remediation~~

~~— (1) — Where, after the commencement of this Act, an owner or occupier of a site has changed, or proposes to change, the use~~

~~to which land that comprises all, or part, of the site is put, that person is responsible for remediation of the site to the extent that remediation is required because of the change, or proposed change, of use.~~

- ~~— (2) To the extent that the remediation is required because of the change, or proposed change, of use referred to in subsection (1) —~~
 - ~~— (a) a person who caused or contributed to the contamination is not responsible for remediation of the site under section 25; and~~
 - ~~— (b) the State is not responsible for remediation of the site under section 29(1)(a) or (b).~~

27. Land owners responsibility for remediation

- ~~— (1) A person who became an owner of a site before the commencement of this Act is responsible for remediation of the site to the extent that —~~
 - ~~— (a) the person knew, or suspected, or had reasonable grounds to know or suspect, that the site was contaminated at the time the person became an owner of the site; and~~
 - ~~— (b) the person is an owner of the site,~~~~and, to that extent —~~
 - ~~— (c) a person is not responsible for remediation of the site under section 25; and~~
 - ~~— (d) the State is not responsible for remediation of the site under section 29(1)(a) or (b).~~
- ~~— (2) A person who —~~
 - ~~— (a) became an owner of a site before the commencement of this Act and who did not know, or suspect, and had no reasonable grounds to know or suspect, that the site was contaminated at the time the person became an owner of the site;~~
 - ~~— (b) becomes an owner of a site after the commencement of this Act; or~~
 - ~~— (c) is an owner of a site and was an owner of that site at the time the contamination was caused, or contributed to,~~~~is responsible for remediation of the site to the extent that —~~
 - ~~— (d) a person is not responsible under section 25 or 26; or~~
 - ~~— (e) a person who is responsible under section 25 or 26 —~~

Contaminated Sites Act 1973 2003

Part 3 Remediation of contaminated sites

Division 1 Person responsible for remediation

s. 27

- ~~— (i) — cannot, after reasonable attempts have been made, be identified or found or be made to assume responsibility for the remediation; or~~
 - ~~— (ii) — is insolvent and a person has not been made responsible in accordance with section 28,~~
- ~~— and to the extent that the person is an owner of the site.~~
- ~~— (2a) — A person who, under subsection (1) or (2), is responsible for remediation of a site that is a source site is also responsible for remediation of a site that is an affected site to the extent that —~~
 - ~~— (a) — the contamination of the affected site is caused, or contributed to —~~
 - ~~— (i) — by contamination; or~~
 - ~~— (ii) — by a substance,~~
 - ~~— which has migrated to the affected site from the source site; and~~
 - ~~— (b) — the person is an owner of the source site,~~
- ~~— but only to the extent that —~~
 - ~~— (c) — a person is not responsible for remediation of the affected site under section 25 or 26; or~~
 - ~~— (d) — a person who is responsible for remediation of the affected site under section 25 or 26 —~~
 - ~~— (i) — cannot, after reasonable attempts have been made, be identified or found or be made to assume responsibility for the remediation; or~~
 - ~~— (ii) — is insolvent and a person has not been made responsible in accordance with section 28.~~
- ~~— (2b) — A person who is an owner of a site that is an affected site is not responsible for remediation of the site under subsection (1) or (2) to the extent that the contamination of the site is caused, or contributed to —~~
 - ~~— (a) — by contamination; or~~
 - ~~— (b) — by a substance,~~
- ~~— which has migrated to the affected site from a source site.~~
- ~~— (3) — An owner within the meaning of section 5(1)(b)(i) or (ii) is not responsible for remediation of a site under this section to the extent in each case as is decided by the committee after taking into account the relevant circumstances and any matters prescribed for the purposes of this section.~~

- ~~— (4) A decision of the committee under subsection (3) is a decision as to responsibility for remediation to which Part 3 Division 3 applies.~~
- ~~— (5) A person is not responsible for remediation under subsection (2) or (2a) to the extent provided by an exemption certificate held by that person.~~

~~[Section 27 amended by No. 40 of 2005 s. 6.]~~

28. ~~Insolvent bodies corporate responsibility for remediation~~

- ~~— (1) This section applies to and in respect of a body corporate which is a person responsible for remediation of a site under section 25, 26 or 27, or under this section and —~~
 - ~~— (a) which is insolvent; or~~
 - ~~— (b) in respect of which the committee has decided that the body corporate would become insolvent if it took action to remediate the site.~~
- ~~— (2) Subject to subsections (3) and (4) —~~
 - ~~— (a) each person who was a director of an insolvent body corporate; and~~
 - ~~— (b) each body corporate that was a related body corporate, for the purposes of the Corporations Act 2001 of the Commonwealth, of an insolvent body corporate,~~

~~at the relevant time, may become a person responsible for the remediation if so decided by the committee, to the extent as is decided by the committee, after taking into account the relevant circumstances and any matters prescribed for the purposes of this section.~~
- ~~— (3) The persons referred to in paragraphs (a) and (b) of subsection (2) may not, as a result of the operation of this section, be jointly responsible for remediation of the site to a greater extent than the insolvent body corporate was responsible for remediation of the site.~~
- ~~— (4) Subsection (2) does not apply in respect of a person referred to in paragraph (a) or (b) of that subsection unless the committee has decided that —~~
 - ~~— (a) the insolvency, or lack of solvency, of the insolvent body corporate is a result of deliberate conduct engaged in with, the committee has decided, the probable intent of avoiding responsibility for remediation under this Act; and~~

Contaminated Sites Act 1973 2003

Part 3 Remediation of contaminated sites

Division 1 Person responsible for remediation

s. 28

- ~~— (b) — the person —~~
 - ~~— (i) — engaged in the conduct or knew, or had reasonable grounds to suspect, that the conduct was being engaged in;~~
 - ~~— (ii) — intended to avoid responsibility for remediation under this Act or knew, had reasonable grounds to suspect, or did not inquire as to whether, the conduct was being engaged in with the intent of avoiding responsibility for remediation under this Act; and~~
 - ~~— (iii) — was in a position to influence the conduct.~~
- ~~— (5) — Where it is necessary to establish the state of mind of a body corporate in relation to particular conduct under subsection (4), it is sufficient that —~~
 - ~~— (a) — the conduct was engaged in by a director, employee or agent of the body corporate within the scope of his or her actual or apparent authority; and~~
 - ~~— (b) — the director, employee or agent had the relevant state of mind.~~
- ~~— (6) — A decision of the committee under subsection (1), (2) or (4) is a decision as to responsibility for remediation to which Part 3 Division 3 applies.~~
- ~~— (7) — In this section —~~
 - ~~— “director” has the same meaning as in the *Corporations Act 2001* of the Commonwealth;~~
 - ~~— “engage in conduct” includes failing or refusing to engage in conduct;~~
 - ~~— “insolvent body corporate” means a body corporate referred to in subsection (1);~~
 - ~~— “relevant time” means, in relation to a person who was responsible for remediation under —~~
 - ~~— (a) — section 25, when the act that caused, or contributed to, the contamination occurred;~~
 - ~~— (b) — section 26, when the change of use occurred;~~
 - ~~— (c) — section 27(1) or (2), when the person became an owner of the site;~~
 - ~~— and~~
 - ~~— (d) — section 27(2a), when the person became an owner of the source site of the relevant affected site;~~
 - ~~— “state of mind” of a person includes —~~

- ~~— (a) the knowledge, intention, opinion, belief or purpose of the person; and~~
- ~~— (b) the person's reasons for the intention, opinion, belief or purpose.~~

~~[Section 28 amended by No. 40 of 2005 s. 7.]~~

29. ~~State responsibility for remediation~~

- ~~— (1) The State is responsible for remediation of a site to the extent that —~~
 - ~~— (a) the contamination of the site was a direct and unavoidable result of a direction given, or an action carried out, by a public authority, other than a local authority, unless the contamination resulted from a reasonable direction given, or a reasonable act carried out, in an emergency situation to save life or to protect property or the environment;~~
 - ~~— (b) the contamination was present, or was caused or contributed to by contamination that was present, on land that comprised all, or part, of the site and in respect of which a certificate of contamination audit was given which, at the time the certificate was given —~~
 - ~~— (i) failed to identify the contamination due to a failure under section 63(4) to take into account —~~
 - ~~— (I) any relevant guideline;~~
 - ~~— (II) any currently accepted industrial standard; or~~
 - ~~— (III) any other information contained in, or accompanying, the request for the certificate of contamination audit;~~
 - ~~— or~~
 - ~~— (ii) identified the contamination, but failed to classify the site as *contaminated* — *remediation required*, *contamination* — *restricted use* or *remediated for restricted use* as a result of that contamination being identified;~~
 - ~~— (c) no other person is responsible for remediation of the site in accordance with section 24;~~

- ~~— (d) — if it has been decided by the committee that a person who is responsible for remediation of the site in accordance with section 24 —~~
 - ~~— (i) — cannot be identified or found; or~~
 - ~~— (ii) — cannot be made to assume responsibility for the remediation;~~
- ~~— after reasonable attempts have been made to do so;~~
- ~~— (e) — a person responsible for remediation of the site in accordance with section 24 is insolvent;~~
- ~~— (f) — an owner is not responsible for remediation of the site in accordance with section 27(3); or~~
- ~~— (g) — responsibility for remediation is transferred to the State under section 30(1)(b) or 31.~~
- ~~— (2) — A decision of the committee under subsection (1)(d) is a decision as to responsibility for remediation to which Part 3 Division 3 applies.~~
- ~~— (3) — The CEO is to take such action as the CEO considers necessary, with such assistance as the CEO considers necessary, to investigate and remediate a site for which, and to the extent to which, the State is responsible for remediation.~~
- ~~— (4) — Subject to sections 87 and 88 of the EP Act, an authorised person or an inspector may assist the CEO to take any action under subsection (3), if the CEO so requests.~~

~~30. — Responsibility for remediation may be transferred~~

- ~~— (1) — A person responsible for remediation of a site may transfer that responsibility, or part of that responsibility —~~
 - ~~— (a) — to another person, with that person's written agreement; or~~
 - ~~— (b) — in prescribed circumstances, and with the written approval of the Minister, to the State.~~
- ~~— (2) — An agreement under subsection (1)(a) is of no effect unless approved in writing by the CEO.~~
- ~~— (3) — A transfer under subsection (1) is to be on such terms and conditions as the parties agree which may include —~~
 - ~~— (a) — the transfer of all or part of the relevant land; or~~
 - ~~— (b) — creating a charge on the relevant land.~~
- ~~— (4) — When seeking approval from the CEO under subsection (2), the person responsible for remediation is to give to the CEO —~~
 - ~~— (a) — a statement —~~

- ~~— (i) — to the effect that the person believes on reasonable grounds that the person to whom responsibility is to be transferred has sufficient financial capacity to carry out the remediation; and~~
- ~~— (ii) — setting out the details of that financial capacity;~~
- ~~— and~~
- ~~— (b) — a certificate of contamination audit in respect of the relevant land, or a request for a certificate of contamination audit under section 62.~~
- ~~— (5) — If the CEO considers that there is not enough information about the financial capacity of the person to whom responsibility is to be transferred for the CEO to approve the transfer under subsection (2), the CEO may, by written notice, request —~~
 - ~~— (a) — that person; or~~
 - ~~— (b) — with the permission of that person, any other person,~~
- ~~— to provide additional information about that financial capacity.~~
- ~~— (6) — A person must not provide information or make a statement under subsection (4) or (5) that the person knows is false or misleading in a material particular.~~
- ~~— Penalty: \$250 000, and a daily penalty of \$50 000.~~
- ~~— (7) — Section 32(3) applies in respect of a charge on land under subsection (3)(b) if the charge is for the benefit of the State, or a public authority nominated by the Minister.~~
- ~~— (8) — Where responsibility is transferred to a person or the State under this section, that person or the State becomes responsible for remediation under this Act to the extent set out in the agreement or approval of the Minister, as is relevant, and the person from whom the responsibility was transferred is no longer the person responsible for that remediation.~~

31. ~~Mortgagee~~ responsibility for remediation

- ~~— (1) — If a mortgagee in possession who is a person responsible for remediation of a site under section 27 so requests, that responsibility, or part of it, subject to agreement being reached under subsection (3), is to be transferred to the State.~~
- ~~— (2) — A request is to be made —~~
 - ~~— (a) — in writing to the CEO; and~~

- ~~— (b) — within 45 days after the day on which the person became responsible under section 27.~~
- ~~— (3) — A transfer under this section is to be on the terms and conditions agreed by the Minister, which may include —~~
 - ~~— (a) — the transfer of all, or part, of the relevant land to the State, or a public authority nominated by the Minister; or~~
 - ~~— (b) — creating a charge on the relevant land, to secure the estimated costs of the remediation, in favour of the State or a public authority nominated by the Minister.~~
- ~~— (4) — Section 32(3) applies in respect of a charge under subsection (3)(b).~~

32. Orphan sites

- ~~— (1) — In this section —~~
 - ~~— “orphan site” means all, or part, of a site for which the State is responsible for remediation in accordance with —~~
 - ~~— (a) — section 29(1)(c), unless the State is responsible for remediation under that provision due to the operation of an exemption certificate;~~
 - ~~— (b) — section 29(1)(d); or~~
 - ~~— (c) — section 29(1)(e), because a person responsible for remediation is insolvent and the person, within 45 days or such longer period as is approved by the CEO before the expiry of those 45 days, after the day on which the person became insolvent, has not transferred responsibility under section 30.~~
- ~~— (2) — The Minister may, to secure the payment to the State of the cost of actions taken to investigate and remediate an orphan site, create a charge on land that comprises all, or part, of the orphan site in favour of the State or a public authority nominated by the Minister.~~
- ~~— (3) — Whether or not a memorial has been registered under section 58, a charge on land for the benefit of the State, or a public authority nominated by the Minister, under subsection (2) or section 30(3)(b) or 31(3)(b) —~~
 - ~~— (a) — ranks —~~
 - ~~— (i) — equally with any other charge on the land created by an Act; and~~
 - ~~— (ii) — before any other encumbrance on the land, whether created or arising before or after the charge was created;~~

- ~~_____ and~~
- ~~_____ (b) _____ remains on the land despite any disposal of the land,
and section 110 of the *Transfer of Land Act 1893*
does not apply to the charge.~~
- ~~_____ (4) _____ Subject to subsection (5), land _____~~
- ~~_____ (a) _____ that comprises all, or part, of an orphan site; and~~
- ~~_____ (b) _____ in respect of which the State is responsible for all of
the remediation;~~
- ~~_____ may be compulsorily taken under Parts 9 and 10 of the *Land
Administration Act 1997* as if for a public work within the
meaning of that Act.~~
- ~~_____ (5) _____ The power conferred by subsection (4) may be exercised only
on the recommendation of the Minister.~~

Division 2 — Contaminated Sites Committee

33. Contaminated Sites Committee

- ~~_____ (1) _____ The Minister is to establish a Contaminated Sites Committee
(the “**committee**”).~~
- ~~_____ (2) _____ The committee is to consist of between 3 and 5 persons
selected from a panel of names by the Minister each of whom,
in the opinion of the Minister, has suitable expertise to make
decisions for the purposes of this Act.~~
- ~~_____ (3) _____ A panel of names from which a committee is to be selected is
to _____~~
- ~~_____ (a) _____ contain the names of at least one legal practitioner
and one auditor; and~~
- ~~_____ (b) _____ be chosen and submitted to the Minister in
accordance with the regulations.~~
- ~~_____ (4) _____ The committee is to determine its own procedures.~~
- ~~_____ (5) _____ A member of the committee is to be paid such remuneration
and allowances as the Minister, on the recommendation of the
Minister for Public Sector Management, determines from time
to time.~~
- ~~_____ (6) _____ The Minister is to arrange for the committee to have, or to have
the services or use of, staff or facilities to enable it to carry out
its functions.~~

34. Procedure of committee

- ~~_____ In making a decision under this Act the committee _____~~
- ~~_____ (a) _____ is to consult the CEO and may consult any other
person it considers necessary to consult; and~~

- ~~—(b)— is to act according to equity, good conscience and the substantial merits of the case, without regard to technicalities or legal forms, is not bound by the rules of evidence and is to conduct its inquiries in any manner it considers appropriate.~~

Division 3—Decisions as to responsibility for remediation

35. ~~Decisions as to responsibility for remediation~~

~~—In this Division—~~

- ~~—“decision as to responsibility for remediation” means a decision of the committee under section 27(3), 28(1), (2) or (4), 29(1)(d), 36(2) or 54(1)(c).~~

~~—[Section 35 amended by No. 40 of 2005 s. 8.]~~

36. ~~Committee to make decisions as to responsibility for remediation~~

- ~~—(1) The committee is to make decisions as to—
 - ~~—(a) who is responsible for remediation of a site;~~
 - ~~—(b) the extent to which a person is, or persons are, responsible for remediation of a site.~~~~
- ~~—(2) The committee—
 - ~~—(a) is to make a decision as to responsibility for remediation if it is requested to do so by an interested person; and~~
 - ~~—(b) may make a decision as to responsibility for remediation on its own initiative.~~~~
- ~~—(3) In this section—
 - ~~—“interested person” means a person who is prescribed as being an interested person for the purposes of this section.~~~~

37. ~~Notice to be given before decision made~~

- ~~—Before making a decision as to responsibility for remediation in respect of a person, the committee is to give written notice to that person—
 - ~~—(a) if the decision is proposed to be made in accordance with section 25, specifying—
 - ~~—(i) the nature of the contamination that the committee reasonably suspects that the person caused, or contributed to; and~~~~~~

- ~~— (ii) the extent of the contamination that the committee reasonably suspects that the person caused, or contributed to;~~
- ~~— (b) if the decision is proposed to be made in accordance with section 25(3), specifying the act that the committee reasonably suspects the person carried out without lawful authority and giving details of —~~
 - ~~— (i) the conviction of the person for the offence that was constituted by the act; or~~
 - ~~— (ii) any contravention described in paragraph (b) of the definition of “an act that was done without lawful authority” in section 25(5);~~
- ~~— (c) if the decision is proposed to be made in accordance with section 26, specifying the change of use, or proposed change of use, to which the relevant land is, or is to be, put;~~
- ~~— (d) setting out any other matters regarding responsibility for remediation that are relevant;~~
- ~~— (e) informing the person that if the person wishes to disagree with any statements made in the notice the person may, within the time specified in the notice, make a written submission to the committee —~~
 - ~~— (i) specifying any statement that the person disagrees with;~~
 - ~~— (ii) giving reasons as to why the person disagrees with the statement; and~~
 - ~~— (iii) providing any information or documents supporting the reasons given;~~
- ~~— and~~
- ~~— (f) briefly and accurately summarising the effect of section 38.~~

~~38. Matters to be taken into account in making a decision as to responsibility for remediation~~

- ~~— (1) A decision as to responsibility for remediation is to be made in accordance with Division 1 and the section which empowers the decision to be made.~~
- ~~— (2) In making a decision as to responsibility for remediation the committee is to take into consideration —~~
 - ~~— (a) the contents of any notice given by the committee under section 37; and~~

~~— (b) — any submission made to the committee referred to in section 37(e) and any information or documents provided in support of the reasons given in that submission;~~

~~— and may take into consideration any other matters the committee considers relevant.~~

39. Notice of decision to be given

~~— (1) — The committee is to ensure that notice of a decision as to responsibility for remediation is given in writing to —~~

~~— (a) — each person who the committee has decided is responsible for remediation;~~

~~— (b) — each person in respect of whom the committee has decided there is to be a change in the extent of the person's responsibility for remediation;~~

~~— (c) — in the case of a decision under section 28, the insolvent body corporate;~~

~~— (d) — in the case of a request under section 36(2)(a) any person who made the request;~~

~~— (e) — in the case of a decision under section 54(1)(c), the first person within the meaning of that section; and~~

~~— (f) — each interested person, within the meaning of section 36(3).~~

~~— (2) — A notice given under subsection (1) is to —~~

~~— (a) — specify who is responsible for remediation and the extent of the responsibility;~~

~~— (b) — specify the section of the Act under which the decision is made;~~

~~— (c) — specify the reasons for the decision;~~

~~— (d) — contain details of the appeal available in respect of the decision under section 77; and~~

~~— (e) — contain any other details prescribed.~~

~~— (3) — A notice given under subsection (1) has effect according to its tenor.~~

40. Appeal from decision as to responsibility for remediation

~~— A person who has been given a notice of a decision under section 39(1) may appeal against a decision of the committee in accordance with section 77.~~

Part 4—Investigation, clean up and hazard abatement notices

Division 1—General

41. Meaning of “notice” in this Part

- In this Part, unless the contrary intention appears —
- “notice” means any of the following —
- (a) — a clean up notice, a hazard abatement notice and an investigation notice;
 - (b) — a notice amending such a notice.

42. Person to whom a notice may be given

- (1) — The CEO may, in his or her discretion, give a notice to any of the following persons —
- (a) — if given in relation to a site classified as *contaminated—remediation required*, a person responsible for remediation of the site;
 - (b) — a person who, in the opinion of the CEO, would be a person responsible for remediation of the site if the land to which the notice relates was land that comprised all, or part, of a site classified as *contaminated—remediation required*;
 - (c) — an owner or occupier of land that comprises all, or part, of the site to which the notice relates.
- (2) — The CEO may give more than one notice in respect of particular land or a particular site or to a particular person.
- (3) — A notice is to —
- (a) — be in writing; and
 - (b) — contain details of any appeal available under this Act in respect of the notice.
- (4) — Each owner and occupier of a site in relation to which a notice is given who has not been given the notice is to be provided with a copy of the notice by the CEO within 10 days after the day on which the notice was given, or the CEO is to ensure that reasonable attempts have been made to do so.
- (5) — Before giving a notice the CEO —
- (a) — is to consult with the CEO of the Health Department and, if possible, reach agreement on the requirements of the notice that relate to human health; and

~~— (b) — may seek comments from any public authority or any person which or who has, in the opinion of the CEO, a direct interest in the site.~~

~~— (6) — If the CEO and the CEO of the Health Department cannot agree on the requirements of a notice that relates to human health the Minister and the Minister responsible for the administration of the *Health Legislation Administration Act 1984* are jointly to appoint a person to decide what the requirements of the notice will be.~~

43. — Notice to be complied with

~~— (1) — A person on whom a notice is binding must ensure that the requirements of the notice are complied with within such time as is specified in the notice.~~

~~— Penalty: \$500 000, and a daily penalty of \$100 000.~~

~~— (2) — If a person —~~

~~— (a) — is convicted of an offence under subsection (1) in respect of a notice; or~~

~~— (b) — in the opinion of the CEO, has not complied with a requirement of a hazard abatement notice within such time as is specified in the notice, subject to subsections (3) and (4);~~

~~— the CEO may take such action as is necessary under section 53 to ensure that the requirements of the notice are complied with.~~

~~— (3) — Before taking action under section 53 in the circumstances referred to in subsection (2)(b), the CEO is to give to the person, who in the opinion of the CEO has not complied with a requirement of the hazard abatement notice, written notice —~~

~~— (a) — stating that in the opinion of the CEO the person has not complied with the requirement, or requirements, of the hazard abatement notice which is, or are, specified in the notice under this subsection; and~~

~~— (b) — giving details of the proposed action.~~

~~— (4) — Notice is not required to be given under subsection (3) if the Minister has given written approval for it to be dispensed with because, in the opinion of the Minister, there is an urgent need to take action to reduce or control the immediate and serious risk of harm to human health, the environment or an environmental value.~~

44. Auditor's report in relation to notice

~~— A notice is to require a person on whom the notice is binding to engage an auditor to report on the actions taken to comply with the requirements of the notice.~~

45. Cancellation of notices

~~— (1) A notice may be cancelled —~~

~~— (a) in relation to all persons on whom the notice is binding, by the CEO giving written notice of the cancellation to each of those persons; or~~

~~— (b) in relation to one or more of the person or persons on whom the notice is binding, by the CEO giving written notice of the cancellation to that person or each of those persons.~~

~~— (2) A notice that is cancelled under subsection (1)(a) is of no effect.~~

~~— (3) A notice that is cancelled under subsection (1)(b) in relation to a person is no longer binding on that person.~~

~~— (4) Each owner and occupier of a site in relation to which a notice is cancelled under subsection (1)(b) who has not been given written notice of the cancellation is to be provided with a copy of that notice by the CEO within 10 days after the day on which it was given, or the CEO is to ensure that reasonable attempts have been made to do so.~~

46. Notice may be amended, or additional notice may be given

~~— Where there is a requirement, or discretion, to give a notice under this Act, a notice amending the notice, or an additional notice of the same type, may be given.~~

Division 2 Person on whom notice is binding

47. Person on whom notice is binding

~~— Subject to sections 45 and 79(3) and the outcome of any appeal, a notice is binding on each person —~~

~~— (a) to whom it is given; and~~

~~— (b) on whom it is binding in accordance with section 48 or 54.~~

48. Certain notices binding on new owners

~~— (1) Subject to subsections (2) and (3), a notice —~~

~~— (a) in respect of which a memorial under section 58 is registered in respect of land; and~~

- ~~— (b) — which is binding on an owner of the land,~~
~~— becomes binding on each person who becomes an owner of the land at the time that the person becomes such an owner.~~
- ~~— (2) — A clean up notice, or an investigation notice, in respect of which a memorial under section 58 is registered in respect of land, does not become binding on a person who becomes an owner of the land because the person is a mortgagee in possession, until 45 days after the day on which the person became an owner of the land.~~
- ~~— (3) — A clean up notice does not become binding on a person under subsection (2) if, and to the extent that, within that 45 days, the relevant responsibility for remediation is transferred to the State under section 31.~~

Division 3 — Types of notices

49. — Investigation notice

- ~~— (1) — An investigation notice is to set out the requirements to be complied with to ensure that a site is investigated, monitored and assessed.~~
- ~~— (2) — An investigation notice is to be given only if, in the opinion of the CEO, there are grounds to indicate —~~
 - ~~— (a) — the possible contamination of a site; and~~
 - ~~— (b) — that appropriate action to investigate, monitor or assess the site is not being, or has not been, taken.~~
- ~~— (3) — An investigation notice —~~
 - ~~— (a) — is to specify —~~
 - ~~— (i) — the name and address of the person to whom it is given;~~
 - ~~— (ii) — the reason for which it is given; and~~
 - ~~— (iii) — a description of the location and extent of the site sufficient to identify it;~~
 - ~~— and~~
 - ~~— (b) — is to describe —~~
 - ~~— (i) — the form of investigation, monitoring and assessment to be undertaken; and~~
 - ~~— (ii) — the content and form of information that is to be reported to the CEO.~~
- ~~— (4) — Without limiting subsection (1) or (3), an investigation notice may require a person on whom it is binding to do one or more of the following —~~

- ~~— (a) — to take such measures as the CEO considers necessary to investigate the nature and extent of contamination and its consequences;~~
- ~~— (b) — to prepare a management plan and submit it to the CEO;~~
- ~~— (c) — to monitor the effectiveness of actions taken under paragraph (a);~~
- ~~— (d) — to prepare a sampling and analysis programme for investigating the nature and extent of contamination and give the programme to the CEO;~~
- ~~— (e) — to prepare and implement a plan, in accordance with any relevant guidelines, for informing and consulting with the community regarding the investigation of the site;~~
- ~~— (f) — to report to the CEO on any action taken under the notice and its outcome;~~
- ~~— (g) — specify the time within which any requirement of the notice is to be complied with.~~
- ~~— (5) — An investigation notice may require a person on whom it is binding to do any thing referred to in subsection (3) or (4) in accordance with an approval, direction or requirement of a type specified in the notice by a person specified in the notice.~~
- ~~— (6) — If, in order to comply with an investigation notice, a person will need to enter land of which the person is not an occupier, the notice —~~
 - ~~— (a) — may require the person to make reasonable attempts to obtain, within the time specified in the notice, the permission of the occupier or owner, as is relevant, to enter the land to take action to comply with the requirements of the notice; and~~
 - ~~— (b) — if a requirement is made under (a), is to briefly and accurately describe the effect of subsection (7).~~
- ~~— (7) — If a person on whom a notice, which has a requirement referred to in subsection (6), is binding fails to obtain the permission of the occupier or owner after making reasonable attempts to do so within the time specified in the notice, the person is to notify the CEO of that failure within 3 days after the latest day on which the person was required to obtain the permission.~~

50. ~~Clean up notice~~

- ~~— (1) — A clean up notice is to set out the requirements to be complied with to remediate a site.~~

Contaminated Sites Act 1973 2003

Part 4 Investigation, clean up and hazard abatement notices

Division 3 Types of notices

s. 50

- ~~— (2) — A clean up notice may be given only —~~
 - ~~— (a) — in respect of a site classified as *contaminated* —
remediation required; and~~
 - ~~— (b) — if the CEO believes, on reasonable grounds, that
appropriate action to remediate the site is not being,
or has not been, taken.~~
- ~~— (3) — A clean up notice —~~
 - ~~— (a) — is to specify —~~
 - ~~— (i) — the name and address of the person to whom
it is given;~~
 - ~~— (ii) — the reason for which it is given; and~~
 - ~~— (iii) — a description of the location and extent of the
site sufficient to identify it;~~
 - ~~— and~~
 - ~~— (b) — is to describe —~~
 - ~~— (i) — the form of remediation and monitoring to be
undertaken; and~~
 - ~~— (ii) — the content and form of information that is to
be reported to the CEO.~~
- ~~— (4) — Without limiting subsection (1) or (3), a clean up notice may
require a person on whom it is binding to do one or more of the
following —~~
 - ~~— (a) — to prepare a management plan and submit it to the
CEO;~~
 - ~~— (b) — to comply with any management plan set out or
referred to in the notice;~~
 - ~~— (c) — to comply with any approved policy or with any
standard prescribed by or under the EP Act;~~
 - ~~— (d) — to prepare and implement a plan, in accordance with
any relevant guidelines, for informing and consulting
with the community regarding the remediation of the
site;~~
 - ~~— (e) — to monitor compliance with, and remediation
resulting from, a management plan;~~
 - ~~— (f) — to report to the CEO on any action taken under the
notice and its outcome;~~
 - ~~— (g) — specify the time within which any requirement of the
notice is to be complied with.~~
- ~~— (5) — A clean up notice may require a person on whom it is binding
to do any thing referred to in subsection (3) or (4) in~~

accordance with an approval, direction or requirement of a type specified in the notice by a person specified in the notice.

- ~~— (6) — If, in order to comply with the requirements of a clean up notice, a person will need to enter land of which the person is not an occupier, the notice —~~
- ~~— (a) — may require the person to make reasonable attempts to obtain, within the time specified in the notice, the permission of the occupier or owner, as is relevant, to enter the land to take action to comply with the requirements of the notice; and~~
- ~~— (b) — if a requirement is made under (a), is to briefly and accurately describe the effect of subsection (7).~~
- ~~— (7) — If a person on whom a notice, which has a requirement referred to in subsection (6), is binding fails to obtain the permission of the occupier or owner after making reasonable attempts to do so within the time specified in the notice, the person is to notify the CEO of that failure within 3 days after the latest day on which the person was required to obtain the permission.~~

51. — Hazard abatement notice

- ~~— (1) — A hazard abatement notice is to be given if in the opinion of the CEO a site is contaminated and there is an immediate and serious risk of harm to human health, the environment or any environmental value (“a hazard”).~~
- ~~— (2) — A hazard abatement notice —~~
- ~~— (a) — is to specify —~~
- ~~— (i) — the name and address of the person to whom it is given;~~
- ~~— (ii) — the reason for which it is given; and~~
- ~~— (iii) — a description of the location and extent of the site sufficient to identify it;~~
- ~~— and~~
- ~~— (b) — is to describe —~~
- ~~— (i) — the actions required to be taken to abate the hazard; and~~
- ~~— (ii) — the content and form of information that is to be reported to the CEO.~~
- ~~— (3) — A hazard abatement notice —~~
- ~~— (a) — is to set out the requirements —~~
- ~~— (i) — to be complied with to immediately control or reduce the hazard; and~~

- ~~— (ii) — for informing and consulting with the community regarding the hazard and the abatement of the hazard, in accordance with any relevant guidelines;~~
- ~~— (b) — may require a report to be made to the CEO on any action taken under the notice and its outcome; and~~
- ~~— (c) — may specify the time within which any requirement of the notice is to be complied with.~~

Division 4 — Appeals from notices

~~52. Appeals from notices~~

- ~~— (1) — Subject to subsection (5), a person on whom an investigation notice or a clean up notice is binding may appeal against a requirement of the notice.~~
- ~~— (2) — Subject to subsection (3), a person may appeal against a decision of the CEO —~~
 - ~~— (a) — under section 42(1) to give the person a notice; or~~
 - ~~— (b) — under section 54(1)(d) that a notice is binding on the person.~~
- ~~— (3) — A person —~~
 - ~~— (a) — who is an owner or occupier of a site to which a notice relates, other than an owner or occupier on whom a notice is binding as a result of a decision made under section 54(1)(d); or~~
 - ~~— (b) — who is responsible for remediation of a site to which a notice relates,~~
- ~~— may not appeal against a decision referred to in subsection (2).~~
- ~~— (4) — Subsection (3)(b) does not affect the right of a person to appeal under section 40.~~
- ~~— (5) — An appeal is to be brought, dealt with and determined in accordance with Part 8.~~

Part 5 — Provisions relating to remediation and notices

Division 1 — Powers of CEO in respect of remediation, investigation and ensuring compliance with notices

~~53. Powers in respect of remediation, investigation and ensuring compliance with notices~~

- ~~— (1) — The CEO may, with such assistance as the CEO considers necessary, enter on any land —~~

- ~~— (a) — in respect of which the CEO is authorised to take action under section 43(2) and on that land may take such action as the CEO considers necessary to ensure that the requirements of the relevant notice are complied with; or~~
- ~~— (b) — that comprises all, or part, of a site in respect of which the State is responsible for remediation under section 29 and on that land may take such action as the CEO considers necessary to investigate and remediate the site to the extent to which the State is responsible for remediation.~~
- ~~— (2) — Before exercising a power of entry under subsection (1) in respect of any land which —~~
 - ~~— (a) — is occupied by a person or persons; or~~
 - ~~— (b) — if it is not occupied by a person or persons, has been alienated from the Crown for any estate of freehold;~~
- ~~— the CEO is to give not less than 14 days written notice to the occupier or, if it is not occupied, to the owner specifying —~~
 - ~~— (c) — that —~~
 - ~~— (i) — a requirement of a notice under Part 4, described in or attached to that notice, has not been complied with and the CEO is to take action to ensure that the requirements of the notice under Part 4 are complied with; or~~
 - ~~— (ii) — the State is responsible for remediation under section 29 and the CEO is to take action to ensure that investigation and remediation are carried out;~~
 - ~~— (d) — the part of the land on which entry is to be made; and~~
 - ~~— (e) — the actions proposed to be taken on that part of that land to comply with the requirements of the notice or to carry out the investigation and remediation.~~
- ~~— (3) — Notice is not required to be given under subsection (2) if —~~
 - ~~— (a) — the land comprises all, or part, of a site for which the State is responsible for remediation under section 29 and, in the opinion of the CEO, the occupier, or if it is not occupied, the owner cannot be identified or found;~~
 - ~~— (b) — the land has been taken in accordance with section 32(4); or~~
 - ~~— (c) — the Minister has given written approval to that effect under subsection (4).~~

Contaminated Sites Act 1973 2003

Part 5 Provisions relating to remediation and notices

Division 1 Powers of CEO in respect of remediation, investigation and ensuring compliance with notices

s. 54

- ~~— (4) — At the request of the CEO, the Minister may give approval for notice of entry under subsection (2) to be dispensed with if —~~
 - ~~— (a) — the entry is to be made due to a failure to comply with a requirement of a hazard abatement notice; and~~
 - ~~— (b) — in the opinion of the Minister, there is an urgent need to take action to reduce or control the immediate and serious risk of harm to human health, the environment or an environmental value.~~
- ~~— (5) — Despite approval being given under subsection (4), the CEO is to ensure that such notice as is reasonably practicable is given to the occupier, or if the land is not occupied, to the owner before exercising a power of entry under subsection (1).~~
- ~~— (6) — Subject to sections 87 and 88 of the EP Act, an authorised person or an inspector may assist the CEO to take any action under this section, if the CEO so requests.~~

~~54. — Where entry to a site, or the taking of action, to comply with notice or to remediate refused~~

- ~~— (1) — If a person who is responsible for remediation of a site, or on whom a notice under Part 4 is binding (the “first person”) —~~
 - ~~— (a) — needs to enter any land to take any action necessary to remediate, or to comply with a requirement of the notice; and~~
 - ~~— (b) — without reasonable cause, the occupier or owner, as is relevant, of the land —~~
 - ~~— (i) — refuses permission for the person to enter, or remain on, the land or to take any action on the land necessary to carry out the remediation, or to comply with a requirement of the notice; or~~
 - ~~— (ii) — after a reasonable amount of time has elapsed, has failed to give permission for the person to do any of those things on the land,~~
- ~~— then a decision may be made —~~
 - ~~— (c) — by the committee that the occupier or owner is to be the person responsible for that remediation and the first person is no longer the person responsible for that remediation; or~~
 - ~~— (d) — by the CEO that the notice is binding on that occupier or owner and is no longer binding on the first person,~~
- ~~— as is relevant.~~

- ~~— (2) An owner or occupier referred to in subsection (1)(b) commits an offence.~~
- ~~— Penalty: \$500 000, and a daily penalty of \$100 000.~~
- ~~— (3) An owner or occupier who takes any action necessary to remediate a site, or to comply with the requirements of a notice, as a result of a decision under subsection (1) may recover from the first person the reasonable costs incurred in taking that action and interest at the prescribed rate by action in a court of competent jurisdiction as a debt due.~~
- ~~— (4) If the committee considers that there is not enough information about the financial capacity of an owner or occupier in respect of whom the committee is considering making a decision under subsection (1), the committee may, by written notice, request —~~
 - ~~— (a) that person; or~~
 - ~~— (b) with the permission of that person, any other person,~~~~— to provide additional information about that financial capacity.~~
- ~~— (5) A person —~~
 - ~~— (a) must comply with a request under subsection (4) within the time specified in the request; and~~
 - ~~— (b) must not provide information or make a statement under subsection (4) that the person knows is false or misleading in a material particular.~~~~— Penalty: \$250 000, and a daily penalty of \$50 000.~~
- ~~— (6) A person on whom a notice is binding as a result of a decision under subsection (1)(d) may appeal in accordance with section 52.~~
- ~~— (7) A decision under subsection (1)(c) is a decision as to responsibility for remediation to which Part 3 Division 3 applies.~~
- ~~— (8) A decision under subsection (1)(c) or (d) is to be given by written notice to —~~
 - ~~— (a) the relevant occupier or owner; and~~
 - ~~— (b) the first person.~~

**Division 2 — Recovery of cost, and liability for losses, in
some circumstances**

55. — State may recover cost in some circumstances

- ~~— (1) If the CEO takes action under section 53(1)(a), the CEO may recover the reasonable costs incurred in taking the action, and~~

Contaminated Sites Act 1973 2003

Part 5 Provisions relating to remediation and notices

Division 2 Recovery of cost, and liability for losses, in some circumstances

s. 55

interest at the prescribed rate, from a person on whom the relevant notice is binding, by action in a court of competent jurisdiction as a debt due to the Crown.

~~(2) If~~

~~(a) the CEO takes action under section 53(1)(b) in respect of an orphan site for which the State is responsible for remediation in accordance with section 29(1)(d); and~~

~~(b) within 6 years of the site becoming an orphan site the person referred to in section 29(1)(d) is, in the opinion of the committee, identified, found or can be made to assume responsibility for remediation;~~

~~that person~~

~~(c) on being given notice under subsection (3); and~~

~~(d) subject to subsection (5);~~

~~is liable to repay the reasonable costs incurred in taking the action under section 53(1)(b), with interest at the prescribed rate, to the CEO.~~

~~(3) The committee is to give written notice to a person referred to in subsection (2)~~

~~(a) who, in the opinion of the committee, would have been responsible for remediation under section 24 if the State had not taken responsibility;~~

~~(b) stating that, in the opinion of the committee, the person is liable under this section and~~

~~(i) specifying the extent of the person's responsibility for remediation;~~

~~(ii) specifying the reasonable costs incurred in carrying out the investigation and remediation, and the amount of interest, that the person is liable to pay;~~

~~(iii) requiring that the amount referred to in subparagraph (ii) be paid within the time specified in the notice, or such further time as is agreed; and~~

~~(iv) containing such other details as are prescribed;~~

~~and~~

~~(e) containing details of any appeal available under section 77.~~

- ~~— (4) The CEO may recover the costs and interest referred to in subsection (2) by action in a court of competent jurisdiction as a debt due to the Crown.~~
- ~~— (5) Subsection (2) applies in respect of land which has been taken in accordance with section 32(4) only if the land, as remediated, is valued at a lesser amount than the amount of the reasonable costs incurred in taking the action under section 53(1)(b), and in that situation, the amount which may be recovered under subsection (2) is the amount of the reasonable costs incurred in taking the action under section 53(1)(b) minus the amount of the value of the land.~~
- ~~— (6) A person who has been given a notice under subsection (3) may appeal against a decision of the committee—~~
 - ~~— (a) to give the person the notice; or~~
 - ~~— (b) to require the payment of the amount specified in the notice,~~
- ~~— in accordance with section 77.~~

56. Person may recover cost in some circumstances

- ~~— (1) Subject to subsection (3), a person who carries out any investigation or remediation in respect of a site may, to the extent that that person is not the person responsible for that remediation of the site, recover from the person responsible for that remediation, the reasonable cost incurred in taking reasonable action—~~
 - ~~— (a) to carry out that investigation or remediation; and~~
 - ~~— (b) to comply with any notice under Part 4 binding on that person in respect of the site,~~
- ~~— and interest at the prescribed rate, by action in a court of competent jurisdiction as a debt due.~~
- ~~— (2) A written statement by the CEO, in respect of a particular site, stating that—~~
 - ~~— (a) the action described in the statement was reasonable to investigate or remediate the site; or~~
 - ~~— (b) that costs specified in the statement were reasonable costs to incur in taking the action described in the statement or under the relevant notice under Part 4,~~
- ~~— is to be taken to be proof of the statement in any proceedings under this Act, unless the contrary is shown.~~
- ~~— (3) Subsection (1) applies in respect of a site for which the State is responsible for remediation only if—~~

- ~~— (a) — the action was taken to comply with a notice under Part 4 in respect of the site; or~~
- ~~— (b) — the State is responsible for remediation of the site under section 29(1)(a) or (b).~~
- ~~— (4) — An action under this section may be commenced at any time within 6 years after the date on which the cause of action accrued and may not be commenced after that time.~~

57. Liability for losses

- ~~— Except as may be otherwise prescribed, a person responsible for remediation of a site or a person on whom a notice under Part 4 is binding who, with the permission of the occupier or owner of land, as is relevant, enters that land to take any action necessary to enable the person to carry out the remediation or to comply with the requirements of the notice is liable —~~
 - ~~— (a) — to that occupier for any loss suffered by the occupier as a result of that entry or those actions, including any loss suffered by the occupier due to interruption to the business of the occupier on that land; and~~
 - ~~— (b) — to the owner of the land for any loss suffered by the owner as a result of that entry or those actions, including any loss suffered by the owner due to interruption to the business of the owner on that land or any injury to the land caused by that person.~~

Division 3 — Memorials

58. Memorial is to be lodged if notice given, or land classified as contaminated

- ~~— (1) — The CEO is to ensure a memorial is lodged with the Registrar in respect of —~~
 - ~~— (a) — land —~~
 - ~~— (i) — that comprises all, or part, of a site, classified as —~~
 - ~~— (I) — contaminated — remediation required;~~
 - ~~— (II) — contaminated — restricted use;~~
 - ~~— (III) — remediated for restricted use; or~~
 - ~~— (IV) — possibly contaminated — investigation required;~~
 - ~~— or~~

- ~~— (ii) — in respect of which a notice under Part 4 has been given, other than a notice under section 46 amending a previous notice;~~
- ~~— or —~~
- ~~— (b) — land on which a charge in favour of the State, or a public authority nominated by the Minister, has been placed under —~~
 - ~~— (i) — section 30(3)(b);~~
 - ~~— (ii) — section 31(3)(b); or~~
 - ~~— (iii) — section 32(2);~~
- ~~— as soon as is practicable after the site has been classified, the notice has been given or the charge has been created.~~
- ~~— (2) — The Registrar, on payment of any relevant fee, is to register the memorial against the relevant land.~~
- ~~— (3) — If —~~
 - ~~— (a) — in respect of land referred to in subsection (1)(a)(i), the site of which the land comprises all, or part, is classified as *decontaminated* or *not contaminated* — *unrestricted use*;~~
 - ~~— (b) — in respect of land referred to in subsection (1)(a)(ii), the relevant notice is cancelled under section 45(1)(a);~~
 - ~~— (c) — in respect of land referred to in subsection (1)(b), in the opinion of the CEO, the amount secured by the charge is paid or recovered, or the charge is no longer required; or~~
 - ~~— (d) — a decision is made on appeal —~~
 - ~~— (i) — in respect of land referred to in subsection (1)(a)(i), to set aside the classification of the site of which the land comprises all, or part, or to exclude the land from the site to which the classification applies; or~~
 - ~~— (ii) — in respect of land referred to in subsection (1)(a)(ii), that the notice no longer applies in respect of the land;~~
- ~~— the CEO is to give notice to the Registrar that the memorial is to be withdrawn and the Registrar, on payment of any relevant fee, is to register the withdrawal of the memorial in the appropriate manner and by doing so, in respect of land referred to in subsection (1)(b), remove the charge from the land.~~
- ~~— (4) — A memorial, and notice that a memorial is to be withdrawn —~~

- ~~— (a) — is to —~~
- ~~— (i) — specify the classification of the site of which the land comprises all, or part, or the type of notice, as is relevant; or~~
- ~~— (ii) — describe the charge;~~
- ~~— and~~
- ~~— (b) — is to be in a form approved by the Registrar.~~
- ~~— (5) — In a memorial in respect of land that comprises all, or part, of a site classified as *contaminated* — *remediation required*, the CEO may specify that an instrument affecting the land is not to be registered or accepted for registration unless the CEO consents in writing to that registration and the Registrar is to give effect to such a specification.~~
- ~~— (6) — If a memorial is registered under this section in respect of land referred to in subsection (1)(a)(i), then —~~
- ~~— (a) — the Western Australian Planning Commission is not to approve under section 135 of the *Planning and Development Act 2005* the subdivision of that land, or the amalgamation of that land with any other land; and~~
- ~~— (b) — a responsible authority is not to grant approval under a scheme for any proposed development of that land, without seeking, and taking into account, the advice of the CEO as to the suitability of the land for the subdivision, amalgamation or development.~~
- ~~— (7) — A memorial registered in respect of a notice under Part 4 retains its priority in relation to all other mortgages, charges and encumbrances on that land despite the amendment of the notice under section 46.~~
- ~~— (8) — A memorial registered under this section has effect until it is withdrawn.~~
- ~~— (9) — In this section —~~
- ~~— “register” means to register under the *Registration of Deeds Act 1856* or *Transfer of Land Act 1893*, as the case requires;~~
- ~~— “Registrar” means the Registrar of Titles under the *Transfer of Land Act 1893* or the Registrar of Deeds and Transfers under the *Registration of Deeds Act 1856*, as the case requires.~~
- ~~— [Section 58 amended by No. 38 of 2005 s. 15.]~~

59. ~~Notice of memorial to be given~~

- ~~As soon as is practicable after a memorial is registered or withdrawn under section 58 written notice that the memorial is registered or withdrawn, with a copy of the memorial or notice to withdraw the memorial attached, as is relevant, is to be given by the CEO to —~~
- ~~(a) each owner of the relevant land;~~
 - ~~(b) the Western Australian Planning Commission;~~
 - ~~(c) the CEO of the Health Department;~~
 - ~~(d) each local government which has located within its district all, or part, of the relevant land; and~~
 - ~~(e) each responsible authority the scheme of which applies to all, or part, of the relevant land.~~

Division 4 ~~Contaminated Sites Management Fund~~

60. ~~Contaminated Sites Management Fund~~

- ~~(1) The funds referred to in subsection (2) are to be credited to an account to be called the “Contaminated Sites Management Fund” (the “Fund”).~~
- ~~(2) The funds available for the purposes set out in subsection (3) are —~~
 - ~~(a) moneys from time to time appropriated by Parliament for that purpose;~~
 - ~~(b) at the discretion of the Treasurer —~~
 - ~~(i) money received by the State from the sale of land that comprised all, or part, of an orphan site taken in accordance with section 32(4); and~~
 - ~~(ii) fees collected under section 21(1) or 62(3)(f) or under the regulations;~~
 - ~~(c) moneys received or recovered by the State under section 55 or 56;~~
 - ~~(d) moneys received by the State as a result of a charge under section 30(3)(b), 31(3)(b), or 32(2); and~~
 - ~~(e) other moneys lawfully received by, or made available or payable to, the Fund or to the CEO for the purpose of —~~
 - ~~(i) the Fund; or~~
 - ~~(ii) investigation or remediation carried out by the State under this Act.~~

Contaminated Sites Act 1973 2003

Part 6 Certificates of contamination audit, exemption certificates and disclosure statements

Division 1 Certificate of contamination audit

s. 61

- ~~— (3) The Fund may be applied by the Minister for all or any of the following purposes —~~
 - ~~— (a) the investigation or remediation of any site for the remediation of which the State, or a public authority (other than a local government), is responsible;~~
 - ~~— (b) taking any action under section 53.~~
- ~~— (4) The Fund is to be administered by the Minister.~~
- ~~— (5) The provisions of the *Financial Administration and Audit Act 1985* regulating the financial administration, audit and reporting of departments apply to and in relation to the Fund.~~
- ~~— (6) For the purposes of section 52 of the *Financial Administration and Audit Act 1985*, the administration of the Fund is to be regarded as a service of the Department.~~

**~~Part 6 — Certificates of contamination audit,
exemption certificates and disclosure statements~~**

~~Division 1 — Interpretation~~

~~61. — Interpretation~~

- ~~— In this Part, unless the contrary intention appears —~~
 - ~~— “land” includes —~~
 - ~~— (a) underground water under that land; and~~
 - ~~— (b) surface water on that land.~~

~~Division 2 — Certificate of contamination audit~~

~~62. — Request for certificate of contamination audit~~

- ~~— (1) Any of the following persons may, in the prescribed form, request a certificate of contamination audit from the CEO in respect of land —~~
 - ~~— (a) the owner of the land;~~
 - ~~— (b) the occupier of the land;~~
 - ~~— (c) a person responsible for remediation of a site of which the land comprises all, or part;~~
 - ~~— (d) a person on whom a notice under Part 4 in respect of the land is binding.~~
- ~~— (2) If a request for a certificate of contamination audit is made in respect of land by a person who is not the owner of the land a copy of the request is to be given by that person to the owner within 14 days after the day on which the request was made.~~

- ~~— (3) — A request for a certificate of contamination audit is to contain or be accompanied by the following —~~
 - ~~— (a) — an assessment of whether the land is contaminated and, if contaminated, the extent and type of the known contamination;~~
 - ~~— (b) — a recommendation as to classification and where relevant, any recommended restrictions on land use;~~
 - ~~— (c) — any other information prescribed;~~
 - ~~— (d) — any other information requested by the CEO to enable the CEO to deal with the request;~~
 - ~~— (e) — where a mandatory auditor's report is required in accordance with the regulations, that report;~~
 - ~~— (f) — the prescribed fee.~~
- ~~— (4) — The CEO —~~
 - ~~— (a) — may decline to deal with a request if the request or accompanying information does not comply with this section; and~~
 - ~~— (b) — if the CEO so declines, is to advise the person who made the request in writing accordingly and request such further information as is required.~~

63. — Certificate of contamination audit

- ~~— (1) — After considering a request for a certificate of contamination audit in respect of land, the CEO is to —~~
 - ~~— (a) — subject to subsections (4) and (5), give a certificate of contamination audit to the person who requested it; or~~
 - ~~— (b) — classify a site that comprises all, or part, of the land as *possibly contaminated* — *investigation required* and give written notice of the classification to the person who requested the certificate.~~
- ~~— (2) — The CEO is to take action under subsection (1) —~~
 - ~~— (a) — within 45 days after —~~
 - ~~— (i) — receiving a request for a certificate of contamination audit in respect of the land; or~~
 - ~~— (ii) — if a request for further information has been made under section 62(4), receiving the further information requested; or~~
 - ~~— (b) — if, in the opinion of the CEO, there are particular circumstances which make it difficult to take action under subsection (1) within that time, within such further time as the CEO decides is necessary to take the action.~~

Contaminated Sites Act 1973 2003

Part 6

Certificates of contamination audit, exemption certificates and disclosure statements

2

Certificate of contamination audit

s. 63

- ~~— (3) The CEO is to cause written notice of a decision under subsection (2)(b) to be given, or to ensure that reasonable attempts have been made to do so —~~
 - ~~— (a) to the person who requested the certificate of contamination audit in respect of the land and, at the discretion of the CEO, any other owner or occupier of the land; and~~
 - ~~— (b) within the time referred to in subsection (2)(a).~~
- ~~— (4) The CEO is to give a certificate of contamination audit in respect of land if satisfied, on reasonable grounds, that all contamination on the land that can be identified has been identified, taking into account —~~
 - ~~— (a) any relevant guidelines;~~
 - ~~— (b) currently accepted industrial standards; and~~
 - ~~— (c) any other information the CEO considers relevant,~~~~with respect to the identification of contamination.~~
- ~~— (5) A certificate of contamination audit in respect of land is to —~~
 - ~~— (a) be in the prescribed form;~~
 - ~~— (b) classify the site in accordance with section 15(3); and~~
 - ~~— (c) specify the nature and extent of all identified contamination of the land.~~
- ~~— (6) A copy of a certificate of contamination audit is to be given by the CEO to —~~
 - ~~— (a) each owner of the land in respect of which the certificate is given; and~~
 - ~~— (b) at the discretion of the CEO, an occupier of the land.~~
- ~~— (7) The CEO may, by written notice given to a person to whom a certificate of contamination audit has been given, amend that certificate to correct —~~
 - ~~— (a) a clerical mistake or unintentional error or omission in the certificate;~~
 - ~~— (b) a figure in the certificate which has been miscalculated; or~~
 - ~~— (c) the misdescription of any person, thing or property referred to in the certificate.~~
- ~~— (8) Where a certificate of contamination audit is given in respect of land, any certificate of contamination audit given previously in respect of that land is no longer of any effect under this Act in respect of that land.~~

**Division 3 — Disclosure regarding contamination, and
exemption certificates****64. — Disclosure statement made within 2 years of
commencement of Act**

- (1) — An owner of land may make a disclosure statement with respect to the contamination of that land to the committee —
 - (a) — in the prescribed form;
 - (b) — in respect of land of which that person —
 - (i) — is the owner; and
 - (ii) — was the owner immediately before the commencement of this Act;
 - and
 - (c) — subject to subsection (2), within 2 years after the commencement of this Act.
- (2) — If a person —
 - (a) — gives written notice to the committee within 2 years after the commencement of this Act that the person intends to make a disclosure statement, that person has 12 months after giving that notice to the committee within which to make the disclosure statement; or
 - (b) — has had a programme for the reporting of sites approved under section 12, that person may make a disclosure statement in respect of land that comprises all, or part, of a site described in the programme at any time before the programme is to be completed.
- (3) — If a disclosure statement does not contain enough information for the committee to make a decision under subsection (4), the committee is to advise the person who made the request in writing accordingly and request such further information as is required.
- (4) — Within 45 days after the day on which a disclosure statement, or further information in respect of the statement, is received the committee is to —
 - (a) — if section 65 applies, give an exemption certificate;
 - (b) — by written notice to the person who made the statement —
 - (i) — refuse to give an exemption certificate; or
 - (ii) — decline to deal with the statement if it is not in compliance with this section;

Contaminated Sites Act 1973 2003

Part 6 Certificates of contamination audit, exemption certificates and disclosure statements

Division 3 Disclosure regarding contamination, and exemption certificates

s. 65

~~— or~~

~~— (c) request further information, in accordance with subsection (3).~~

~~— (5) Where land in respect of which an owner has made a disclosure statement under subsection (1) comprises all, or part, of a source site then the disclosure statement may also be made in respect of the contamination of any land that comprises all, or part, of an affected site on which contamination is caused, or contributed to —~~

~~— (a) by contamination; or~~

~~— (b) by a substance,~~

~~— which has migrated to the affected site from the source site.~~

~~— [Section 64 amended by No. 40 of 2005 s. 9.]~~

~~65. Exemption certificates~~

~~— (1) On receiving a disclosure statement under section 64 from a person with respect to the contamination of land, and any further information requested under that section, the committee is to give an exemption certificate in respect of all, or part, of the land in respect of which the disclosure statement was made to the person if, and to the extent that, in the opinion of the committee —~~

~~— (a) the land is contaminated;~~

~~— (b) the contamination was not caused, or contributed to, by an action of the person;~~

~~— (c) the person did not fail to prevent the contamination of the land, as far as it was reasonably within the person's control to prevent that contamination; and~~

~~— (d) the land in respect of which the statement was made which was owned by the person was contaminated at the time the person became an owner of the land and, at that time, the person did not know, or suspect, and could not reasonably have known or suspected, that the land was contaminated.~~

~~— (2) An exemption certificate is to specify the extent to which a person who made a disclosure statement is not responsible for remediation under section 27(2) or (2a) of the land in respect of which the statement was made.~~

~~— (3) A person who would otherwise be responsible for remediation of a site under section 27(2) or (2a), is not responsible under those provisions for remediation of the site to the extent provided by an exemption certificate held by that person.~~

~~— (4) — Other than as set out in subsection (3), a person's responsibility for remediation of a site under this Act is not affected by an exemption certificate.~~

~~— (5) — An exemption certificate in respect of land may be transferred by the holder of the certificate to another person who, at any time after the certificate has been given, has become an owner of the land, or part of the land, if so decided by the committee, and to the extent as is decided by the committee after taking into account —~~

~~— (a) — the relevant circumstances; and~~

~~— (b) — any matters prescribed for the purposes of this section.~~

~~— [Section 65 amended by No. 40 of 2005 s. 10.]~~

66. Cancellation or amendment of exemption certificate

~~— (1) — Subject to subsections (2) and (3), the committee may cancel or amend an exemption certificate by written notice given to the holder of the certificate if satisfied, on reasonable grounds, that the disclosure statement made under section 64 —~~

~~— (a) — contained information that was false or misleading in a material particular; or~~

~~— (b) — failed to disclose information that was materially relevant or without which the statement was misleading;~~

~~— and, in the opinion of the committee, this resulted in an exemption certificate being given —~~

~~— (c) — when it should not have been given; or~~

~~— (d) — which contained erroneous information.~~

~~— (2) — Before cancelling or amending an exemption certificate the committee is to give the holder of the certificate written notice —~~

~~— (a) — stating details of the proposed action;~~

~~— (b) — inviting the person to make representations to the committee to show why the action should not be taken; and~~

~~— (c) — stating the period (at least 21 days after the day on which the notice is given to the person) within which written representations may be made.~~

~~— (3) — The committee may take the proposed action —~~

~~— (a) — at any time after the holder of the certificate gives the committee written notice that the holder does not intend to make any representations or any further representations; or~~

Contaminated Sites Act 1973 2003

Part 6 Certificates of contamination audit, exemption certificates and disclosure statements

Division 3 Disclosure regarding contamination, and exemption certificates

s. 67

- ~~— (b) — if such notice is not given —~~
 - ~~— (i) — after the end of the period stated in the notice within which representations may be made;~~
 - ~~or~~
 - ~~— (ii) — if representations are made, after considering any representations properly made.~~

~~— (4) — An exemption certificate that is cancelled is of no effect.~~

~~67. — Appeals regarding exemption certificates~~

~~— A person who submitted a disclosure statement may appeal in accordance with section 77 against a decision of the committee —~~

- ~~— (a) — under section 64(4) —~~
 - ~~— (i) — to refuse to give an exemption certificate; or~~
 - ~~— (ii) — regarding the extent to which the person is not responsible for remediation, as provided in the exemption certificate;~~
- ~~— or~~
- ~~— (b) — under section 66 to cancel or amend an exemption certificate.~~

~~68. — Disclosure required to potential owners of certain land before change of ownership occurs~~

- ~~— (1) — At least 14 days before the completion of a transaction which would result in another person becoming an owner, mortgagee or lessee of —~~
 - ~~— (a) — land that comprises all, or part, of a site classified as —~~
 - ~~— (i) — contaminated — remediation required;~~
 - ~~— (ii) — contaminated — restricted use; or~~
 - ~~— (iii) — remediated for restricted use;~~
 - ~~— or~~
 - ~~— (b) — land in respect of which a notice under Part 4 has been given and in respect of which a memorial is registered,~~
- ~~— each owner of the land who is to be a party to the transaction must give —~~
 - ~~— (c) — a written disclosure in respect of the land in the prescribed form to each person who would become an owner, mortgagee or lessee of the land as a result of the transaction; and~~
 - ~~— (d) — a copy of that disclosure to the CEO.~~

~~Penalty: \$125 000, and a daily penalty of \$25 000.~~

- ~~(2) A contravention of subsection (1)(c) is a breach of statutory duty that, subject to the defences and other incidents applying to actions for breach of statutory duty, is actionable at the suit of a person who should have been given the disclosure and who has sustained loss or damage in consequence of that breach.~~

~~Part 7 Contaminated sites auditors~~

~~Division 1 Accreditation~~

~~69. Accredited auditors~~

~~The CEO may, in accordance with the regulations, accredit a person as a contaminated sites auditor.~~

~~70. Authority of accredited auditor~~

- ~~(1) The CEO is to cause to be given to each auditor an authority in writing —~~
- ~~(a) bearing a photograph or digital image of that auditor;~~
 - ~~(b) stating that the person is an accredited contaminated sites auditor; and~~
 - ~~(c) signed by the CEO.~~
- ~~(2) The CEO may limit, or impose conditions on, the duties that may otherwise be undertaken by an auditor under this Act or the EP Act by specifying in the authority given to the auditor under subsection (1) any limitation of, or condition imposed on, those duties.~~
- ~~(3) An auditor must not carry out any duty, or advertise or otherwise hold out or imply that he or she is authorised to carry out any duty, as an auditor under this Act or the EP Act other than in accordance with the authority.~~

~~Penalty: \$125 000, and a daily penalty of \$25 000.~~

~~71. Offences relating to accreditation~~

- ~~A person —~~
- ~~(a) must not obtain or attempt to obtain accreditation as an auditor by —~~
 - ~~(i) providing information that the person knows is false or misleading in a material particular;~~
 - ~~(ii) providing information that is false or misleading in a material particular, with reckless disregard as to whether or not the~~

information is false or misleading in a material particular; or

~~— (iii) failing to disclose information that the person knows is materially relevant;~~

~~— (b) who is not accredited as an auditor must not advertise, or otherwise hold out or imply, that he or she is accredited as an auditor;~~

~~— (c) must not forge, or fraudulently alter or use, an authority referred to in section 70; or~~

~~— (d) must not allow an authority given to the person under section 70 to be used by another person.~~

~~— Penalty: \$125 000.~~

~~72. No action may be taken with respect to accreditation~~

~~— No action or other proceeding for damages lies against the State, the Minister, the CEO or any other person acting under this Act for any loss or injury directly or indirectly suffered as a result of the accreditation, or the suspension or cancellation of, or refusal to renew, the accreditation, of a person under this Act.~~

~~Division 2 Mandatory auditor's reports~~

~~73. Certification of mandatory auditor's reports~~

~~— A mandatory auditor's report is not to be accepted under this Act or the EP Act unless the report is in compliance with the regulations and is accompanied by —~~

~~— (a) a statement identifying, and signed by, the person who commissioned the report to the effect that the person —~~

~~— (i) has not provided information to the auditor that the person knows is false or misleading in a material particular;~~

~~— (ii) has not provided information with reckless disregard as to whether or not the information is false or misleading in a material particular; and~~

~~— (iii) has disclosed to the auditor all information that the person knows is materially relevant;~~

~~— and~~

~~— (b) a statement identifying, and signed by, the auditor to the effect that the report is accurate, and that the auditor —~~

- ~~— (i) — has not provided any information in the report that the auditor knows is false or misleading in a material particular;~~
- ~~— (ii) — has not provided information in the report with reckless disregard as to whether or not the information is false or misleading in a material particular; and~~
- ~~— (iii) — has disclosed in the report all information that the auditor knows is materially relevant.~~

74. Offences relating to mandatory auditor's reports

- ~~— (1) — A person must not —~~
 - ~~— (a) — provide information to an auditor in connection with a mandatory auditor's report, that the person knows is false or misleading in a material particular;~~
 - ~~— (b) — provide information to an auditor in connection with a mandatory auditor's report that is false or misleading in a material particular with reckless disregard as to whether or not the information was false or misleading in a material particular; or~~
 - ~~— (c) — commission from an auditor a mandatory auditor's report and fail to disclose to the auditor all information in connection with the report that the person knows is materially relevant to the report.~~
- ~~— (2) — An auditor must not —~~
 - ~~— (a) — provide information in a mandatory auditor's report that the auditor knows is false or misleading in a material particular;~~
 - ~~— (b) — provide information in a mandatory auditor's report that is false or misleading in a material particular with reckless disregard as to whether or not the information is false or misleading in a material particular; or~~
 - ~~— (c) — fail to disclose all information in a mandatory auditor's report that the auditor knows is materially relevant to the report.~~

~~— Penalty: \$250 000.~~

75. Self-incriminatory information not exempt

- ~~— A person is not excused from providing, or failing to disclose, information when required to do so under section 74 on the ground that to do so might tend to incriminate the person or make the person liable to a penalty and this Part applies to any~~

~~such information that is supplied, whether or not the information might incriminate the person.~~

~~76. Use of information~~

~~Any information in a mandatory auditor's report, or in documentation supplied to the CEO in connection with the report, may be taken into consideration and used for the purposes of this Act.~~

Part 8—Appeals

Division 1—Appeals from decisions of the committee

~~77. Appeals as to responsibility for remediation and exemption certificates~~

- ~~(1) A party aggrieved by a decision of the committee referred to in section 40, 55(6) or 67 may appeal to the Supreme Court on a question of law within 21 days after the notice or certificate was given.~~
- ~~(2) An appeal is to be made in accordance with the rules of court of the Supreme Court.~~
- ~~(3) The Supreme Court may, in a particular case, extend the time within which an appeal may be commenced under subsection (1).~~
- ~~(4) No appeal lies against a decision of the committee under section 40, 55(6) or 67 except on a question of law.~~
- ~~(4a) No appeal lies against a decision of the committee under section 65(5).~~
- ~~(5) Pending the determination of an appeal a decision, certificate or notice continues to have effect subject to any decision of the Supreme Court to the contrary.~~

~~[Section 77 amended by No. 40 of 2005 s. 11.]~~

~~78. Supreme Court to hear and determine appeals on questions of law~~

- ~~(1) The Supreme Court is to hear and determine the question of law arising on the appeal and, as the Court sees fit, is to —~~
 - ~~(a) affirm the decision appealed against;~~
 - ~~(b) substitute or vary the decision appealed against; or~~
 - ~~(c) remit the decision to the committee for reconsideration, together with the Court's opinion on the question of law.~~

- ~~— (2) Subject to subsection (3), the Supreme Court may make such order as to costs as it thinks fit in relation to an appeal to the Supreme Court under this section.~~
- ~~— (3) The committee and any member of the committee is not to be liable for any costs of the appeal other than costs incurred by the committee or the member.~~

Division 2 — Other appeals

79. Lodging of appeals under section 18 or 52

- ~~— (1) An appeal under section 18 or 52 is instituted by lodging written notice of the appeal to the committee setting out the grounds and facts on which the appellant relies.~~
- ~~— (2) Notice of an appeal referred to in subsection (1) is to be lodged within 21 days after the day on which —~~
 - ~~— (a) the appellant is given the notice or certificate which gave rise to the appeal; or~~
 - ~~— (b) in respect of a person on whom a notice is binding in accordance with section 48 or 54, the notice became binding on the person;~~
- ~~— or such later time as may be specified in that notice or certificate.~~
- ~~— (3) Pending the determination of an appeal —~~
 - ~~— (a) a classification, decision, certificate or notice in respect of which the appeal is made continues to have effect, unless otherwise specified in paragraph (b); and~~
 - ~~— (b) an investigation notice or clean up notice, or a requirement of such a notice, in respect of which the appeal is made is suspended;~~
- ~~— subject to any written decision of the committee to the contrary.~~

80. Preliminary action in respect of certain appeals

- ~~— When an appeal is lodged, the committee —~~
 - ~~— (a) is to request the CEO, and if the committee thinks it necessary to do so, the Authority to report to the committee on the appeal; and~~
 - ~~— (b) may request the CEO to consider the appeal and to consult the appellant and any other appropriate person to determine whether or not the point at issue in the appeal can be resolved and report to the committee on the appeal.~~

s. 81

~~81. Reports under section 80~~

- ~~— (1) On receiving a request under —
 - ~~— (a) section 80(a), the CEO and, if the request extends to the Authority, the Authority are to report on the relevant appeal to the committee;~~
 - ~~— (b) section 80(b), the CEO is to carry out the consideration and consultation concerned and report to the committee on the results of that consideration and consultation.~~~~
- ~~— (2) The CEO, or the Authority, is not to make a recommendation in a report that conflicts with an approved policy or with any standard prescribed by or under the EP Act.~~

~~82. Decision of committee~~

- ~~— (1) On receiving a report or reports referred to in section 80 in respect of an appeal the committee, subject to subsection (2), may —
 - ~~— (a) affirm the classification, decision or requirement appealed against;~~
 - ~~— (b) substitute or vary the classification, decision or requirement appealed against; or~~
 - ~~— (c) set aside the classification, decision or requirement and make a decision or substitute a requirement, notice or classification that the committee thinks just.~~~~
- ~~— (2) The decision of the appeal committee under this section is final and without appeal.~~

~~83. Implementation by CEO of decisions on appeal~~

- ~~— (1) The CEO is to give effect to the outcome of an appeal under this Part as soon as is practicable.~~
- ~~— (2) The CEO is to ensure that details of a decision by the committee under this Part are published in the manner prescribed.~~

Part 9 — Enforcement

~~84. Who can take proceedings for offences~~

- ~~— (1) Proceedings for an offence against this Act are to be instituted by the CEO or a person authorised to do so by the CEO.~~
- ~~— (2) An authorisation under subsection (1) may be given generally or in relation to a specified offence or specified offences.~~

- (3) — If a prosecution notice alleging an offence under this Act purports to be made or sworn by a person authorised to take proceedings for offences of that kind, it is to be presumed, in the absence of proof to the contrary, that the prosecution notice was made or sworn by such a person.

— [Section 84 amended by No. 84 of 2004 s. 80.]

85. Time for bringing prosecutions

- (1) — A prosecution for an offence under this Act must be commenced within 2 years after the date on which the offence is alleged to have been committed.
- (2) — Despite subsection (1), if a prosecution notice alleging an offence under this Act specifies the day on which evidence of the alleged offence first came to the attention of a person authorised to institute the prosecution under section 84 —
 - (a) — the prosecution may be commenced within 24 months after that day; and
 - (b) — the prosecution notice need not contain particulars of the day on which the offence is alleged to have been committed.
- (3) — The day on which evidence first came to the attention of a person authorised to institute a prosecution under section 84 is the day specified in the prosecution notice, unless the contrary is shown.

— [Section 85 amended by No. 59 of 2004 s. 141; No. 84 of 2004 s. 80.]

86. Evidentiary provisions

- (1) — In proceedings for an offence under this Act, an averment in a prosecution notice that —
 - (a) — a specified notice under this Act was given, or was given to a specified person or at a specified time;
 - (b) — specified land comprises, or at a specified time comprised, all, or part, of a site, classified as of a specified category;
 - (c) — a specified person is, or at a specified time was, the owner or occupier of specified land;
 - (d) — a specified person is, or at a specified time was, the person responsible for remediation of a specified site, or the person responsible for remediation of that site to a specified extent; and

s. 87

~~—(e)— a specified certificate is a certificate of contamination audit under section 63,~~

~~— is to be taken to have been proved unless the contrary is shown.~~

~~—(2)— In subsection (1)—~~

~~—“specified” means specified in the prosecution notice.~~

~~— [Section 86 amended by No. 84 of 2004 s. 80.]~~

~~87.— Daily penalties~~

~~—(1)— Without limiting section 71 of the *Interpretation Act 1984*, where an offence is committed by a person by reason of the contravention of a provision of this Act under which the person is required or directed to do any act or thing, or to refrain from doing any act or thing, that offence is to be taken to have continued so long as the act or thing so required or directed remains undone, or continues to be done, as the case may be.~~

~~—(2)— In addition to a penalty specified for an offence, a person convicted of an offence is liable to a daily penalty not exceeding the daily penalty specified for the offence for each day or part of a day during which the offence continues after written notice of the alleged offence has been given by the CEO to the offender.~~

~~—(3)— In addition to a penalty specified for an offence, a person convicted of an offence is liable to a daily penalty not exceeding the daily penalty specified for the offence for each day or part of a day during which the offence continues after the offender is convicted.~~

~~88.— Attempt, incitement and accessory after the fact~~

~~—(1)— Section 555A of *The Criminal Code* applies to an offence under this Act as if it were a simple offence under that Code.~~

~~—(2)— A person who becomes an accessory after the fact to an offence under this Act (the “**principal offence**”) within the meaning of section 10 of *The Criminal Code*, commits an offence and is liable on conviction to the penalty to which a person convicted of the principal offence is liable.~~

~~89.— Inspectors, authorised officers and analysts~~

~~—(1)— An inspector appointed under section 88 of the EP Act may also be appointed under that section for the purposes of this Act.~~

~~—(2)— For the purposes of this Act, an inspector has all the functions that the inspector has under the EP Act, and for those purposes~~

any relevant reference in the EP Act to “this Act” is to be read and construed as if it were a reference to this Act.

- (3) — In addition to the functions of an inspector under the EP Act, an inspector may at any time, and with any assistance the inspector may require, enter any land —
 - (a) — in respect of which a notice has been given under Part 4 and on that land may do any act or thing, including the collection and removal of samples, records or other things, which in the opinion of the inspector is necessary to be done for determining whether or not there has been compliance with or contravention of any notice given under Part 4; and
 - (b) — which is, or was, classified as *contaminated remediation required* and on that land may do any act or thing, including the collection and removal of samples, records or other things, which in the opinion of the inspector is necessary or will be relevant to determining responsibility for remediation.
- (4) — An authorised person appointed under section 87 of the EP Act may also be appointed under that section for the purposes of this Act.
- (5) — For the purposes of this Act, an authorised person has all the functions that the person has under the EP Act, and for those purposes any relevant reference in the EP Act to “this Act” is to be read and construed as if it were a reference to this Act.
- (6) — An analyst appointed under section 94 of the EP Act may also be appointed under that section for the purposes of this Act.

90. Additional powers available to the court

- The provisions of Part VIA Division 4 of the EP Act apply to and in relation to this Act as if —
 - (a) — a reference in those provisions to “this Division” were a reference to this Part; and
 - (b) — a reference in those sections to “this Act” were a reference to this Act.

Part 10 — General

91. Delegation

- Sections 18 and 20 of the EP Act apply to and in relation to this Act as if a reference in those sections to “this Act” were a reference to this Act.

s. 92

92. ~~Other provisions of EP Act apply~~

~~Sections 115, 117, 118, 120 and 121 of the EP Act apply to and in relation to this Act as if a reference in those sections to “this Act” were a reference to this Act.~~

93. ~~CEO may request information on wells~~

~~(1) If the CEO is of the opinion that underground water in an area may be contaminated, the CEO may, by written notice given to an owner or occupier of land situated within the area, require the provision of information as to —~~

~~(a) the existence of a well on that land; or~~

~~(b) the taking of underground water from under that land.~~

~~(2) In subsection (1) —~~

~~“well” means an opening in the ground made or used to obtain underground water.~~

~~(3) A person from whom information is required under subsection (1) must supply that information in writing to the CEO within the time specified in the notice.~~

~~Penalty: \$50 000, and a daily penalty of \$10 000.~~

94. ~~False or misleading information~~

~~A person —~~

~~(a) in making a report under section 11 or 12;~~

~~(b) in making a request for a summary of records under section 21;~~

~~(ba) in making a written submission to the committee under section 37(e);~~

~~(c) in making a disclosure statement under section 64, a disclosure under section 68 or in connection with a request for a certificate of contamination audit under section 62; or~~

~~(d) in purporting to comply with a requirement made by or under this Act to provide information to the CEO or to the committee;~~

~~must not —~~

~~(e) make a statement which the person knows is false or misleading in a material particular;~~

~~(f) make a statement which is false or misleading in a material particular, with reckless disregard as to whether or not the statement is false or misleading in a material particular;~~

- ~~— (g) — provide, or cause to be provided, information that the person knows is false or misleading in a material particular;~~
- ~~— (h) — provide, or cause to be provided, information that is false or misleading in a material particular, with reckless disregard as to whether the information is false or misleading in a material particular; or~~
- ~~— (i) — fail to disclose, or cause a failure to disclose, all information that the person knows is materially relevant.~~

~~————— Penalty: \$125 000, and a daily penalty of \$25 000.~~

~~————— [Section 94 amended by No. 40 of 2005 s. 12.]~~

95. ~~—————~~ Victimisation

- ~~— (1) — A person who for a reason described in subsection (2) —~~
 - ~~— (a) — prejudices, or threatens to prejudice, the safety or career of another person;~~
 - ~~— (b) — intimidates or harasses, or threatens to intimidate or harass, another person; or~~
 - ~~— (c) — takes, or threatens to take, detrimental action against another person;~~
- ~~————— commits an offence.~~
- ~~————— Penalty: \$125 000, and a daily penalty of \$25 000.~~
- ~~— (2) — The reasons referred to in subsection (1) are that the other person or a member of the other person's family —~~
 - ~~— (a) — has made, or will or may in the future make, a report under section 11 or 12;~~
 - ~~— (b) — has furnished, is furnishing, or will or may in the future furnish, information or assistance —~~
 - ~~— (i) — in the course of, or for the purpose of, an inspection or investigation under this Act; or~~
 - ~~— (ii) — to the CEO for a purpose relating to the administration of this Act;~~
 - ~~————— or~~
 - ~~— (c) — has made, or will or may in the future make, an appropriate disclosure of information that tends to show that another person —~~
 - ~~— (i) — is, has been, or proposes to be involved in an offence under this Act; or~~
 - ~~— (ii) — is a person responsible for remediation.~~
- ~~— (3) — In subsection (1) —~~

s. 96

- ~~—“detrimental action” includes action causing, comprising or involving—~~
- ~~—(a) damage or loss;~~
 - ~~—(b) adverse discrimination, disadvantage, or adverse treatment in relation to a person’s career, profession, employment, trade or business; or~~
 - ~~—(c) a reprisal.~~
- ~~—(4) For the purposes of this section, a reference to an appropriate disclosure of information is a reference to a disclosure of information if, and only if, the disclosure is made in good faith and with an honest and reasonable belief that the information is of sufficient significance to justify its disclosure so that its truth may be investigated.~~
- 96. Confidentiality**
- ~~—(1) Other than as is necessary for the administration of this Act, nothing in this Act authorises access to, or the disclosure of, any information or document which would, or is likely to, reveal or lead to the revelation of, the identity of any person who made a report under section 11 or 12.~~
 - ~~—(2) These persons are subject to a duty of confidentiality—~~
 - ~~—(a) a person who is or was the CEO;~~
 - ~~—(b) people who are or were engaged or employed in the administration or enforcement of this Act; and~~
 - ~~—(c) other people—~~
 - ~~—(i) to whom information or records are disclosed under this Act; or~~
 - ~~—(ii) who gain access (properly or improperly) to information obtained under this Act.~~
 - ~~—(3) A person subject to a duty of confidentiality must not record, disclose, or make use of information obtained under this Act except—~~
 - ~~—(a) for a purpose related to the administration or enforcement of this Act;~~
 - ~~—(b) as required or allowed by this Act or another written law that specifically or by necessary implication overrides this duty of confidentiality;~~
 - ~~—(c) as authorised by the person, or persons, to whose affairs the information relates;~~
 - ~~—(d) for the purposes of the investigation of any suspected offence or any judicial proceedings, or a report of~~

judicial proceedings, arising out of this Act or the EP Act;

- (e) in a statistical or other form that could not reasonably be expected to lead to the identification of any person to whose affairs it relates; or
- (f) in other circumstances in which its disclosure is permitted by the regulations.

— Penalty: \$125 000, and a daily penalty of \$25 000.

97. Guidelines

- (1) The CEO may from time to time make, amend or revoke guidelines with respect to —
 - (a) the assessment, management and reporting of contaminated sites;
 - (b) the identification and classification of contaminated sites; and
 - (c) community consultation regarding contaminated sites.
- (2) The CEO is to ensure that a copy of the guidelines, in an up to date form —
 - (a) is available for inspection by members of the public during office hours free of charge; and
 - (b) is made available to members of the public in any manner the CEO thinks fit.
- (3) If there is an inconsistency between a guideline and a regulation, the regulation prevails to the extent of that inconsistency.
- (4) The CEO is to cause to be published in the *Gazette* notice of the making, amendment or revocation of guidelines, but notices under this subsection need not include the text of guidelines or the amendments.
- (5) Guidelines are not subsidiary legislation for the purposes of the *Interpretation Act 1984*.

98. Regulations

- (1) The Governor may, on the recommendation of the Minister, make regulations prescribing all matters that are required or permitted by this Act to be prescribed, or are necessary or convenient to be prescribed, for giving effect to the purposes of this Act.
- (2) Without limiting subsection (1), regulations may be made under that subsection in respect of the matters set out in Schedule 2.

s. 99

- ~~— (3) — Section 123(3) of the EP Act applies with respect to regulations made under this Act.~~

99. ~~Review of Act~~

- ~~— (1) — The Minister is to carry out a review of the operation and effectiveness of this Act as soon as is practicable after the expiry of 5 years from its commencement.~~
- ~~— (2) — In the course of that review the Minister is to consider and have regard to —~~
- ~~— (a) — the effectiveness of the scheme established by this Act in identifying, recording, managing and remediating contaminated sites; and~~
- ~~— (b) — any other matter that appears to the Minister to be relevant to the operation and effectiveness of this Act.~~
- ~~— (3) — The Minister is to prepare a report based on the review and, as soon as is practicable after the report is prepared, is to cause it to be laid before each House of Parliament.~~

100. ~~Consequential amendments to other Acts~~

- ~~— Schedule 3 has effect.~~

Schedule 1 — Classification of sites

[s. 13]

Classification	Criterion
<i>Report not substantiated</i>	A report under section 11 or 12 provides no ground to indicate possible contamination of the site
<i>Possibly contaminated — investigation required</i>	There are grounds to indicate possible contamination of the site
<i>Not contaminated — unrestricted use</i>	After investigation, the site is found not to be contaminated
<i>Contaminated — restricted use</i>	The site is contaminated but suitable for restricted use
<i>Remediated for restricted use</i>	The site is contaminated but has been remediated so that it is suitable for restricted use
<i>Contaminated — remediation required</i>	The site is contaminated and remediation is required
<i>Decontaminated</i>	The site has been remediated and is suitable for all uses

Schedule 2—Matters in respect of which regulations may be made

[s. 98(2)]

Division 1—General

1. ~~Disclosure statements under section 64, including—
 - ~~(a) the form of statements;~~
 - ~~(b) information to be included in the statements; and~~
 - ~~(c) reports to be annexed to the statements.~~~~
2. ~~The fees to apply under this Act including, without limiting sections 43 and 45 of the *Interpretation Act 1984*, the following—
 - ~~(a) the time at which, or the periods for or during which, fees are to be paid;~~
 - ~~(b) the structure of fees;~~
 - ~~(c) the basis on which a fee is to be calculated;~~
 - ~~(d) interest on unpaid fees;~~
 - ~~(e) penalties for late payment or underpayment of fees;~~
 - ~~(f) recovery of fees;~~
 - ~~(g) refunding of fees.~~~~
3. ~~The facts and circumstances to be taken into account by the committee in making a decision under Part 3 Division 3 as to responsibility for remediation.~~
4. ~~The procedure for applying to the committee to make a decision as to responsibility for remediation, including the information that may be required by the committee, responsibility for the cost of supplying any information and the carrying out of any investigations to provide information.~~
5. ~~Procedures regarding access to the database and records under sections 19 and 21.~~
6. ~~Prescribing procedures in respect of appeals under Part 8 Division 2.~~

Division 2—Auditors and audits

7. ~~Conferring duties on auditors.~~
8. ~~A scheme for the accreditation of auditors and, without limiting the generality of that scheme—
 - ~~(a) applications for accreditation and the assessment of applications;~~
 - ~~(b) renewal of accreditation;~~~~

s. 100

- ~~— (c) — the provision of advice to the CEO as to accreditation and the renewal of accreditation, including the establishment of a selection panel;~~
 - ~~— (d) — the qualifications, criteria and practical experience required for accreditation as an auditor;~~
 - ~~— (e) — monitoring the continuing competence of auditors;~~
 - ~~— (f) — the circumstances in which accreditation as an auditor is to be cancelled or suspended;~~
 - ~~— (g) — the imposition and variation of conditions to which an accreditation is subject; and~~
 - ~~— (h) — fees payable in relation to application and accreditation.~~
9. ~~Additional circumstances where it is mandatory for an auditor to be engaged or for a mandatory auditor's report to be provided, and the person to whom the report is to be provided.~~
10. ~~The carrying out by an auditor of any duty conferred on an auditor under this Act or the EP Act.~~
11. ~~The scope and content of mandatory auditor's reports, including in respect of particular reports or reports made under particular provisions of this Act or the EP Act.~~
12. ~~The powers and duties of auditors in prescribed circumstances.~~
13. ~~A scale of maximum fees for services provided by auditors.~~

Schedule 3 — Consequential provisions

[s. 100]

1. ~~Environmental Protection Act 1986 amended~~

- ~~— (1) — The amendments in this clause are to the *Environmental Protection Act 1986*.~~
- ~~— (2) — Section 3(1) is amended by inserting in the appropriate alphabetical positions the following definitions —~~

~~“~~

~~— “contaminated” has the same meaning as it has in the *Contaminated Sites Act 2003*;~~

~~— “contaminated sites auditor” means a person accredited as a contaminated sites auditor under the *Contaminated Sites Act 2003*;~~

~~”.~~

- ~~— (3) — After section 40(2)(a) the following paragraph is inserted —~~

- ~~“(aa) require the proponent to provide to the Authority a contaminated sites auditor’s report on the proposal, which complies with any relevant regulations made under the *Contaminated Sites Act 2003*;~~
- ~~”(.~~
- ~~(4) Section 40(4)(a) is amended as follows:~~
- ~~(a) by inserting after “information”~~
- ~~“ or report ”;~~
- ~~(b) by inserting after “(2)(a)”~~
- ~~“ or (aa) ”.~~
- ~~(4a) Section 40(9) is amended by inserting after “(2)(a)”~~
- ~~“ , (aa) ”~~
- ~~(5) Section 48C(1) is amended by inserting after paragraph (a) the following paragraph—~~
- ~~“(aa) require the responsible authority, if it wishes that scheme to proceed, to provide to the Authority a contaminated sites auditor’s report on that scheme, which complies with any relevant regulations made under the *Contaminated Sites Act 2003*;~~
- ~~”(.~~
- ~~(6) Section 48C(4)(a) is amended by inserting after “(1)(a)”~~
- ~~“ or (aa) ”.~~
- ~~(6a) After section 89(1)(a) the following paragraph is inserted—~~
- ~~“(aa) at any time, any site classified as *contaminated*—
remediation required under the Contaminated Sites Act 2003;~~
- ~~”(.~~
- ~~(7) After section 89(2)(a) the following paragraph is inserted—~~
- ~~“(aa) reasonably believes that the house or land is contaminated;~~
- ~~”(.~~
- ~~(8) Section 89(3) is amended as follows:~~

s. 100

~~— (a) by deleting “groundwater” and inserting instead —
“ water ”;~~

~~— (b) after paragraph (a) by deleting “or”;~~

~~— (c) after paragraph (b) by deleting the comma and
inserting —~~

~~“~~

~~— ; or~~

~~— (c) if the inspector believes on reasonable grounds that
the land or water is contaminated, to investigate
whether contamination is present or to monitor or
assess any contamination that is present,~~

~~”.~~

~~— (9) Section 90(1)(a) is amended by inserting after “emission” in the
first place where it occurs —~~

~~“~~

~~— , or onto which any waste has been or is being
discharged,~~

~~”.~~

~~— [Clause 1 amended by No. 40 of 2005 s. 13.]~~

~~2. Land Administration Act 1997 amended~~

~~— (1) The amendments made by in this clause are to the Criminal Code
Amendment Land Administration Act 2004 s. 581997.~~

~~²— (2) Section 10(5) is amended by inserting after “Act” —~~

~~“~~

~~— and to section 60(2)(b)(i) of the Contaminated Sites
Act 2003~~

~~”.~~

~~— (3) Section 159 is amended by inserting after paragraph (e) the
following paragraph —~~

~~“~~

~~— (ea) the Minister responsible for administering the
Contaminated Sites Act 2003;~~

~~”.~~

~~— (4) Section 160(1) is amended by inserting after paragraph (e) the
following paragraph —~~

“

~~— (ea) — in the case of the Minister referred to in section 159(ea), to the chief executive officer of the Department principally assisting the Minister in the administration of the Contaminated Sites Act 2003 or to any other officer of that Department;~~

”.

3. ~~Town Planning and Development Act 1928 amended~~

~~— (1) — The amendment in this clause is to the Town Planning and Development Act 1928.~~

~~— (2) — Section 20(1)(a) is amended by inserting after “1986,”~~

“

~~— to section 58(6) of the Contaminated Sites Act 2003,~~

”.

4. ~~Transfer of Land Act 1893 amended~~

~~— (1) — The amendment in this clause is to the Transfer of Land Act 1893.~~

~~— (2) — Section 110 is amended by inserting after “1997”~~

~~— “ and section 32(3)(b) of the Contaminated Sites Act 2003 ”.~~

”.

³ On the date as at which this compilation was prepared, the *Courts Legislation Amendment and Repeal Act 2004* s. ~~142+41~~, which gives effect to Sch. ~~2+~~, had not come into operation. It reads as follows:

“

142. Other amendments to various~~141. Various Acts amended~~

Each Act listed in Schedule ~~2+~~ is amended as set out in that Schedule immediately below the short title of the Act.

”.

s. 141

Schedule 2 cl. 1930 reads as follows:

“

Schedule 2 — Other amendments 1 — Amendments to various Acts

19. Firearms~~30.~~ Contaminated Sites Act 1973~~2003~~

<u>s. 22(1)</u> ¹⁰	Delete the definition of “magistrate”. Delete the semi colon after the definition of “firearms appeal tribunal” and insert a full stop instead.
<u>s. 22(3)</u> ¹⁰	Delete “a magistrate” and insert instead — “ the Magistrates Court ”.
<u>After s. 22(6)</u> ¹⁰	Insert the following subsection — “ (6a) If an appeal is made to the Magistrates Court the court shall be constituted by a magistrate. ”.
<u>s. 22(7)</u> ¹⁰	Delete “A magistrate” and insert instead — “ The Magistrates Court ”. Delete “whom or”.
<u>s. 22(8)</u> ¹⁰	Delete “the magistrate” and insert instead — “ the Magistrates Court ”.
<u>s. 22(9)</u> ¹⁰ 85(1)	Repeal the subsection and insert instead — “ (9) In determining an appeal the Magistrates Court may make any other order, including an order as to costs, that the court thinks fit. (1) A prosecution for an offence under this Act must be commenced within 2 years after the date on which the offence is alleged to have been committed. ”.
<u>Schedule 3</u> <u>cl. 1</u> ¹⁰ s. 85(2)	Delete “section 51 of the definition of “CSM” Justices Act 1902 and insert instead — “ “Chief Magistrate” means the Chief Magistrate of the Magistrates Court; ”.
<u>Schedule 3</u> ¹⁰	Delete “CSM” wherever it occurs and insert instead — “ Chief Magistrate ”.

s. 108

¹⁰ The sections that it seeks to amend have been repealed by the *State Administrative Tribunal (Conferral of Jurisdiction) Amendment*⁴—On the date as at which this compilation was prepared, the *Criminal Procedure and Repeal Act Appeals (Consequential and Other Provisions) Act 2004* s. 369 and 371.

¹¹ On the date as at which this compilation was prepared, the *Psychologists Act 2005* s. 10880, which gives effect to Sch. 32, had not come into operation. It reads as follows:

“

108. Consequential amendments

Schedule 3 sets out consequential amendments.

”

Schedule 3 cl. 4 reads as follows:

“

Schedule 3 — Consequential amendments

[s. 108]

4. Firearms Act 1973 amended

(1) The amendments in this clause are to the *Firearms Act 1973*.

(2) Section 23B(3) is amended in the definition of “health professional” by deleting paragraph (b) and inserting instead —

“

(b) a psychologist as defined in the *Psychologists Act 2005* section 3;

”

”

¹² On the date as at which this compilation was prepared, the *Nurses and Midwives Act 2006* s. 114, which gives effect to Sch. 3, had not come into operation. It reads as follows:

“

114. Consequential amendments

Schedule 3 sets out consequential amendments.

”

Schedule 3 cl. 8 reads as follows:

“

s. 7380

Schedule 3 — Consequential amendments

[s. 114]

8. Firearms Act 1973 amended

(1) The amendments in this clause are to *Firearms Act 1973*.

(2) Section 23B(3) is amended in the definition of “registered nurse” by deleting “Part 3 of the *Nurses Act 1992*.” and inserting instead —

“ Part 4 of the *Nurses and Midwives Act 2006*. ”.

”.

¹³ On the date as at which this compilation was prepared, the *Criminal Investigation (Consequential Provisions) Act 2006* s. 73 which gives effect to Sch. 1 it. 5 had not come into operation. They read as follows:

“

7380. Various Acts amended (Sch. 1-2)

Each Act listed in Schedule 12 is amended as set out in that Schedule immediately below the short title of the Act.

”.

Schedule 1 item 52-cl. 31 reads as follows:

“

Schedule 1 — Various Acts amended2—Amendments to change terminology

[s. 7380]

5. Firearms31. Contaminated Sites Act 19732003

s. 24(5-84(3)	Delete “taken before a Justice to be”. In each provision, delete “complaint” in each place it occurs and in each place insert instead —
s. 85(3)	“ prosecution notice ”.
s. 86(1)	
s. 86(2)	
s. 26(1-85(2)	Delete “complaint of” and take”. insert instead —
	“ prosecution notice alleging ”.
	Delete “before a Justice to the complaint”.
	Delete “may be dealt with according to lawmade” and insert instead —
	“ the prosecution may be commenced ”.
	Before “need” insert —
	“ the prosecution notice ”.

”.

